Smt. Velagapudi Durgamba Siddhartha School of Law

LL.B. (3 Year) Degree Programme – Year I, Semester I

FAMILY LAW I

Course Code: 26LLB103

Complete Academic Notes

Hindu Law (Family, Marriage, Adoption, Maintenance, Guardianship), Muslim Law, Christian Law and Uniform Civil Code

Units 1 – 7 • Every syllabus topic explained in detail

With definitions, explanations, examples, flowcharts, tables and landmark case laws

Maintenance is explained under the Bharatiya Nagarik Suraksha Sanhita, 2023 (ss.144–147), with the old CrPC sections (ss.125–128) in brackets

Syllabus Checklist (Unit-wise Topic List)

The table below lists every topic of the prescribed syllabus (Course Code 26LLB103) in the exact syllabus order. Where the syllabus groups several sub-topics in one line (for example, matrimonial remedies), all of them are explained under that topic with separate side headings. Each topic begins on a fresh page.

Unit	No.	Topic (as in the syllabus)	Status
UNIT 1	1.1	Definition and Characteristics	Covered
	1.2	Types of Family – Patriarchal Family, Matriarchal Family, Individual Family and Joint Family	Covered
	1.3	Membership and Management – Coparceners, other members, Karta – Rights, Powers and Duties	Covered
	1.4	Coparcenary Property, Alienation of Joint Property	Covered
UNIT 2	2.1	Who is a Hindu ?	Covered
	2.2	Source of Hindu Law	Covered
	2.3	The Hindu Marriage Act, 1955	Covered
	2.4	Valid, Void, Voidable Marriages	Covered
	2.5	Ceremonies and Registration	Covered
	2.6	Matrimonial remedies – Restitution of conjugal rights, Judicial Separation, grounds for dissolution of marriage, divorce by mutual consent, maintenance pendente lite and permanent alimony and maintenance	Covered
	2.7	Jurisdiction of the Court, Time limit for petition and disposal	Covered
	2.8	Prevention of taking advantage of one’s own wrong or disability	Covered
UNIT 3	3.1	The Hindu Adoptions and Maintenance Act, 1956 Adoption, requisites of a valid adoption, Capacity of a Hindu Male and Female to take in adoption, persons capable of giving in adoption, persons who may be adopted, other conditions for a valid adoption	Covered
	3.2	Effects of valid adoption, valid adoption not to be cancelled	Covered
	3.3	Maintenance : Wife’s right to claim maintenance with separate residence, right of Widowed Daughter - in – Law, Children, Aged Parents and Dependents to claim maintenance	Covered
UNIT 4	4.1	The Hindu Minority and Guardianship Act, 1956 Minor and Guardians - Natural Guardian, Testamentary Guardian, Defacto Guardian - powers	Covered
	4.2	Incapacity of a minor to act as guardian	Covered
	4.3	Welfare of minor to be paramount consideration	Covered
UNIT 5	5.1	Origin of Mahomedan law	Covered
	5.2	Sources of Mahomadan law	Covered
	5.3	Marriage-conditions for valid marriage, Muta Marriage and Dower	Covered
	5.4	Dissolution of Marriage-Talak, The Muslim Women (Protection of Rights on Marriage) Act, 2019	Covered
	5.5	Dissolution of Muslim Marriage Act, 1939	Covered
UNIT 6	6.1	Who is a Christian	Covered
	6.2	Christian law of Marriage-The Christian Marriage Act, 1872	Covered

Unit	No.	Topic (as in the syllabus)	Status
	6.3	The Indian Divorce Act, 2007	Covered
UNIT 7	7.1	Article 44	Covered
	7.2	The Special Marriage Act, 1954	Covered
	7.3	The Family Courts Act, 1984	Covered
	7.4	Maintenance : Sections 144 to 147 of B N S S, 2023	Covered
	7.5	Shabano Begum Case	Covered
	7.6	Muslim Women (Protection of Rights on Divorce) Act, 1986	Covered

Table of Contents

Syllabus Checklist (Unit-wise Topic List) **2**

UNIT 1: Family **6**

1.1 Definition and Characteristics 7

1.2 Types of Family – Patriarchal Family, Matriarchal Family, Individual Family and Joint Family 10

1.3 Membership and Management – Coparceners, other members, Karta – Rights, Powers and Duties 13

1.4 Coparcenary Property, Alienation of Joint Property 17

UNIT 2: Hindu Marriage **20**

2.1 Who is a Hindu ? 21

2.2 Source of Hindu Law 24

2.3 The Hindu Marriage Act, 1955 27

2.4 Valid, Void, Voidable Marriages 30

2.5 Ceremonies and Registration 34

2.6 Matrimonial remedies – Restitution of conjugal rights, Judicial Separation, grounds for dissolution of marriage, divorce by mutual consent, maintenance pendente lite and permanent alimony and maintenance 37

2.7 Jurisdiction of the Court, Time limit for petition and disposal 42

2.8 Prevention of taking advantage of one's own wrong or disability 45

UNIT 3: Hindu Adoptions **49**

3.1 The Hindu Adoptions and Maintenance Act, 1956 Adoption, requisites of a valid adoption, Capacity of a Hindu Male and Female to take in adoption, persons capable of giving in adoption, persons who may be adopted, other conditions for a valid adoption 50

3.2 Effects of valid adoption, valid adoption not to be cancelled 54

3.3 Maintenance : Wife's right to claim maintenance with separate residence, right of Widowed Daughter - in – Law, Children, Aged Parents and Dependents to claim maintenance 57

UNIT 4: Guardianship **61**

4.1 The Hindu Minority and Guardianship Act, 1956 Minor and Guardians - Natural Guardian, Testamentary Guardian, Defacto Guardian - powers 62

4.2 Incapacity of a minor to act as guardian 67

4.3 Welfare of minor to be paramount consideration 70

UNIT 5: Mahomedan Law **73**

5.1 Origin of Mahomedan law 74

5.2 Sources of Mahomadan law 77

5.3 Marriage-conditions for valid marriage, Muta Marriage and Dower 80

5.4 Dissolution of Marriage-Talak, The Muslim Women (Protection of Rights on Marriage) Act, 2019 84

5.5 Dissolution of Muslim Marriage Act, 1939 88

UNIT 6: Christian Law **91**

6.1 Who is a Christian 92

6.2 Christian law of Marriage-The Christian Marriage Act, 1872 95

6.3 The Indian Divorce Act, 2007 98

UNIT 7: Uniform Civil Code **102**

7.1 Article 44 103

7.2 The Special Marriage Act, 1954 106

7.3 The Family Courts Act, 1984.....110
7.4 Maintenance : Sections 144 to 147 of B N S S, 2023.....114
7.5 Shabano Begum Case.....118
7.6 Muslim Women (Protection of Rights on Divorce) Act, 1986.....121

References / Bibliography.....124

UNIT 1
Family

Topics in this Unit

1.1 Definition and Characteristics

1.2 Types of Family – Patriarchal Family, Matriarchal Family, Individual Family and Joint Family

1.3 Membership and Management – Coparceners, other members, Karta – Rights, Powers and Duties

1.4 Coparcenary Property, Alienation of Joint Property

Topic 1.1: Definition and Characteristics

Introduction

The family is the oldest and most basic social institution. It is the first school of a child, the main unit of economic cooperation, and the foundation of society. Family law regulates the relationships within a family: marriage, divorce, maintenance, adoption, guardianship, succession and family property. In India, family law is largely governed by personal laws based on religion, which makes the study of the family especially important for law students.

Definition

A **family** is a social group of persons related to each other by marriage, blood (birth) or adoption, who usually live together, cooperate economically, and share responsibilities for the care and upbringing of children.

MacIver and Page: "Family is a group defined by a sex relationship sufficiently precise and enduring to provide for the procreation and upbringing of children."

Burgess and Locke: "The family is a group of persons united by ties of marriage, blood or adoption, constituting a single household, interacting and communicating with each other in their respective social roles."

Detailed Explanation

1. Characteristics of a Family

1. **Universality:** families exist in every society and at every stage of history.
2. **Emotional basis:** based on love, affection, care and loyalty.
3. **Limited size:** smaller than other social groups.
4. **Formative influence:** shapes the personality, values and habits of children.
5. **Nuclear position in society:** the basic unit from which larger social structures are built.
6. **Responsibility of members:** members have duties towards each other, such as support, care and maintenance.
7. **Social regulation:** governed by customs, religious rules and laws (marriage, divorce, inheritance).
8. **Permanent and temporary nature:** the family as an institution is permanent, though a particular family may change or break up.
9. **Common habitation:** members usually live together in one household.
10. **Economic provision:** members cooperate to meet economic needs.

2. Functions of the Family

Type of function	Examples
Biological	Satisfaction of sexual needs within a regulated relationship; procreation
Social	Socialisation of children; transmission of culture and values; social status
Economic	Production and consumption unit; property ownership and inheritance
Educational	First informal education and moral training
Protective	Care of children, the sick and the aged
Religious	Performance of religious rites and ceremonies (e.g. shraddha in Hindu families)
Legal	Determination of legitimacy, maintenance, succession and guardianship

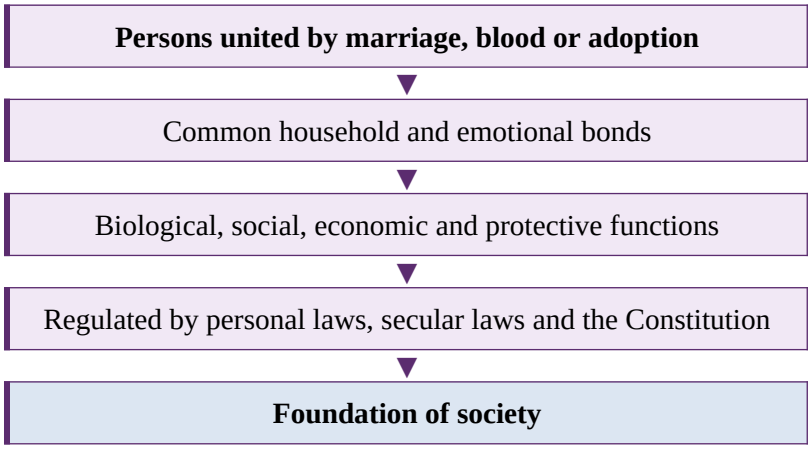
3. Family in Indian Law

1. Indian law does not give a single definition of "family"; each statute defines related persons for its own purposes (e.g. "domestic relationship" under the Protection of Women from Domestic Violence Act, 2005; "dependants" under HAMA, 1956).
2. Personal laws (Hindu, Muslim, Christian, Parsi) govern marriage, divorce, maintenance, adoption and succession.
3. Secular laws (Special Marriage Act, 1954; BNSS, 2023 ss.144–147; Domestic Violence Act, 2005; Juvenile Justice Act, 2015) apply to all.
4. The Constitution protects the family indirectly through Art 21 (privacy, choice of partner, dignity) and directs a Uniform Civil Code (Art 44).

4. Changing Nature of the Family

1. Shift from joint families to nuclear families due to urbanisation, industrialisation and migration.
2. Greater equality for women (e.g. daughters as coparceners after 2005).
3. Recognition of different family forms: single parents, blended families and, for some purposes, live-in relationships.

Flowchart: Role of the family



Examples

- A husband, wife and their two children living together form a nuclear family.
- Three brothers, their wives and children living together with their parents and sharing a common kitchen and property form a joint family.

Case Laws

Case Law: Deepika Singh v Central Administrative Tribunal

Year: 2022 **Court:** Supreme Court of India

Facts / Background: A woman employed as a nurse in a Government hospital was denied maternity leave for her first biological child, because she had earlier availed child care leave for her husband's two children from his previous marriage. The authorities treated her as already having two children.

Legal Issue: Can maternity leave be denied by treating the stepchildren as the woman's own children, and how should the law understand the "family"?

Court's Decision / What the Court Held: The Supreme Court held that she was entitled to maternity leave for her biological child. The Court observed that the law must recognise that families take many forms: the traditional idea of a family with a mother, father and children does not account for many situations, such as single parents, blended families, adoption and remarriage. Such "atypical" families are equally deserving of protection under the law.

Relevance to the Topic: The case shows the modern, inclusive judicial understanding of the family.

Important Points

- The family is a group united by marriage, blood or adoption.
- Its characteristics include universality, emotional basis, limited size, formative influence and social regulation.
- It performs biological, social, economic, educational, protective and religious functions.
- Indian family law is largely based on personal laws, with secular laws and constitutional values.
- The law must protect "atypical" families as well (*Deepika Singh*, 2022).

Remember: There is no single statutory definition of "family" in Indian law.

Topic 1.2: Types of Family – Patriarchal Family, Matriarchal Family, Individual Family and Joint Family

Introduction

Families can be classified in many ways: on the basis of authority (who is the head), descent (through whom the line is traced), residence (where the couple lives after marriage), and structure (nuclear or joint). The syllabus focuses on four types: patriarchal, matriarchal, individual (nuclear) and joint families. In Indian law, the joint Hindu family is particularly important, because it has its own rules on property and management.

Definition

Patriarchal family: a family in which the father (or eldest male) is the head and has authority, descent is traced through the male line, and property passes to male heirs.

Matriarchal family: a family in which the mother (or eldest female) is the head or centre, descent is traced through the female line, and property passes through women.

Individual (nuclear) family: a family consisting of a husband, wife and their unmarried children.

Joint family: a family consisting of several generations living together, with a common kitchen, common property and common worship.

Detailed Explanation

1. Patriarchal Family

1. **Authority** rests with the father or the eldest male member.
2. **Patrilineal descent:** the family name and lineage pass through males.
3. **Patrilocal residence:** the wife comes to live in the husband's family home.
4. **Inheritance** mainly through males (traditional Hindu law, before reforms).
5. **Example:** the traditional Hindu joint family under the Mitakshara school.

2. Matriarchal Family

1. **Authority** rests with the mother or the eldest female, or her brother.
2. **Matrilineal descent:** lineage traced through the mother.
3. **Matrilocal residence:** the husband may live with the wife's family, or visit her.
4. **Inheritance** through the female line.
5. **Examples in India:** the Nair *tarwad* under the Marumakkattayam system in Kerala (the joint family system was abolished by the Kerala Joint Hindu Family System (Abolition)

Act, 1975), the Aliyasantana system in South Kanara, and the Khasi and Garo communities of Meghalaya.

3. Individual (Nuclear) Family

1. Consists of husband, wife and unmarried children.
2. Small size, greater independence and mobility.
3. Increasingly common in urban India.
4. Members have individual property and individual responsibility.

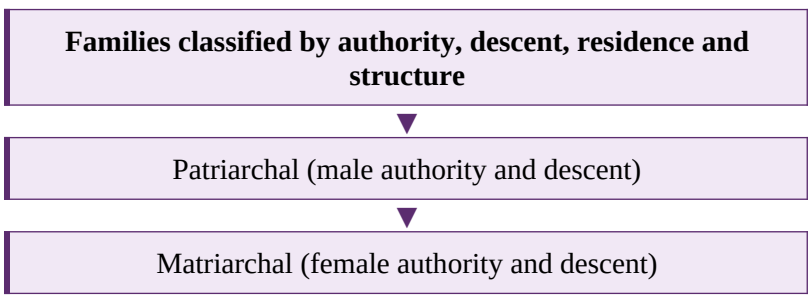
4. Joint Family

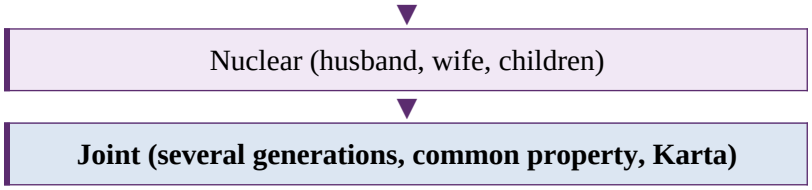
1. **Composition:** several generations (grandparents, parents, children, uncles, aunts, cousins).
2. **Common residence and kitchen**, though members may live separately and still be joint in law.
3. **Common property** (joint family property) and **common worship**.
4. **Management by the Karta** (the senior member).
5. **Legal concept:** the Hindu Undivided Family (HUF) is recognised under Hindu law and tax law.
6. **Presumption of jointness:** a Hindu family is presumed to be joint until the contrary is proved.

5. Comparison

Point	Patriarchal	Matriarchal	Nuclear	Joint
Head	Father / eldest male	Mother / eldest female (or her brother)	Husband and wife jointly	Karta (senior member)
Descent	Through males	Through females	Usually bilateral	Traditionally through males; now daughters are also coparceners
Residence	Husband's home	Wife's home	Independent	Ancestral home
Property	Male heirs	Female line	Individual	Joint family property
Indian example	Traditional Hindu family	Nair tarwad; Khasi	Urban families	Hindu Undivided Family

Flowchart: Classification of families





Examples

- Among the Khasis of Meghalaya, the youngest daughter (*khadduh*) traditionally inherits the ancestral property.
- In a Hindu joint family, the grandfather, his sons and grandsons live together, and the grandfather acts as the Karta.

Case Laws

Case Law: Commissioner of Wealth Tax, Kanpur v Chander Sen

Year: 1986 **Court:** Supreme Court of India

Facts / Background: A father and his son (Chander Sen) partitioned their joint family business, and thereafter carried on business as a partnership. After the father's death, his share was inherited by his son under section 8 of the Hindu Succession Act, 1956. The tax authorities treated the inherited assets as belonging to the son's Hindu Undivided Family (with his own sons).

Legal Issue: When a son inherits his father's property under section 8 of the Hindu Succession Act, does he take it as joint family property (with his own sons) or as his separate property?

Court's Decision / What the Court Held: The Supreme Court held that property inherited by a son from his father under section 8 of the Hindu Succession Act is his individual property, not joint family property. The traditional rule that a son takes his father's property as joint family property has been altered by the Act.

Relevance to the Topic: The case shows how legislation has changed the nature of the joint family, moving it closer to the individual family in matters of property.

Important Points

- Families can be patriarchal, matriarchal, nuclear (individual) or joint.
- Matriarchal systems existed among Nairs (Marumakkattayam), Aliyasantana communities and the Khasis.
- The joint Hindu family has common property, common residence and a Karta; jointness is presumed.
- Property inherited under s.8 HSA is separate property (*Chander Sen*, 1986).

Remember: The joint family is a wider body than the coparcenary (Topic 1.3).

Topic 1.3: Membership and Management – Coparceners, other members, Karta – Rights, Powers and Duties

Introduction

A Hindu joint family has a special legal structure. Within it there is a smaller group called the **coparcenary**, whose members acquire an interest in joint family property by birth. The family is managed by the **Karta**, who has wide powers but also important duties. After the Hindu Succession (Amendment) Act, 2005, daughters have become coparceners equal to sons, which has transformed the structure of the joint family.

Definition

> **Hindu joint family:** a family consisting of all persons lineally descended from a common ancestor, including their wives and unmarried daughters.

> **Coparcenary:** a narrower body within the joint family, consisting of the common ancestor and his lineal descendants up to three generations (sons, grandsons and great-grandsons, and since 2005, daughters), who acquire an interest in coparcenary property by birth.

> **Karta:** the manager of the joint family, usually the senior-most coparcener.

Detailed Explanation

1. Members of a Joint Family

1. **Coparceners:** the common ancestor and his descendants up to three degrees (four generations in all, including the holder), including daughters (since 9 September 2005).
2. **Other members:** wives of coparceners, widows, and others who are entitled to maintenance (and, on partition, sometimes a share) but do not acquire an interest by birth.

2. Characteristics of a Coparcenary

1. **Acquisition of interest by birth** (Mitakshara).
2. **Unity of ownership and possession:** the property is held jointly; no coparcener can claim a definite share until partition.
3. **Fluctuating interest:** a coparcener's share increases by deaths and decreases by births in the family.
4. **Right to demand partition.**
5. **Survivorship (modified):** traditionally, on the death of a coparcener, his interest passed to the surviving coparceners. After the 2005 amendment of section 6 HSA, the interest of a deceased coparcener devolves by testamentary or intestate succession, not by survivorship.
6. **Management by the Karta.**

3. Daughters as Coparceners (Section 6 HSA, as amended in 2005)

1. A daughter of a coparcener becomes a coparcener by birth in her own right in the same manner as a son.
2. She has the same rights and liabilities in coparcenary property as a son.
3. In *Vineeta Sharma v Rakesh Sharma* (2020), the Supreme Court held that a daughter is a coparcener by birth irrespective of whether her father was alive on 9 September 2005.

4. Karta: Position

1. Usually the senior-most coparcener; a junior coparcener may be Karta with the consent of all.
2. A daughter, being a coparcener after 2005, can be Karta (*Sujata Sharma v Manu Gupta*, Delhi High Court).
3. The Karta's position is unique: he is not a trustee or agent, but a manager with wide discretion. He is not ordinarily liable to account for past dealings except at partition, unless there is fraud, misappropriation or conversion.

5. Powers of the Karta

Power	Explanation
Management	Manages the family property and business as he thinks fit
Income and expenditure	Receives income and spends it for family purposes; not bound to save
Representation	Represents the family in legal proceedings and transactions
Contracting debts	Can contract debts for family purposes, binding the joint family property
Compromise	Can compromise family disputes and debts in good faith
Alienation	Can alienate joint family property for legal necessity, benefit of the estate, or indispensable duties
Acknowledgement of debts	Can acknowledge debts and pay them

6. Duties and Liabilities of the Karta

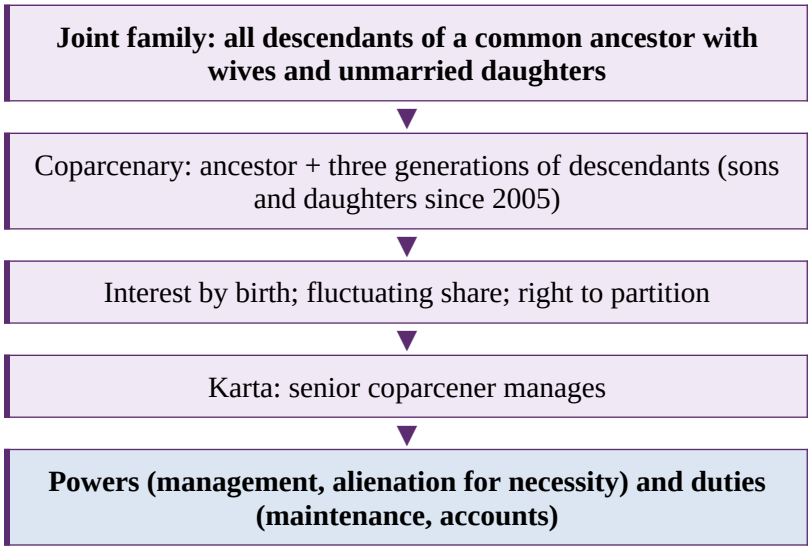
1. **Maintain** all members of the family.
2. **Arrange marriages** of unmarried members.
3. **Account** for income and expenditure at the time of partition.
4. **Not to start a new business** that would bind the family property without consent.
5. **Recover debts** due to the family and pay debts owed.
6. **Act in good faith** and in the interest of the family.

7. Rights of Coparceners

1. Right to joint possession and enjoyment.
2. Right to maintenance from joint property.
3. Right to demand partition.

4. Right to challenge unauthorised alienations by the Karta (but not, ordinarily, to restrain the Karta by injunction from alienating: *Sunil Kumar v Ram Prakash*, 1988).
5. Right to will his undivided interest (s.30 HSA).

Flowchart: Structure of a Mitakshara joint family



Examples

- A (grandfather), B (son), C (grandson), D (great-grandson) and E (A's daughter, after 2005) are coparceners. A is the Karta.
- The Karta sells a joint family house to pay for the medical treatment of a family member. This is for legal necessity and binds all coparceners.

Case Laws

Case Law: Vineeta Sharma v Rakesh Sharma

Year: 2020 **Court:** Supreme Court of India (three-judge bench)

Facts / Background: A father died in 1999, before the Hindu Succession (Amendment) Act, 2005 came into force. His daughter claimed a share as a coparcener under the amended section 6. Conflicting decisions existed: *Prakash v Phulavati* (2016) had held that the father must be alive on 9 September 2005 for the daughter to get rights, while *Danamma v Amar* (2018) took a different view.

Legal Issue: Is a daughter a coparcener under the amended section 6 only if her father was alive on 9 September 2005?

Court's Decision / What the Court Held: The Court held that the daughter becomes a coparcener by birth, in her own right, irrespective of whether her father was alive on 9 September 2005. The amendment operates from that date, but the right is conferred by birth. Partitions effected before 20 December 2004 by a registered deed or a court decree are not reopened. *Prakash v Phulavati* was overruled.

Relevance to the Topic: The leading case on the equal coparcenary rights of daughters.

Case Law: Sunil Kumar v Ram Prakash

Year: 1988 **Court:** Supreme Court of India

Facts / Background: The Karta of a joint family entered into an agreement to sell joint family property. His sons, who were coparceners, filed a suit for a permanent injunction restraining him from selling the property.

Legal Issue: Can a coparcener obtain an injunction to restrain the Karta from alienating joint family property?

Court's Decision / What the Court Held: The Court held that a coparcener cannot obtain an injunction restraining the Karta from alienating joint family property, because the Karta has the power to alienate for legal necessity or benefit of the estate. Granting an injunction would paralyse the management of the family. The coparcener's remedy is to challenge the alienation after it is made, if it was not for legal necessity or benefit.

Relevance to the Topic: The case explains the Karta's power of management and the limits of a coparcener's remedy.

Important Points

- The coparcenary is narrower than the joint family; coparceners acquire interest by birth.
- Since 2005, daughters are coparceners equal to sons (*Vineeta Sharma*, 2020).
- The Karta manages the family and has wide powers, including alienation for legal necessity.
- The Karta must maintain members, arrange marriages and render accounts at partition.
- A coparcener cannot ordinarily restrain the Karta by injunction (*Sunil Kumar*, 1988).

Remember: A daughter, as a coparcener, can be the Karta.

Topic 1.4: Coparcenary Property, Alienation of Joint Property

Introduction

The property held by a Hindu joint family can be of different kinds: ancestral (coparcenary) property in which members have a right by birth, and separate property owned individually. Since joint property belongs to all coparceners, the law places limits on its sale, mortgage or gift (alienation). The Karta can alienate it only for specific purposes, and an individual coparcener's power to deal with his share is also limited.

Definition

> **Coparcenary (joint family) property** is property in which every coparcener has an interest by birth, such as ancestral property, property acquired with the help of joint family funds, jointly acquired property, and separate property thrown into the common stock.

> **Alienation** means the transfer of property by sale, mortgage, gift, lease or any other mode.

Detailed Explanation

1. Kinds of Joint Family Property

Kind	Meaning
Ancestral property	Property inherited by a Hindu from his father, father's father or father's father's father (subject to *Chander Sen*: property inherited under s.8 HSA is separate)
Property acquired with joint family funds	Property purchased using the income or assets of the joint property
Jointly acquired property	Property acquired by the joint labour of the members
Separate property thrown into the common stock (blending)	A coparcener voluntarily treats his separate property as joint property, giving up his exclusive claim

2. Separate Property

Separate property includes self-acquired property, gifts and bequests from relatives (unless given to the family), property inherited from females or collaterals, property obtained on partition (as against collaterals), and property inherited under s.8 HSA. The owner has full powers to deal with it.

3. Alienation by the Karta

The Karta can alienate joint family property only for:

1. **Legal necessity:** e.g. maintenance of members, marriage of members, medical expenses, payment of debts binding the family, payment of government revenue, necessary litigation, funeral and religious rites.

2. **Benefit of the estate:** a transaction a prudent owner would enter into to benefit the property; the modern view is that it need not be only defensive.
3. **Indispensable duties:** religious and charitable acts (e.g. shraddha, small gifts for pious purposes).

Burden on the alienee: a person who buys from the Karta must prove legal necessity, or that he made a bona fide inquiry and believed that legal necessity existed (*Hunooman Persaud Panday v Mussumat Babooee Munraj Koonweree*, 1856 PC).

Consent of coparceners: alienation with the consent of all adult coparceners binds the family.

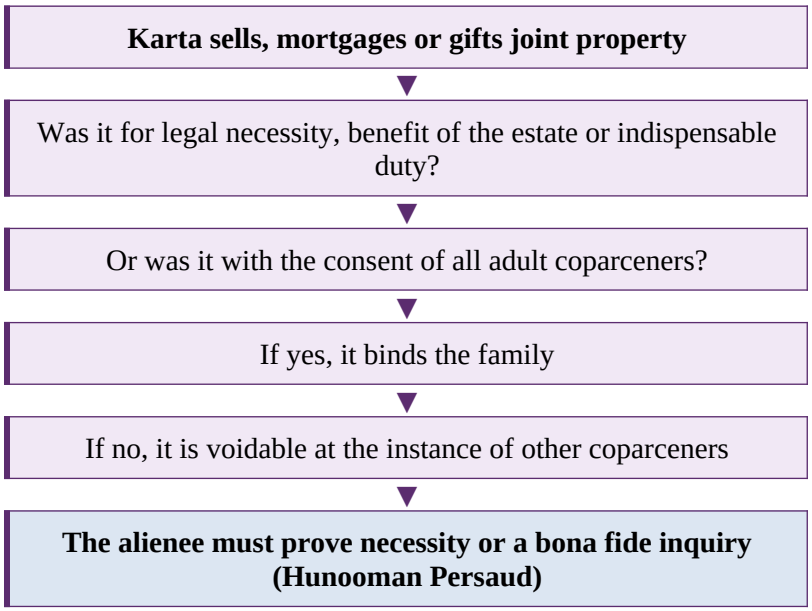
4. Alienation by a Coparcener

1. **Will:** under s.30 HSA, a coparcener can dispose of his undivided interest by will.
2. **Gift:** a coparcener cannot gift his undivided interest without the consent of other coparceners (though small gifts of movables for pious purposes may be valid).
3. **Sale or mortgage:** in many States (e.g. Bombay, Madras, Madhya Pradesh), a coparcener can sell or mortgage his undivided interest for value, and the purchaser can sue for partition.

5. Remedies of Coparceners against Unauthorised Alienation

1. Suit to set aside the alienation (within the limitation period: Art 109 of the Limitation Act, 1963 prescribes 12 years from the date the alienee takes possession).
2. Suit for partition.
3. A coparcener born after the alienation cannot challenge an alienation made with the consent of all coparceners existing at the time.

Flowchart: Validity of alienation of joint family property by the Karta



Examples

- The Karta mortgages joint family land to raise money for his sister's marriage. This is for legal necessity and binds all.

- The Karta gifts a large joint family house to his friend. This is not for any recognised purpose and can be set aside by other coparceners.

Case Laws

Case Law: Hunooman Persaud Panday v Mussumat Babooee Munraj Koonweree

Year: 1856 **Court:** Privy Council

Facts / Background: The mother and manager of a minor's estate mortgaged part of the estate to raise money. The question arose whether the mortgage bound the minor's estate and what the lender had to prove.

Legal Issue: When can a manager of a Hindu family (or a minor's estate) alienate property, and what must the alienee prove?

Court's Decision / What the Court Held: The Privy Council held that the power of a manager to charge an estate not his own is a limited and qualified power. It can be exercised rightly only in a case of need or for the benefit of the estate. A lender is bound to inquire into the necessity for the loan and to satisfy himself, as far as he reasonably can, that the manager is acting for the benefit of the estate. If he does so honestly, the real existence of the alleged necessity is not a condition precedent to the validity of his charge.

Relevance to the Topic: The leading case on the power of the Karta (manager) to alienate joint property for legal necessity and the duty of the alienee.

Important Points

- Coparcenary property includes ancestral property, property acquired with joint funds, jointly acquired property and separate property thrown into the common stock.
- Property inherited under s.8 HSA is separate (*Chander Sen*, 1986).
- The Karta can alienate for legal necessity, benefit of the estate or indispensable duties.
- The alienee must prove necessity or a bona fide inquiry (*Hunooman Persaud*, 1856).
- A coparcener can will his undivided interest (s.30 HSA).

Remember: An alienation without necessity is voidable, not void, and can be challenged by other coparceners.

UNIT 2
Hindu Marriage

Topics in this Unit

2.1 Who is a Hindu ?

2.2 Source of Hindu Law

2.3 The Hindu Marriage Act, 1955

2.4 Valid, Void, Voidable Marriages

2.5 Ceremonies and Registration

2.6 Matrimonial remedies – Restitution of conjugal rights, Judicial Separation, grounds for dissolution of marriage, divorce by mutual consent, maintenance pendente lite and permanent alimony and maintenance

2.7 Jurisdiction of the Court, Time limit for petition and disposal

2.8 Prevention of taking advantage of one's own wrong or disability

Topic 2.1: Who is a Hindu ?

Introduction

Hindu law applies only to "Hindus". So the first question in any Hindu law case is whether the parties are Hindus. Hinduism is not a religion with a single founder, book or set of rituals; it is a way of life with great diversity. The codified Hindu law statutes (HMA, HSA, HAMA and HMGA, 1955–56) therefore define the persons to whom they apply in wide terms, including Buddhists, Jains and Sikhs.

Definition

> **Section 2(1) of the Hindu Marriage Act, 1955** (similar provisions in the HSA, HAMA and HMGA): the Act applies (a) to any person who is a Hindu by religion in any of its forms or developments, including a Virashaiva, a Lingayat or a follower of the Brahmo, Prarthana or Arya Samaj; (b) to any person who is a Buddhist, Jaina or Sikh by religion; and (c) to any other person domiciled in the territories to which the Act extends who is not a Muslim, Christian, Parsi or Jew by religion, unless it is proved that such person would not have been governed by Hindu law in respect of the matters dealt with in the Act.

Detailed Explanation

1. Categories of Persons Who Are Hindus

1. **Hindus by religion:** persons who profess Hinduism in any of its forms or developments, including Virashaivas, Lingayats, and followers of the Brahmo Samaj, Prarthana Samaj and Arya Samaj.
2. **Buddhists, Jains and Sikhs:** treated as Hindus for the purposes of these Acts.
3. **Hindus by birth (Explanation to s.2):**
   - a child, legitimate or illegitimate, both of whose parents are Hindus, Buddhists, Jains or Sikhs;
   - a child, one of whose parents is a Hindu, Buddhist, Jain or Sikh, and who is brought up as a member of the tribe, community, group or family to which that parent belongs.
4. **Converts and reconverts:** a person who converts or reconverts to Hinduism, Buddhism, Jainism or Sikhism.
5. **Residuary category:** any person domiciled in India who is not a Muslim, Christian, Parsi or Jew, unless it is proved that he would not have been governed by Hindu law.

2. Persons to Whom the Acts Do Not Apply

1. Muslims, Christians, Parsis and Jews.
2. **Scheduled Tribes:** s.2(2) HMA provides that the Act does not apply to members of Scheduled Tribes unless the Central Government directs otherwise by notification.

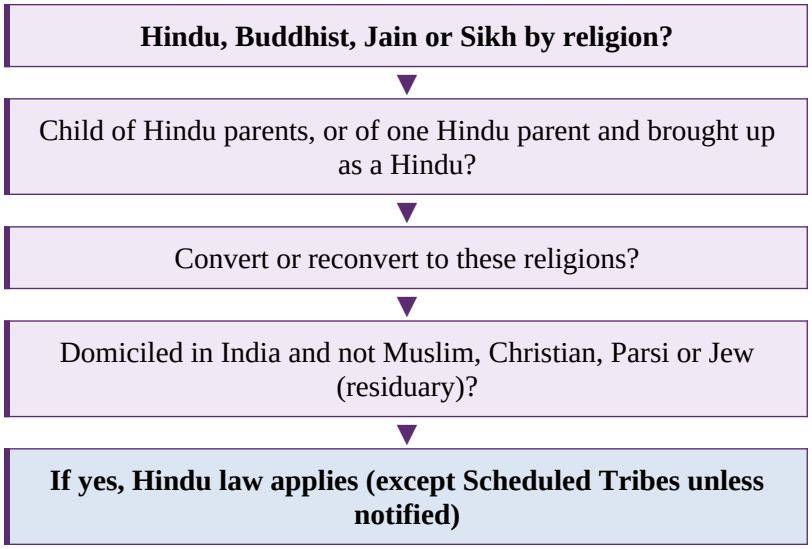
3. Tests of Hinduism

1. **Bal Gangadhar Tilak's definition** (approved by the Supreme Court): acceptance of the Vedas with reverence; recognition that the means or ways to salvation are diverse; and realisation that the number of gods to be worshipped is large.
2. Hinduism is broad and tolerant; belief in a particular god or ritual is not required.

4. Conversion

1. A Hindu who converts to another religion ceases to be a Hindu for these Acts.
2. Conversion of a spouse is a ground for divorce (s.13(1)(ii) HMA).
3. Conversion requires a genuine intention; formal ceremonies may not be necessary for conversion to Hinduism (*Perumal Nadar v Ponnuswami*, 1971).

Flowchart: Is the person a Hindu under the codified Hindu law?



Examples

- A Sikh couple marries in Punjab. Their marriage is governed by the Hindu Marriage Act (Sikh marriages may also be registered under the Anand Marriage Act, 1909).
- A child born to a Hindu father and Christian mother, brought up as a Hindu, is a Hindu.

Case Laws

Case Law: Shastri Yagnapurushdasji v Muldas Bhudardas Vaishya

Year: 1966 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The followers of the Swaminarayan sect claimed that they were not Hindus, so that the Bombay Hindu Places of Public Worship (Entitlement to Entry) Act, 1956, which threw open Hindu temples to Harijans, did not apply to their temples.

Legal Issue: Are the followers of the Swaminarayan sect Hindus? What are the essential features of the Hindu religion?

Court's Decision / What the Court Held: The Supreme Court held that the Swaminarayan followers are Hindus. Chief Justice Gajendragadkar explained that Hinduism is a broad

religion that does not claim one prophet, one God, or one set of rituals. He approved Tilak's formula: acceptance of the Vedas with reverence, recognition of diverse means to salvation, and realisation of a large number of gods. The sect was a part of Hinduism, so the temple entry law applied.

Relevance to the Topic: The leading case on the meaning of "Hindu" and the nature of Hinduism.

Case Law: Perumal Nadar v Ponnuswami Nadar

Year: 1971 **Court:** Supreme Court of India

Facts / Background: A Christian woman married a Hindu man, and a son was born to them. After separation, the son claimed maintenance and a share in the father's property. The question arose whether the marriage was valid, which depended on whether the mother had become a Hindu.

Legal Issue: Is a formal ceremony of purification (shuddhi) necessary for a person to become a Hindu by conversion?

Court's Decision / What the Court Held: The Court held that a person may become a Hindu if, after a bona fide intention to be converted to the Hindu faith, he or she conducts himself or herself in a way that shows acceptance by the community. No formal ceremony of purification or expiation is necessary. The mother had become a Hindu and the marriage was valid.

Relevance to the Topic: The case explains how a person becomes a Hindu by conversion.

Important Points

- Section 2 HMA (and the other codified Acts) defines who is a Hindu widely.
- Buddhists, Jains and Sikhs are Hindus for these Acts.
- Children of Hindu parents (or of one Hindu parent, brought up as Hindu) are Hindus.
- The Acts do not apply to Scheduled Tribes unless notified.
- Hinduism has no single creed (*Shastri Yagnapurushdasji*, 1966).
- No formal ceremony is needed for conversion to Hinduism (*Perumal Nadar*, 1971).

Remember: The residuary clause brings in all persons who are not Muslims, Christians, Parsis or Jews.

Topic 2.2: Source of Hindu Law

Introduction

Hindu law is one of the oldest legal systems in the world. It developed over thousands of years from religious texts, commentaries, customs and, later, judicial decisions and legislation. Understanding the sources of Hindu law helps us understand why certain rules exist and how courts interpret them. Today, most of Hindu law is codified, but the ancient sources are still relevant for matters not covered by statutes, such as joint family and partition.

Definition

> The **sources of Hindu law** are the origins from which its rules are derived. They are classified as **ancient (traditional) sources** (Shruti, Smriti, commentaries and digests, and custom) and **modern sources** (equity, justice and good conscience; judicial precedent; and legislation).

Detailed Explanation

1. Ancient Sources

Shruti (What Is Heard)

1. The **Vedas** (Rig, Yajur, Sama, Atharva) and the Upanishads, believed to be divine revelation.
2. They contain few rules of law; they are mainly religious and philosophical.

Smriti (What Is Remembered)

1. Texts based on the memory of sages, containing rules of conduct (dharma).
2. **Dharmasutras** (prose): Gautama, Baudhayana, Apastamba, Vasistha.
3. **Dharmashastras** (verse): **Manu Smriti** (the most important), **Yajnavalkya Smriti**, **Narada Smriti**, Brihaspati, Katyayana.
4. They deal with marriage, inheritance, crime, procedure and duties of the king.

Commentaries and Digests (Nibandhas)

1. Commentaries explained and reconciled the Smritis.
2. **Mitakshara**, by Vijnaneshwara (11th century), a commentary on the Yajnavalkya Smriti; followed in most of India.
3. **Dayabhaga**, by Jimutavahana (12th century); followed in Bengal and Assam.
4. These led to the two main **schools** of Hindu law.

Custom

1. Custom is a rule that has been followed for a long time and has acquired the force of law in a community, region or family.
2. **Requirements of a valid custom:** ancient, continuous, certain, reasonable, not opposed to public policy or law, and proved by clear evidence.

3. Codified Acts recognise custom in certain matters (e.g. s.3(a) HMA defines custom; s.7 allows customary ceremonies; s.5(iv) and (v) allow marriages within prohibited degrees or sapinda relationship if permitted by custom).

2. Modern Sources

Equity, Justice and Good Conscience

Where no rule exists, courts decide according to equity, justice and good conscience.

Judicial Precedent

Decisions of the Privy Council, Supreme Court and High Courts are binding and have shaped Hindu law (e.g. on adoption, joint family and coparcenary).

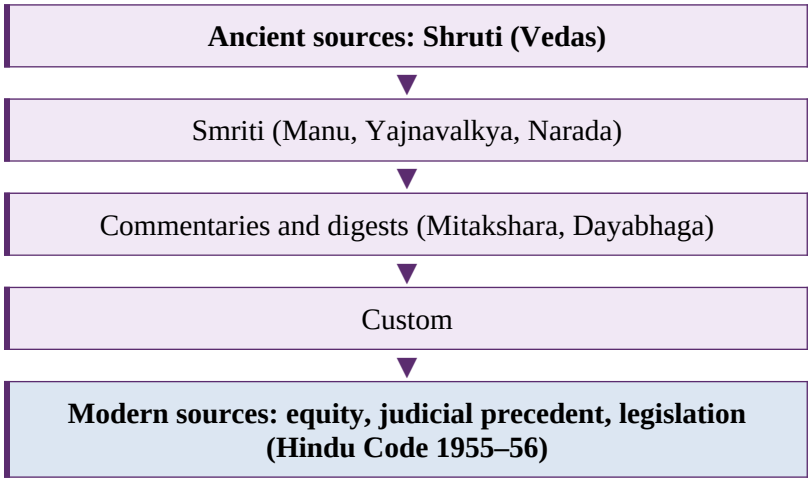
Legislation

1. Earlier laws: Hindu Widows' Remarriage Act, 1856; Child Marriage Restraint Act, 1929; Hindu Women's Rights to Property Act, 1937.
2. **Hindu Code (1955–56):** Hindu Marriage Act, 1955; Hindu Succession Act, 1956; Hindu Minority and Guardianship Act, 1956; Hindu Adoptions and Maintenance Act, 1956.
3. Later amendments: e.g. Hindu Succession (Amendment) Act, 2005.

3. Schools of Hindu Law

Point	Mitakshara	Dayabhaga
Author	Vijnaneshwara	Jimutavahana
Area	Most of India (sub-schools: Benares, Mithila, Maharashtra/Bombay, Dravida/Madras, Punjab)	Bengal and Assam
Right in joint property	By birth	On the death of the father
Father's power over ancestral property	Limited	Absolute owner during his lifetime
Shares of coparceners	Fluctuating	Definite

Flowchart: Sources of Hindu law



Examples

- A custom in a community permits marriage with the maternal uncle's daughter. Under s.5(iv) HMA, such a marriage is valid if the custom is proved.
- Today, the Hindu Marriage Act, not the Manu Smriti, governs the conditions of a valid Hindu marriage.

Case Laws

Case Law: Collector of Madura v Moottoo Ramalinga Sathupathy

Year: 1868 **Court:** Privy Council

Facts / Background: A widow adopted a son with the consent of her husband's sapindas (kinsmen), but without her husband's express authority. The validity of the adoption was challenged, and the question arose as to the role of texts and custom.

Legal Issue: What is the relationship between the written texts of Hindu law and established custom?

Court's Decision / What the Court Held: The Privy Council upheld the adoption according to the prevailing law in the Dravida (Madras) school. It famously observed that under Hindu law, "clear proof of usage will outweigh the written text of the law". Custom, when clearly proved, can prevail over the Smritis.

Relevance to the Topic: The case establishes the importance of custom as a source of Hindu law.

Important Points

- Ancient sources: Shruti, Smriti, commentaries and digests, and custom.
- Modern sources: equity, precedent and legislation.
- Mitakshara and Dayabhaga are the two main schools.
- A valid custom must be ancient, certain, reasonable, continuous and not opposed to law or public policy.
- "Clear proof of usage will outweigh the written text" (*Collector of Madura*, 1868).

Remember: Today, legislation is the most important source of Hindu law.

Topic 2.3: The Hindu Marriage Act, 1955

Introduction

Before 1955, Hindu marriage was regarded as a sacrament (a religious, indissoluble union), and the law allowed polygamy and did not provide for divorce (except by custom). The Hindu Marriage Act, 1955 transformed Hindu marriage law: it introduced monogamy, laid down uniform conditions for a valid marriage, and provided remedies such as restitution of conjugal rights, judicial separation, nullity and divorce. This topic gives an overview of the Act; its main parts are explained in the following topics.

Definition

> The **Hindu Marriage Act, 1955** is the law that codifies and amends the law relating to marriage among Hindus. It came into force on 18 May 1955 and applies to all Hindus (as defined in s.2) domiciled in India.

Detailed Explanation

1. Nature of Hindu Marriage

1. **Traditional view:** a sacrament (*samskara*), a permanent and holy union for the performance of religious duties.
2. **After the Act:** it has features of both a sacrament (ceremonies, s.7) and a contract (consent, divorce, mutual consent divorce). It is now described as partly sacramental and partly contractual.

2. Scheme of the Act

Sections	Subject
1–4	Preliminary: extent, application (who is a Hindu), definitions, overriding effect
5–8	Conditions for a Hindu marriage, ceremonies and registration
9–10	Restitution of conjugal rights and judicial separation
11–18	Nullity of marriage and divorce; legitimacy of children; punishment for bigamy and other contraventions
19–28	Jurisdiction and procedure; maintenance pendente lite and permanent alimony; custody of children; appeals
29–30	Savings and repeals

3. Conditions for a Hindu Marriage (Section 5)

1. **Monogamy:** neither party has a spouse living at the time of marriage.
2. **Mental capacity:** neither party is incapable of giving valid consent due to unsoundness of mind, or suffering from a mental disorder making them unfit for marriage and procreation, or subject to recurrent attacks of insanity.
3. **Age:** the bridegroom has completed 21 years and the bride 18 years.

4. **Prohibited degrees:** the parties are not within the degrees of prohibited relationship, unless custom permits.
5. **Sapinda relationship:** the parties are not sapindas of each other, unless custom permits.

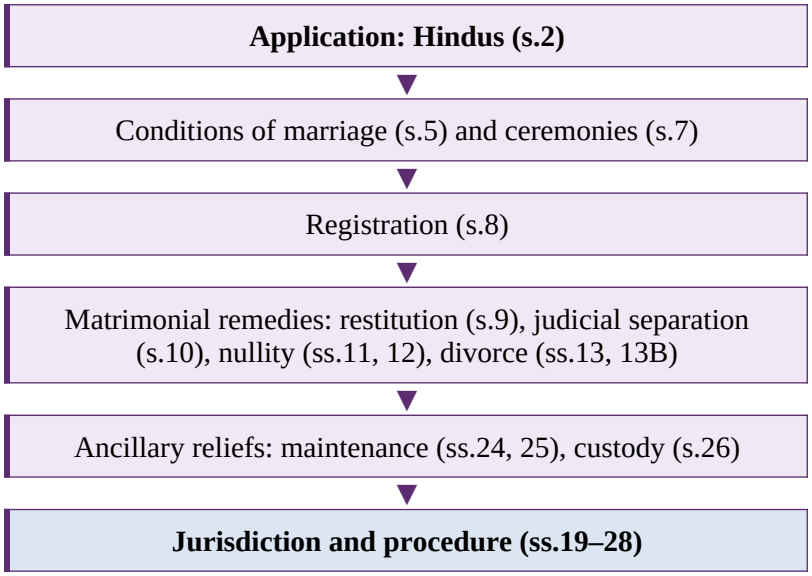
4. Major Changes Introduced by the Act

1. **Monogamy** made compulsory; bigamy punishable (s.17, read with ss.82–83 of the BNS, 2023 (old ss.494–495 IPC)).
2. **Inter-caste marriages** valid.
3. **Divorce** introduced (s.13), later mutual consent divorce (s.13B, 1976).
4. **Equality** of husband and wife in matrimonial remedies.
5. **Legitimacy** of children of void and voidable marriages (s.16).
6. **Maintenance** and alimony for both spouses (ss.24–25).

5. Important Amendments

1. **Marriage Laws (Amendment) Act, 1976:** introduced divorce by mutual consent (s.13B), made desertion and cruelty grounds for divorce, and widened s.16.
2. **Amendment of 2003:** extended the period of appeal to 90 days (s.28).
3. **Personal Laws (Amendment) Act, 2019:** omitted leprosy as a ground for divorce.

Flowchart: Overview of the Hindu Marriage Act



Examples

- A Hindu man who is already married marries another woman. The second marriage is void (s.11), and he can be punished for bigamy.
- A Hindu couple who have been living separately for over a year can file a joint petition for divorce by mutual consent (s.13B).

Case Laws

Case Law: Sarla Mudgal v Union of India

Year: 1995 **Court:** Supreme Court of India

Facts / Background: Several Hindu husbands converted to Islam in order to marry a second time without dissolving their first marriages, arguing that Muslim law permitted polygamy.

Legal Issue: Can a Hindu husband, married under Hindu law, solemnise a second marriage after converting to Islam, without dissolving his first marriage?

Court's Decision / What the Court Held: The Court held that a Hindu marriage solemnised under the Hindu Marriage Act can be dissolved only on grounds available under the Act. Conversion to Islam does not dissolve the first marriage. The second marriage is void and the husband is liable for bigamy under s.494 IPC (now s.82 BNS). The Court also urged the Government to consider a Uniform Civil Code.

Relevance to the Topic: The case shows the strict enforcement of monogamy under the Hindu Marriage Act.

Important Points

- The Hindu Marriage Act, 1955 came into force on 18 May 1955.
- It made monogamy compulsory and introduced divorce.
- Section 5 lays down the conditions of a valid marriage.
- Hindu marriage is now partly sacramental and partly contractual.
- Conversion does not dissolve a Hindu marriage (*Sarla Mudgal*, 1995).

Remember: The 1976 amendment introduced divorce by mutual consent (s.13B).

Topic 2.4: Valid, Void, Voidable Marriages

Introduction

Not every marriage ceremony results in a valid marriage. The Hindu Marriage Act classifies marriages into three categories: valid, void and voidable. A valid marriage complies with all conditions; a void marriage is a nullity from the beginning; a voidable marriage is valid until it is annulled by a court at the instance of one party. This classification has important consequences for the status of the parties and their children.

Definition

Valid marriage: a marriage between two Hindus that satisfies the conditions of s.5 and is solemnised with the customary ceremonies of either party (s.7).

Void marriage (s.11): a marriage that is null and void from the beginning and may be so declared by a decree of nullity on a petition by either party.

Voidable marriage (s.12): a marriage that is valid until annulled by a decree of nullity on specified grounds at the instance of the aggrieved party.

Detailed Explanation

1. Valid Marriage

Requirements:

1. Both parties are Hindus.
2. Conditions of s.5 are fulfilled.
3. Customary rites and ceremonies of either party are performed (s.7).

2. Void Marriage (Section 11)

A marriage is void if it contravenes any of the following conditions of s.5:

1. **Clause (i): bigamy** (either party has a spouse living).
2. **Clause (iv): prohibited degrees of relationship** (unless custom permits).
3. **Clause (v): sapinda relationship** (unless custom permits).

Features of a void marriage:

1. No legal status of husband and wife.
2. Either party can file a petition for a declaration of nullity (but a third party cannot do so under s.11; they may file a civil suit).
3. No decree is needed to make it void, but a decree declares it.
4. Children are legitimate under s.16.

3. Voidable Marriage (Section 12)

A marriage is voidable on any of the following grounds:

1. **Non-consummation due to impotence** of the respondent (s.12(1)(a)).
2. **Contravention of s.5(ii)** (unsoundness of mind or mental disorder) (s.12(1)(b)).
3. **Consent obtained by force or fraud** as to the nature of the ceremony or any material fact or circumstance concerning the respondent (s.12(1)(c)). The petition must be filed within one year after the force ceased or the fraud was discovered, and the petitioner must not have lived with the respondent as husband or wife with full consent after that (s.12(2)(a)).
4. **Pregnancy of the wife by some person other than the petitioner** at the time of marriage (s.12(1)(d)). The petitioner must have been ignorant of the fact, must file within one year of marriage (for marriages after the Act), and must not have had marital intercourse after discovering the fact (s.12(2)(b)).

Features of a voidable marriage:

1. Valid until annulled.
2. Only the aggrieved party can file a petition.
3. If not annulled, it remains valid for all purposes.
4. Children are legitimate (s.16(2)).

4. Marriage in Contravention of Age (s.5(iii))

1. Under the HMA, a marriage in breach of the age condition is neither void nor voidable; it is punishable under s.18.
2. Under the **Prohibition of Child Marriage Act, 2006**, a child marriage is **voidable** at the option of the party who was a child; the petition may be filed up to two years after attaining majority (s.3). Certain child marriages are **void** (e.g. where the child is enticed, taken away, sold or trafficked: s.12).

5. Legitimacy of Children (Section 16)

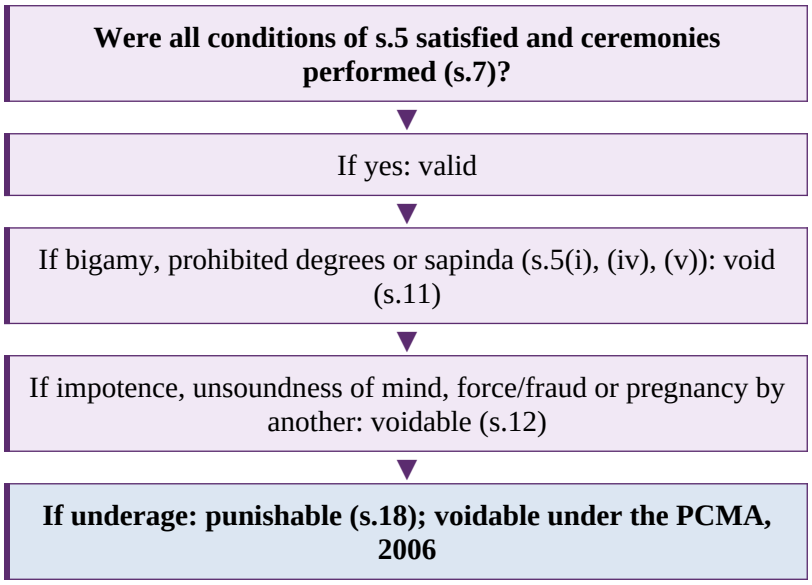
1. Children of void and voidable marriages are legitimate.
2. They can inherit the property of their parents (s.16(3)).
3. In *Revanasiddappa v Mallikarjun* (2023), the Supreme Court held that such children are entitled to a share in their parent's share of coparcenary property (determined by a notional partition immediately before the parent's death), but not in the property of other relatives.

6. Comparison

Point	Void marriage	Voidable marriage
Validity	Null from the beginning	Valid until annulled
Grounds	Bigamy, prohibited degrees, sapinda (s.11)	Impotence, unsoundness of mind, force or fraud, pregnancy by another (s.12)
Who can petition	Either party	Only the aggrieved party
Need for decree	Declaratory only	Decree necessary to annul

Point	Void marriage	Voidable marriage
Status if no decree	No marriage	Valid marriage
Children	Legitimate (s.16(1))	Legitimate (s.16(2))
Maintenance and alimony	Available under ss.24 and 25 (courts have so held)	Available

Flowchart: Classifying a Hindu marriage



Examples

- A Hindu man marries his sister's daughter, and there is no custom permitting it. The marriage is void, as they are within prohibited degrees.
- A woman's consent to marriage was obtained by concealing that the bridegroom had a serious mental illness. She can petition to annul the marriage within one year of discovering the fraud.

Case Laws

Case Law: Yamunabai Anantrao Adhav v Anantrao Shivram Adhav

Year: 1988 **Court:** Supreme Court of India

Facts / Background: A woman married a man who already had a living wife. She later claimed maintenance from him under s.125 CrPC, as his "wife".

Legal Issue: Is a woman whose marriage is void under s.11 HMA (because of bigamy) entitled to maintenance as a "wife" under s.125 CrPC?

Court's Decision / What the Court Held: The Court held that a marriage in contravention of s.5(i) is void ab initio, and the woman is not a legally wedded wife; so she cannot claim maintenance as a "wife" under s.125 CrPC. No decree of nullity is necessary. (Later, in *Badshah v Urmila Badshah Godse*, 2014, the Court held that where the husband deceives

the woman by concealing his first marriage, she can claim maintenance; see Topic 7.4.)

Relevance to the Topic: The case explains the effect of a void marriage on the status of the parties.

Case Law: Revanasiddappa v Mallikarjun

Year: 2023 **Court:** Supreme Court of India (three-judge bench)

Facts / Background: The children of a void marriage claimed a share in the coparcenary property of their father's family, relying on s.16 HMA, which declares children of void and voidable marriages legitimate.

Legal Issue: Are children of void or voidable marriages entitled to a share in coparcenary property?

Court's Decision / What the Court Held: The Court held that children of void or voidable marriages are legitimate under s.16 and are entitled to the share of their deceased parent in the coparcenary property, which is ascertained by a notional partition immediately before the parent's death. They are not entitled to rights in the property of any other person in the family. They do not become coparceners by birth in the joint family.

Relevance to the Topic: The leading case on the property rights of children of void and voidable marriages.

Important Points

- Valid marriage: s.5 conditions + ceremonies (s.7).
- Void marriage (s.11): bigamy, prohibited degrees, sapinda relationship.
- Voidable marriage (s.12): impotence, unsoundness of mind, force or fraud, pregnancy by another.
- Underage marriage: not void under HMA (punishable, s.18); voidable under PCMA, 2006.
- Children of void and voidable marriages are legitimate (s.16; *Revanasiddappa*, 2023).
- A woman in a void marriage is not a "wife" (*Yamunabai*, 1988), subject to *Badshah* (2014).

Remember: Only the aggrieved party can petition to annul a voidable marriage.

Topic 2.5: Ceremonies and Registration

Introduction

A Hindu marriage is not complete merely by agreement; it must be solemnised with proper ceremonies. Section 7 of the Hindu Marriage Act recognises the customary rites of either party. Section 8 provides for registration of marriages to make proof easier, but registration does not itself create a marriage. The Supreme Court has also directed compulsory registration of marriages for all communities.

Definition

> **Section 7(1) HMA:** "A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto."

> **Section 7(2):** "Where such rites and ceremonies include the Saptapadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken."

> **Section 8 (in part):** "For the purpose of facilitating the proof of Hindu marriages, the State Government may make rules providing that the parties to any such marriage may have the particulars relating to the same entered in such manner and subject to such conditions as may be prescribed in a Hindu Marriage Register kept for the purpose."

Detailed Explanation

1. Ceremonies (Section 7)

1. **Customary rites of either party:** the bride's or the bridegroom's custom.
2. **Saptapadi:** where the ceremonies include saptapadi, the marriage is complete when the seventh step is taken.
3. **Other customary forms:** e.g. exchange of garlands, tying of mangalsutra or tali, Anand Karaj among Sikhs, *suyamariyathai* (self-respect) marriages in Tamil Nadu (s.7A, inserted by a Tamil Nadu amendment, 1967).
4. **Proof of ceremonies:** in a bigamy prosecution, the second marriage must be proved to have been solemnised with proper ceremonies (*Bhaurao Shankar Lokhande v State of Maharashtra*, 1965).

2. Registration (Section 8)

1. State Governments may make rules for registration.
2. Registration is for proof only; it does not make a marriage valid if the ceremonies were not performed.
3. Failure to register does not affect the validity of a marriage (s.8(5)).
4. A State Government may make registration compulsory, with a fine for contravention.

5. A certificate of registration is evidence of the marriage.

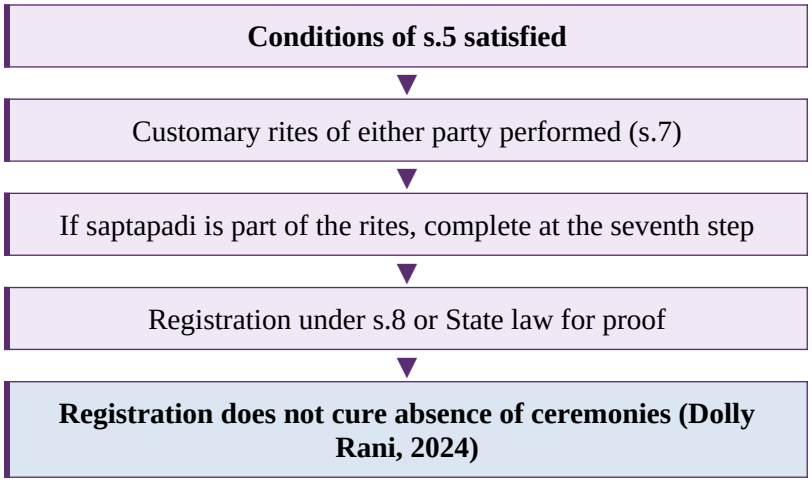
3. Compulsory Registration

1. In *Seema v Ashwani Kumar* (2006), the Supreme Court directed that marriages of all persons who are citizens of India, belonging to all religions, should be made compulsorily registrable in their respective States where the marriage is solemnised.
2. Many States have passed laws for compulsory registration (e.g. Andhra Pradesh Compulsory Registration of Marriages Act, 2002).

4. Importance of Registration

1. Prevents child marriage and bigamy.
2. Protects women's rights to maintenance, inheritance and residence.
3. Provides proof for visas, insurance and other purposes.

Flowchart: Solemnisation and registration of a Hindu marriage



Examples

- A Hindu couple performs saptapadi before the sacred fire. The marriage is complete at the seventh step, even if not registered.
- A couple registers a marriage before a Registrar without performing any ceremony, intending to perform it later. Under *Dolly Rani* (2024), there is no valid Hindu marriage.

Case Laws

Case Law: Dolly Rani v Manish Kumar Chanchal

Year: 2024 **Court:** Supreme Court of India

Facts / Background: The parties, both trained pilots, obtained a marriage registration certificate under the Hindu Marriage Act without performing any marriage ceremony, intending to hold the ceremony later. Disputes arose, and they sought a declaration about their status.

Legal Issue: Is a Hindu marriage valid if it is registered under s.8 without performing the customary rites and ceremonies required by s.7?

Court's Decision / What the Court Held: The Court held that a Hindu marriage is a sacrament and must be solemnised with appropriate rites and ceremonies under s.7. Registration under s.8 only facilitates proof of a valid marriage; it does not confer validity on a marriage that was not solemnised in accordance with s.7. Since no ceremony had been performed, the parties were not married under the HMA, and the registration certificate was declared void.

Relevance to the Topic: The case explains the relationship between ceremonies (s.7) and registration (s.8).

Case Law: Seema v Ashwani Kumar

Year: 2006 **Court:** Supreme Court of India

Facts / Background: In a matrimonial dispute, the Court noticed the problems caused by non-registration of marriages, such as difficulty in proving marriage, child marriages, and denial of rights to women.

Legal Issue: Should registration of marriages be made compulsory?

Court's Decision / What the Court Held: The Court directed the States and the Central Government to make the registration of marriages of all persons who are citizens of India, belonging to various religions, compulsory in the State where the marriage is solemnised, and to frame rules for this purpose.

Relevance to the Topic: The case is the basis of compulsory registration of marriages in India.

Important Points

- Section 7: customary rites of either party; saptapadi completes the marriage at the seventh step.
- Section 8: registration for proof; non-registration does not invalidate a marriage.
- Registration without ceremonies does not create a valid Hindu marriage (*Dolly Rani*, 2024).
- Compulsory registration for all religions directed in *Seema v Ashwani Kumar* (2006).

Remember: Ceremonies make the marriage; registration only proves it.

Topic 2.6: Matrimonial remedies – Restitution of conjugal rights, Judicial Separation, grounds for dissolution of marriage, divorce by mutual consent, maintenance pendente lite and permanent alimony and maintenance

Introduction

When a marriage faces difficulties, the Hindu Marriage Act provides several remedies. Some aim to save the marriage (restitution of conjugal rights), some allow the parties to live apart without ending the marriage (judicial separation), and some end the marriage (divorce, including divorce by mutual consent). The Act also provides financial support during and after proceedings (maintenance pendente lite and permanent alimony). This topic explains all these remedies.

Definition

> **Matrimonial remedies** are the reliefs that a court can grant to spouses under the Hindu Marriage Act in connection with their marriage: restitution of conjugal rights (s.9), judicial separation (s.10), nullity (ss.11–12), divorce (ss.13, 13B), maintenance pendente lite (s.24) and permanent alimony and maintenance (s.25).

Detailed Explanation

A. Restitution of Conjugal Rights (Section 9)

1. **Meaning:** when either spouse has, without reasonable excuse, withdrawn from the society of the other, the aggrieved spouse may apply to the district court for restitution of conjugal rights.
2. **Requirements:** (i) withdrawal from society; (ii) without reasonable excuse; (iii) the court is satisfied of the truth of the statements; (iv) no legal ground why the petition should be refused.
3. **Burden:** the burden of proving reasonable excuse lies on the person who has withdrawn (Explanation to s.9).
4. **Effect:** if the decree is not complied with for one year, either party may seek divorce (s.13(1A)(ii)).
5. **Constitutionality:** *T. Sareetha v T. Venkata Subbaiah* (AP HC, 1983) struck down s.9 as violating Art 21; but the Supreme Court in *Saroj Rani v Sudarshan Kumar Chadha* (1984) upheld it, holding that it serves the social purpose of preventing breakdown of marriage. A challenge to its validity on privacy grounds is pending before the Supreme Court.

B. Judicial Separation (Section 10)

1. Either spouse may petition for judicial separation on any ground on which divorce can be claimed under s.13(1) (and, for the wife, s.13(2)).
2. **Effect:** it is no longer obligatory for the petitioner to cohabit with the respondent. The marriage subsists; the parties cannot remarry.
3. The court may rescind the decree if satisfied it is just and reasonable.

4. If there is no resumption of cohabitation for one year after the decree, either party may seek divorce (s.13(1A)(i)).

C. Grounds for Dissolution of Marriage: Divorce (Section 13)

Grounds Available to Either Spouse (s.13(1))

Clause	Ground
(i)	Voluntary sexual intercourse with any person other than the spouse after marriage (adultery)
(ia)	Cruelty
(ib)	Desertion for a continuous period of not less than two years immediately preceding the petition
(ii)	Ceased to be a Hindu by conversion to another religion
(iii)	Incurably of unsound mind, or suffering continuously or intermittently from a mental disorder of such a kind and extent that the petitioner cannot reasonably be expected to live with the respondent
(iv)	(Leprosy: omitted by the Personal Laws (Amendment) Act, 2019)
(v)	Venereal disease in a communicable form
(vi)	Renounced the world by entering a religious order
(vii)	Not heard of as being alive for seven years or more by those who would naturally have heard

Grounds Based on Failure of Earlier Decrees (s.13(1A))

1. No resumption of cohabitation for one year or more after a decree of judicial separation.
2. No restitution of conjugal rights for one year or more after a decree of restitution.

Special Grounds for the Wife (s.13(2))

1. The husband had another wife living at the time of the petitioner's marriage (pre-Act marriages).
2. The husband has been guilty of rape, sodomy or bestiality.
3. A decree or order for maintenance has been passed against the husband (under s.18 HAMA or s.125 CrPC / s.144 BNSS), and cohabitation has not been resumed for one year or more.
4. The marriage was solemnised before she attained 15 years, and she repudiated it after attaining 15 but before 18 years (option of puberty).

Important Concepts

1. **Cruelty:** physical or mental conduct of such a nature that it would be unsafe or harmful for the petitioner to live with the respondent (*N.G. Dastane v S. Dastane*, 1975). In *Samar Ghosh v Jaya Ghosh* (2007), the Court gave illustrations of mental cruelty, such as continuous ill-treatment, refusal to have sexual relations without reason, unilateral decision not to have a child, and prolonged separation showing that the marriage is beyond repair.

2. **Desertion:** permanent abandonment without reasonable cause and without consent, with intention to end cohabitation (*animus deserendi*) (*Bipinchandra Jaisinghbhai Shah v Prabhavati*, 1956). Constructive desertion occurs when one spouse's conduct forces the other to leave.
3. **Irretrievable breakdown:** not a statutory ground under the HMA, but the Supreme Court can dissolve a marriage on this basis under Art 142 (*Shilpa Sailesh v Varun Sreenivasan*, 2023).

D. Divorce by Mutual Consent (Section 13B)

1. **Requirements:** (i) the parties have been living separately for one year or more; (ii) they have not been able to live together; (iii) they have mutually agreed that the marriage should be dissolved.
2. **Procedure:** a joint petition (first motion); after six months and within 18 months, a second motion; the court, after hearing and inquiry, passes a decree.
3. **Cooling-off period:** the six-month period is directory, not mandatory; the court may waive it in appropriate cases (*Amardeep Singh v Harveen Kaur*, 2017).
4. **Withdrawal of consent:** either party may withdraw consent before the decree (*Sureshta Devi v Om Prakash*, 1991).
5. **Supreme Court's power:** under Art 142, the Supreme Court may dispense with the waiting period (*Shilpa Sailesh*, 2023).

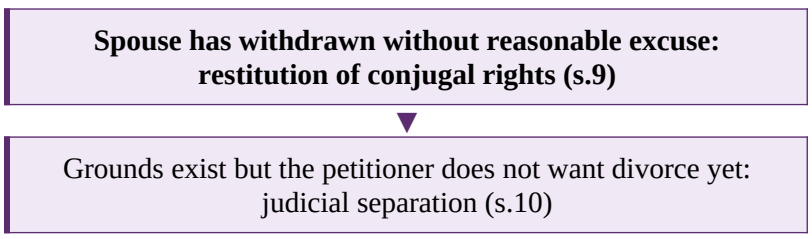
E. Maintenance Pendente Lite and Expenses of Proceedings (Section 24)

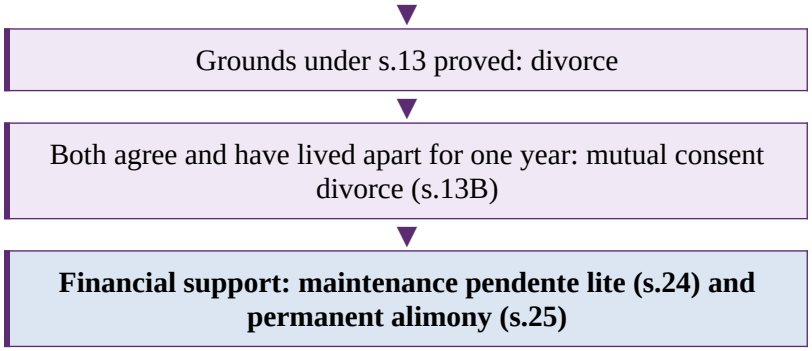
1. During any proceeding under the Act, if either spouse (husband or wife) has no independent income sufficient for support and the necessary expenses of the proceeding, the court may order the other spouse to pay monthly maintenance and litigation expenses.
2. The application should, as far as possible, be disposed of within 60 days of service of notice (proviso added in 2001).

F. Permanent Alimony and Maintenance (Section 25)

1. At the time of passing any decree, or at any time afterwards, the court may order a spouse to pay the other a gross sum or monthly or periodical payments for maintenance and support, considering income, property, conduct and other circumstances.
2. The order may be varied if circumstances change, or rescinded if the recipient remarries or (for the wife) is unchaste, or (for the husband) has intercourse with any woman outside marriage.
3. In *Rajnesh v Neha* (2020), the Supreme Court laid down guidelines for maintenance, including affidavits of assets and liabilities, criteria for determining the amount, and payment from the date of application.

Flowchart: Choosing a matrimonial remedy under the HMA





Examples

- A husband leaves the matrimonial home without reason and refuses to return. The wife can seek restitution of conjugal rights; if he does not comply for a year, either can seek divorce.
- A wife is repeatedly humiliated and abused by her husband. She can seek divorce on the ground of cruelty.

Case Laws

Case Law: Saroj Rani v Sudarshan Kumar Chadha

Year: 1984 **Court:** Supreme Court of India

Facts / Background: The wife obtained a decree of restitution of conjugal rights under s.9. The husband did not comply. After one year, he petitioned for divorce under s.13(1A)(ii). The wife argued that he could not take advantage of his own wrong. The constitutional validity of s.9 was also questioned, relying on *T. Sareetha* (1983).

Legal Issue: Is s.9 HMA constitutional, and can a husband who did not comply with a decree of restitution seek divorce?

Court's Decision / What the Court Held: The Court upheld the constitutional validity of s.9, holding that it serves a social purpose as an aid to the prevention of break-up of marriage and does not violate Arts 14 and 21. On the facts, the Court granted divorce to the husband, while ordering him to pay maintenance and litigation costs to the wife.

Relevance to the Topic: The leading case on the validity of restitution of conjugal rights.

Case Law: Samar Ghosh v Jaya Ghosh

Year: 2007 **Court:** Supreme Court of India

Facts / Background: The husband sought divorce on the ground of mental cruelty, alleging that the wife refused to cohabit, had no intention of living with him, and had been separated from him for a long time. The High Court refused divorce.

Legal Issue: What conduct amounts to "mental cruelty" under s.13(1)(ia) HMA?

Court's Decision / What the Court Held: The Court granted divorce. It held that there can be no fixed formula for mental cruelty, but it gave illustrative examples: acute mental pain,

agony and suffering; sustained abusive and humiliating treatment; sustained reprehensible conduct; unilateral refusal of sexual intercourse without good reason; unilateral decision not to have a child; long continuous separation showing that the matrimonial bond is beyond repair. The conduct must be more serious than the ordinary wear and tear of married life.

Relevance to the Topic: The leading case on mental cruelty as a ground for divorce.

Case Law: Amardeep Singh v Harveen Kaur

Year: 2017 **Court:** Supreme Court of India

Facts / Background: The parties had been living separately for more than eight years and had settled all their disputes. They filed a petition for divorce by mutual consent and asked the Court to waive the six-month waiting period under s.13B(2).

Legal Issue: Is the six-month cooling-off period under s.13B(2) mandatory, or can it be waived?

Court's Decision / What the Court Held: The Court held that the six-month period is directory, not mandatory. The court can waive it if (i) the statutory period of one year's separation (s.13B(1)) and six months (s.13B(2)) has already been completed before the first motion, including separation before filing; (ii) all efforts at mediation and reconciliation have failed; (iii) the parties have genuinely settled their differences, including alimony and custody; and (iv) the waiting period would only prolong their agony.

Relevance to the Topic: The case shows the flexible approach to divorce by mutual consent.

Important Points

- Restitution of conjugal rights (s.9) is constitutional (*Saroj Rani*, 1984).
- Judicial separation (s.10) suspends the duty to cohabit; the marriage continues.
- Divorce grounds: adultery, cruelty, desertion (2 years), conversion, mental disorder, venereal disease, renunciation, presumed death (7 years); leprosy omitted in 2019.
- Wife's special grounds: s.13(2).
- Mutual consent divorce (s.13B): one year's separation; six-month period can be waived (*Amardeep Singh*, 2017).
- Maintenance pendente lite (s.24) and permanent alimony (s.25) are available to both spouses.

Remember: Irretrievable breakdown is not a statutory ground, but the Supreme Court can grant divorce on it under Art 142 (*Shilpa Sailesh*, 2023).

Topic 2.7: Jurisdiction of the Court, Time limit for petition and disposal

Introduction

A matrimonial petition must be filed in the proper court and at the proper time. The Hindu Marriage Act specifies which court has jurisdiction, imposes a time bar on divorce petitions within one year of marriage, and requires speedy disposal of matrimonial cases. These procedural provisions are important for advising clients.

Definition

> **Jurisdiction** means the authority of a court to hear and decide a case. Under the HMA, petitions are presented to the **district court** (which includes a Family Court where one is established) within whose local limits certain connecting factors exist (s.19).

Detailed Explanation

1. Court to Which Petition Shall Be Presented (Section 19)

A petition may be presented to the district court within whose local limits:

1. the marriage was solemnised; or
2. the respondent, at the time of the presentation of the petition, resides; or
3. the parties to the marriage last resided together; or

3a. in case the wife is the petitioner, where she is residing on the date of presentation of the petition; or

4. the petitioner is residing at the time of presentation of the petition, in a case where the respondent is residing outside India or has not been heard of as being alive for seven years.

Note: Under s.8 of the Family Courts Act, 1984, where a Family Court is established, it has exclusive jurisdiction over such matters in that area.

2. Time Bar on Divorce Petitions within One Year (Section 14)

1. No petition for divorce can be presented within one year of the date of marriage.
2. **Exception:** the court may allow it on the ground of exceptional hardship to the petitioner or exceptional depravity on the part of the respondent.
3. In deciding, the court must consider the interests of the children and whether there is a reasonable chance of reconciliation.
4. This bar does not apply to petitions for nullity or judicial separation.
5. For mutual consent divorce (s.13B), one year's separation is required, which effectively means the petition cannot be filed in the first year of marriage.

3. Time Limits for Specific Petitions

Petition	Time limit
Voidable marriage for force or fraud (s.12(1)(c))	Within one year after the force ceased or the fraud was discovered

Petition	Time limit
Voidable marriage for pre-marriage pregnancy (s.12(1)(d))	Within one year from the date of marriage (for marriages after the Act)
Divorce (s.13)	Not within one year of marriage (s.14), unless exceptional hardship or depravity
Divorce by mutual consent second motion (s.13B(2))	Not earlier than six months and not later than eighteen months after the first motion (six months can be waived)
Appeal (s.28)	Within 90 days from the date of the decree or order (amended in 2003)

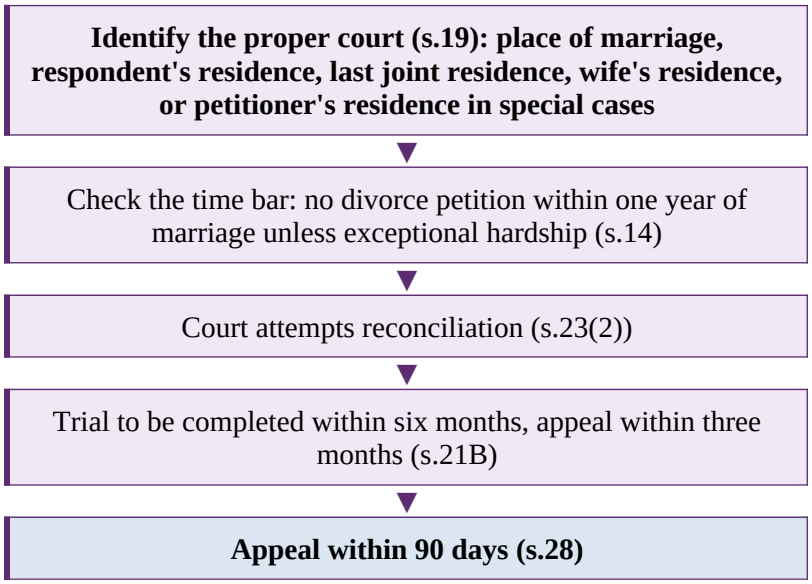
4. Speedy Disposal (Section 21B)

1. The trial of a petition shall, as far as practicable, be conducted from day to day until its conclusion.
2. Every petition shall be tried as expeditiously as possible, and an endeavour shall be made to conclude the trial within six months from the date of service of notice on the respondent.
3. Every appeal shall be heard as expeditiously as possible, and an endeavour shall be made to conclude it within three months from the date of service of notice of appeal.

5. Other Procedural Provisions

1. **Section 20:** contents and verification of petitions.
2. **Section 21:** proceedings are regulated by the Code of Civil Procedure, 1908.
3. **Section 21A:** power to transfer petitions in certain cases.
4. **Section 22:** proceedings may be held in camera and may not be printed or published without permission.
5. **Section 23(2):** duty of the court to make every endeavour to bring about reconciliation.
6. **Section 26:** custody, maintenance and education of minor children.
7. **Section 28:** appeals.

Flowchart: Filing a matrimonial petition under the HMA



Examples

- A wife, married in Hyderabad, is now living with her parents in Vijayawada. She can file a divorce petition in the court at Vijayawada (s.19(iiia)).
- A husband wants to file for divorce three months after marriage on the ground of cruelty. He must show exceptional hardship to get leave under s.14.

Case Laws

Case Law: Shilpa Sailesh v Varun Sreenivasan

Year: 2023 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The parties sought divorce by mutual consent and asked the Supreme Court to waive the six-month waiting period under s.13B(2). The Court considered the wider question of its power under Article 142 to grant divorce in matrimonial cases.

Legal Issue: Can the Supreme Court, under Article 142, dispense with the procedural requirements and time limits of s.13B, and can it grant divorce on the ground of irretrievable breakdown of marriage?

Court's Decision / What the Court Held: The Constitution Bench held that the Supreme Court, in exercise of its power under Article 142(1) to do "complete justice", can dispense with the procedure and the waiting period under s.13B, and can dissolve a marriage on the ground of irretrievable breakdown, even if one party opposes, after considering relevant factors (such as the period of cohabitation and separation, nature of allegations, attempts at reconciliation, and arrangements for alimony and children). This power is to be exercised with great care and caution.

Relevance to the Topic: The case explains the flexibility of time limits in matrimonial proceedings at the level of the Supreme Court.

Important Points

- Section 19: jurisdiction of the district court (place of marriage, respondent's residence, last joint residence, wife's residence, petitioner's residence in special cases).
- Family Courts have exclusive jurisdiction where established.
- Section 14: no divorce petition within one year of marriage, except for exceptional hardship or depravity.
- Section 21B: trial within six months; appeal within three months (as far as possible).
- Section 28: appeal within 90 days.
- The Supreme Court can waive the s.13B waiting period under Art 142 (*Shilpa Sailesh*, 2023).

Remember: Section 19(iiia) allows the wife to file in the court where she is residing.

Topic 2.8: Prevention of taking advantage of one's own wrong or disability

Introduction

A basic principle of justice is that no one should be allowed to benefit from his own wrong (*nullus commodum capere potest de injuria sua propria*). Section 23 of the Hindu Marriage Act applies this principle to matrimonial cases. Before granting any relief, the court must be satisfied that the petitioner is not taking advantage of his own wrong or disability, and that there is no condonation, connivance, collusion, or unnecessary delay.

Definition

Section 23(1) HMA (in part): "In any proceeding under this Act, whether defended or not, if the court is satisfied that (a) any of the grounds for granting relief exists and the petitioner (except in cases where the relief is sought by him on the ground specified in sub-clause (a), sub-clause (b) or sub-clause (c) of clause (ii) of section 5) is not in any way taking advantage of his or her own wrong or disability for the purpose of such relief, and (b) where the ground of the petition is [adultery], the petitioner has not in any manner been accessory to or connived at or condoned the act or acts complained of, or where the ground of the petition is cruelty the petitioner has not in any manner condoned the cruelty, and (bb) when a divorce is sought on the ground of mutual consent, such consent has not been obtained by force, fraud or undue influence, and (c) the petition is not presented or prosecuted in collusion with the respondent, and (d) there has not been any unnecessary or improper delay in instituting the proceeding, and (e) there is no other legal ground why relief should not be granted, then, and in such a case, but not otherwise, the court shall decree such relief accordingly."

Detailed Explanation

1. Bars to Matrimonial Relief under Section 23(1)

Clause	Bar	Explanation
(a)	Taking advantage of one's own wrong or disability	The petitioner cannot rely on his own misconduct to get relief (e.g. a husband who deserts his wife cannot claim divorce on her refusal to live with him)
(b)	Accessory, connivance or condonation (adultery); condonation (cruelty)	If the petitioner encouraged or forgave the offence, he cannot rely on it
(bb)	Consent in mutual consent divorce obtained by force, fraud or undue influence	Consent must be free
(c)	Collusion	The parties must not agree to deceive the court (e.g. fabricating grounds)
(d)	Unnecessary or improper delay	Unexplained delay may suggest condonation
(e)	Any other legal ground	E.g. res judicata, lack of jurisdiction

2. Exception: Grounds under Section 5(ii)

The bar of "disability" does not apply where relief is sought on the ground of unsoundness of mind or mental disorder (s.5(ii)), because a person cannot be blamed for his illness.

3. Duty to Attempt Reconciliation (Section 23(2))

Before granting any relief, it is the duty of the court, in the first instance, in every case where it is possible consistently with the nature and circumstances of the case, to make every endeavour to bring about a reconciliation (except for certain grounds such as conversion, mental disorder, venereal disease, renunciation and presumed death).

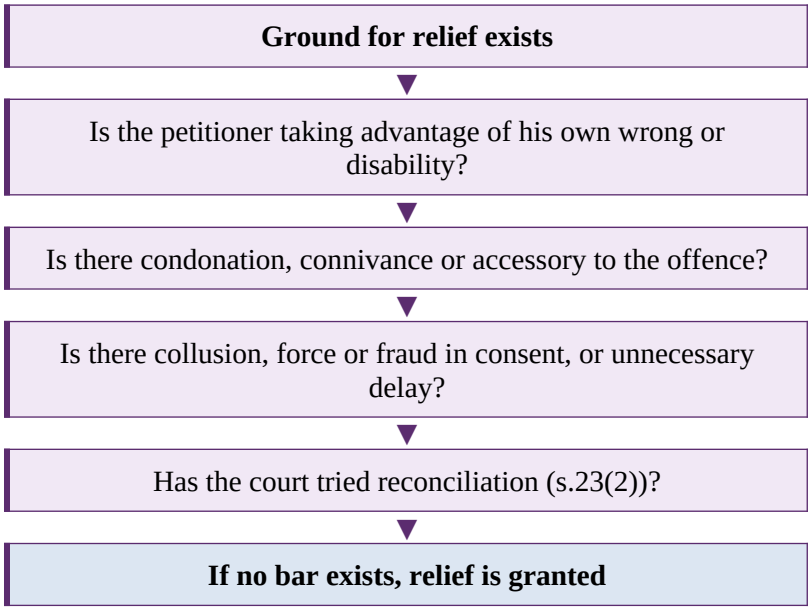
4. Condonation

1. **Meaning:** forgiveness of a matrimonial offence, with full knowledge, followed by reinstatement of the offending spouse.
2. **Effect:** a condoned offence cannot be relied on, unless it is revived by subsequent misconduct.
3. Resumption of cohabitation after knowledge of the offence may amount to condonation (*N.G. Dastane v S. Dastane*, 1975, where continued cohabitation was held to show condonation of earlier cruelty).

5. Application in Divorce under Section 13(1A)

1. The question has arisen whether a spouse who has failed to comply with a decree of restitution or judicial separation can seek divorce under s.13(1A).
2. In *Dharmendra Kumar v Usha Kumar* (1977), the Supreme Court held that mere non-compliance with a restitution decree is not a "wrong" that bars relief under s.23(1)(a).
3. But in *Hirachand Srinivas Managaonkar v Sunanda* (2001), the Court held that a husband who, after a decree of judicial separation, continued to live in adultery and did not pay maintenance to his wife, was taking advantage of his own wrong and could not get divorce under s.13(1A).

Flowchart: Section 23 check before granting relief



Examples

- A husband treats his wife cruelly, she leaves, and he then seeks divorce on the ground of her desertion. He is taking advantage of his own wrong, and relief will be refused.
- A wife forgives her husband's adultery and resumes cohabitation with full knowledge. She cannot later rely on that adultery for divorce, unless the condonation is revived.

Case Laws

Case Law: Hirachand Srinivas Managaonkar v Sunanda

Year: 2001 **Court:** Supreme Court of India

Facts / Background: The wife obtained a decree of judicial separation on the ground of the husband's adultery, and he was ordered to pay her maintenance. He did not pay maintenance and continued to live with another woman. After one year, he petitioned for divorce under s.13(1A)(i), on the ground that there had been no resumption of cohabitation.

Legal Issue: Can a husband who has committed a matrimonial wrong (continued adultery and non-payment of maintenance) after a decree of judicial separation get divorce under s.13(1A)?

Court's Decision / What the Court Held: The Court held that the husband was taking advantage of his own wrong within the meaning of s.23(1)(a). His conduct after the decree (continuing adultery and refusing maintenance) was a "wrong" that disentitled him to relief. The right to seek divorce under s.13(1A) is subject to s.23. Divorce was refused.

Relevance to the Topic: The case applies the principle that no one can take advantage of his own wrong to matrimonial relief.

Case Law: Dharmendra Kumar v Usha Kumar

Year: 1977 **Court:** Supreme Court of India

Facts / Background: The wife obtained a decree of restitution of conjugal rights. Thereafter, the husband did not resume cohabitation for over a year. The wife then sought divorce under s.13(1A)(ii). The husband argued that the wife herself had refused to receive his letters and that she was taking advantage of her own wrong.

Legal Issue: Does a spouse's mere failure to resume cohabitation after a decree of restitution amount to a "wrong" barring divorce under s.23(1)(a)?

Court's Decision / What the Court Held: The Court held that the "wrong" in s.23(1)(a) must be something more than mere disinclination to agree to an offer of reunion; it must be misconduct serious enough to justify denial of the relief. Mere non-compliance with the decree, or refusal to accept letters, was not such a wrong. The wife was granted divorce.

Relevance to the Topic: The case limits the scope of the "own wrong" bar to serious misconduct.

Important Points

- Section 23(1)(a): no relief if the petitioner takes advantage of his own wrong or disability (except grounds under s.5(ii)).
- Other bars: connivance, condonation, collusion, consent by force or fraud (s.13B), unnecessary delay.
- Section 23(2): the court must attempt reconciliation.
- Mere non-compliance with a decree is not a "wrong" (*Dharmendra Kumar*, 1977).
- Serious misconduct after a decree bars relief (*Hirachand Srinivas*, 2001).

Remember: "No one can take advantage of his own wrong" is the foundation of s.23.

UNIT 3
Hindu Adoptions

Topics in this Unit

3.1 The Hindu Adoptions and Maintenance Act, 1956 Adoption, requisites of a valid adoption, Capacity of a Hindu Male and Female to take in adoption, persons capable of giving in adoption, persons who may be adopted, other conditions for a valid adoption

3.2 Effects of valid adoption, valid adoption not to be cancelled

3.3 Maintenance : Wife's right to claim maintenance with separate residence, right of Widowed Daughter - in – Law, Children, Aged Parents and Dependents to claim maintenance

Topic 3.1: The Hindu Adoptions and Maintenance Act, 1956 Adoption, requisites of a valid adoption, Capacity of a Hindu Male and Female to take in adoption, persons capable of giving in adoption, persons who may be adopted, other conditions for a valid adoption

Introduction

Adoption is the legal process by which a child of one set of parents becomes the child of another, with all the rights and duties of a natural child. In ancient Hindu law, adoption had a religious purpose: to secure a son for performing funeral rites and continuing the family line. The **Hindu Adoptions and Maintenance Act, 1956 (HAMA)** made adoption secular: it allows adoption of daughters, gives women the right to adopt, and lays down clear conditions. Adoption by non-Hindus (and also by Hindus, at their option) is governed by the Juvenile Justice (Care and Protection of Children) Act, 2015.

Definition

> **Adoption** is the legal transfer of a child from his natural (birth) family to the adoptive family, so that the child is deemed for all purposes to be the child of the adoptive parents (s.12 HAMA).

> **Section 5(1) HAMA:** "No adoption shall be made after the commencement of this Act by or to a Hindu except in accordance with the provisions contained in this Chapter, and any adoption made in contravention of the said provisions shall be void."

Detailed Explanation

1. Requisites of a Valid Adoption (Section 6)

No adoption shall be valid unless:

1. the person adopting has the **capacity** and the **right** to take in adoption;
2. the person giving in adoption has the **capacity** to do so;
3. the person adopted is **capable of being taken in adoption**; and
4. the adoption is made in compliance with the **other conditions** in Chapter II (s.11).

2. Capacity of a Hindu Male to Take in Adoption (Section 7)

1. Any male Hindu who is of sound mind and is not a minor has the capacity to take a son or daughter in adoption.
2. If he has a wife living, he cannot adopt except with her consent, unless she has completely and finally renounced the world, ceased to be a Hindu, or been declared by a competent court to be of unsound mind.
3. If he has more than one wife living, the consent of all wives is necessary (subject to the same exceptions).

3. Capacity of a Hindu Female to Take in Adoption (Section 8, as amended in 2010)

1. Any female Hindu who is of sound mind and is not a minor has the capacity to take a son or daughter in adoption.
2. If she has a husband living, she cannot adopt without his consent, unless he has completely and finally renounced the world, ceased to be a Hindu, or been declared by a competent court to be of unsound mind.
3. (Before the Personal Laws (Amendment) Act, 2010, a married woman could not adopt during the lifetime of her husband, except in limited cases. The 2010 amendment gave married women equal capacity, with the husband's consent.)

4. Persons Capable of Giving in Adoption (Section 9)

1. Only the **father or the mother** (or the guardian, in certain cases) can give a child in adoption.
2. The father or the mother, if alive, shall have equal right to give a son or daughter in adoption, but such right shall not be exercised by either of them save with the consent of the other, unless the other has renounced the world, ceased to be a Hindu, or been declared of unsound mind (as amended in 2010).
3. Where both father and mother are dead, have renounced the world, have abandoned the child, have been declared of unsound mind, or where the parentage is not known, the **guardian** may give the child in adoption with the **previous permission of the court**, including to the guardian himself.
4. The court must be satisfied that the adoption is for the welfare of the child and that no payment or reward has been given or agreed.

5. Persons Who May Be Adopted (Section 10)

1. The child must be a **Hindu**.
2. He or she must **not already have been adopted**.
3. He or she must **not be married**, unless there is a custom or usage permitting the adoption of married persons.
4. He or she must **not have completed 15 years**, unless there is a custom or usage permitting adoption of older persons.

6. Other Conditions for a Valid Adoption (Section 11)

1. **Adoption of a son:** the adoptive father or mother must not have a Hindu son, son's son or son's son's son (legitimate or adopted) living at the time.
2. **Adoption of a daughter:** the adoptive father or mother must not have a Hindu daughter or son's daughter living at the time.
3. **Age difference (opposite sex):** if a male adopts a female, he must be at least 21 years older than her; if a female adopts a male, she must be at least 21 years older than him.
4. **Same child not simultaneously adopted** by two or more persons.
5. **Actual giving and taking:** the child must be actually given and taken in adoption by the parents or guardian, with intent to transfer the child from the family of birth to the adoptive family. The **datta homam** (fire ceremony) is not essential.

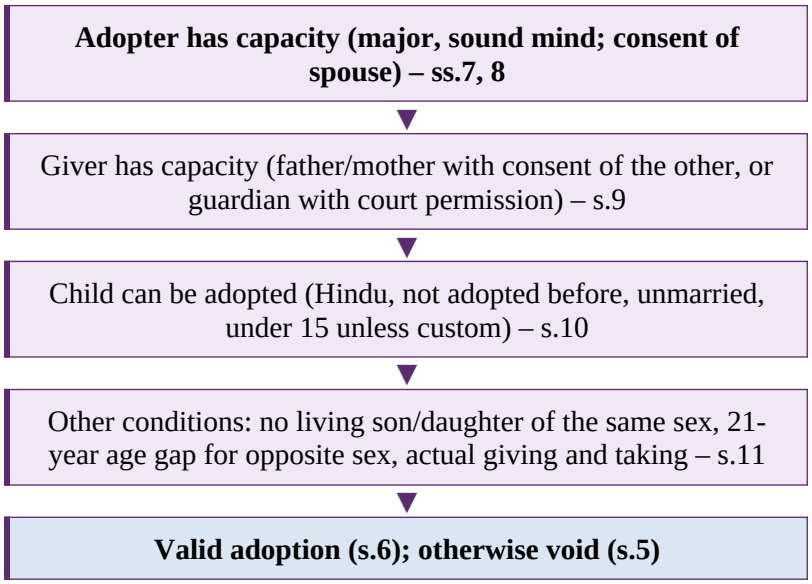
7. Registration and Presumption (Section 16)

Whenever a document registered under any law is produced before a court, purporting to record an adoption and signed by the person giving and the person taking the child, the court shall presume that the adoption has been made in compliance with the Act, unless the contrary is proved.

8. Prohibition of Payments (Section 17)

No person shall receive or agree to receive any payment or reward in consideration of the adoption; contravention is punishable with imprisonment up to six months, fine, or both.

Flowchart: Requisites of a valid adoption under HAMA



Examples

- A married Hindu man wants to adopt a daughter. He has a living wife and no daughter. He can adopt with his wife's consent, provided the child is a Hindu, unmarried and under 15, and is actually given in adoption by her parents or guardian.
- A single Hindu woman aged 30 wants to adopt a boy aged 12. She cannot do so under HAMA, because she is not at least 21 years older than him.

Case Laws

Case Law: Lakshmi Kant Pandey v Union of India

Year: 1984 **Court:** Supreme Court of India

Facts / Background: A lawyer wrote to the Supreme Court about malpractices by social organisations and private agencies in giving Indian children in adoption to foreign parents, including trafficking. The letter was treated as a writ petition.

Legal Issue: What safeguards should govern inter-country adoption of Indian children?

Court's Decision / What the Court Held: The Court laid down detailed guidelines for inter-country adoption to protect the welfare of children. These included preference for adoption by Indian parents, scrutiny of applications by recognised agencies, home study

reports, court orders, and follow-up. These guidelines led to the creation of the Central Adoption Resource Agency (CARA).

Relevance to the Topic: The case is the foundation of the regulation of adoption in the interest of the child's welfare.

Case Law: Shabnam Hashmi v Union of India

Year: 2014 **Court:** Supreme Court of India

Facts / Background: A social activist who had adopted a girl under the Juvenile Justice Act asked the Court to declare that the right to adopt is a fundamental right and to lay down guidelines enabling adoption by persons of all religions.

Legal Issue: Is the right to adopt a fundamental right, and can persons who are not Hindus adopt under the Juvenile Justice Act?

Court's Decision / What the Court Held: The Court held that the Juvenile Justice (Care and Protection of Children) Act is a secular law, and any person, irrespective of religion, can adopt a child under it. However, the Court declined to declare the right to adopt a fundamental right at that stage, given the different personal law views.

Relevance to the Topic: The case shows the parallel secular system of adoption and the limits of HAMA (which applies only to Hindus).

Important Points

- HAMA applies only to Hindus; others may adopt under the JJ Act, 2015.
- Section 6: four requisites of a valid adoption; s.5: an adoption in contravention is void.
- Sections 7 and 8: capacity of male and female Hindus (with the spouse's consent).
- Section 9: only the father, mother or guardian (with court permission) can give in adoption.
- Section 10: the child must be a Hindu, not adopted before, unmarried and under 15 (unless custom).
- Section 11: no living son/daughter of the same sex; 21-year age gap; actual giving and taking.

Remember: The datta homam ceremony is not essential; actual giving and taking is.

Topic 3.2: Effects of valid adoption, valid adoption not to be cancelled

Introduction

Once a valid adoption is made, it creates a complete and permanent change in the legal status of the child. The child leaves the family of birth and becomes a member of the adoptive family for all purposes. The law also provides that a valid adoption cannot be cancelled, either by the adoptive parents or by the child. This topic explains the effects of adoption and its irrevocability.

Definition

> **Section 12 HAMA (in part):** "An adopted child shall be deemed to be the child of his or her adoptive father or mother for all purposes with effect from the date of the adoption and from such date all the ties of the child in the family of his or her birth shall be deemed to be severed and replaced by those created by the adoption in the adoptive family."

> **Section 15:** "No adoption which has been validly made can be cancelled by the adoptive father or mother or any other person, nor can the adopted child renounce his or her status as such and return to the family of his or her birth."

Detailed Explanation

1. Effects of Adoption (Section 12)

1. **New family:** the child becomes the child of the adoptive parents for all purposes from the date of adoption.
2. **Severance of ties:** all ties with the family of birth are severed and replaced by those of the adoptive family.
3. **Provisos:**
   - (a) the child cannot marry any person whom he or she could not have married if he or she had continued in the family of birth (prohibited degrees continue);
   - (b) any property vested in the adopted child before the adoption continues to vest in him or her, subject to obligations (including maintenance of relatives in the birth family);
   - (c) the adopted child does not divest any person of any estate vested in him or her before the adoption (no "relation back").

2. Right of Adoptive Parents to Dispose of Property (Section 13)

Subject to any agreement to the contrary, an adoption does not deprive the adoptive father or mother of the power to dispose of his or her property by transfer inter vivos or by will.

3. Determination of Adoptive Mother and Father (Section 14)

1. If a male Hindu with a wife living adopts a child, she is deemed to be the adoptive mother.
2. If he has more than one wife, the senior-most in marriage is the adoptive mother, and the others are stepmothers.

3. If a widower or bachelor adopts a child, any wife he subsequently marries is the stepmother.
4. If a widow or an unmarried woman adopts a child, any husband she subsequently marries is the stepfather.

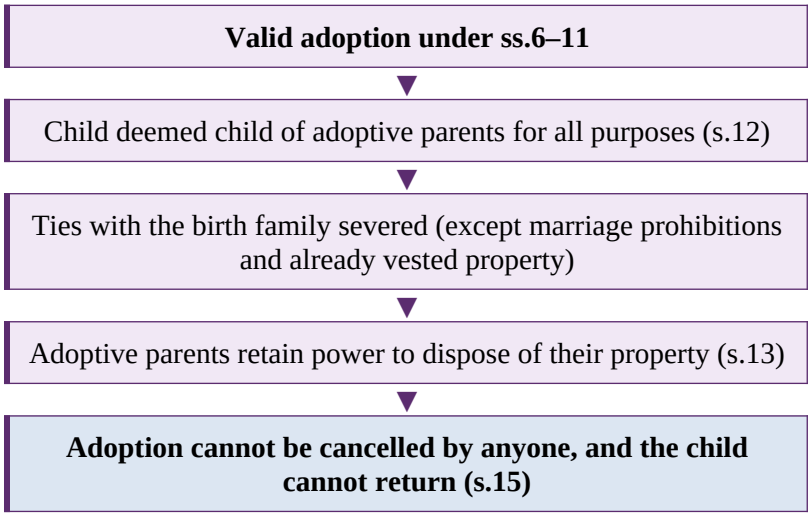
4. Valid Adoption Not to Be Cancelled (Section 15)

1. A valid adoption is **irrevocable**.
2. Neither the adoptive father, the adoptive mother nor any other person can cancel it.
3. The adopted child cannot renounce the adoption and return to the family of birth.
4. This protects the stability and security of the child.

5. Effect of an Invalid Adoption

An adoption in contravention of the Act is void (s.5(1)): it neither creates rights in the adoptive family nor destroys rights in the family of birth (s.5(2)).

Flowchart: Consequences of a valid adoption



Examples

- A child adopted by a Hindu couple inherits their property as their natural child would, and does not inherit from his birth father.
- After a few years, the adoptive parents are unhappy with the child and want to "return" him. They cannot cancel the adoption under s.15.

Case Laws

Case Law: Sawan Ram v Kalawanti

Year: 1967 **Court:** Supreme Court of India

Facts / Background: A Hindu widow adopted a son after the death of her husband. The question arose whether the adopted son became the son of the deceased husband as well, so as to be entitled to inherit property from the husband's side.

Legal Issue: When a widow adopts a son under HAMA, does the child become the adopted

son of her deceased husband also?

Court's Decision / What the Court Held: The Court held that when a Hindu widow adopts a son, the child is deemed to be the adopted son of her deceased husband as well, because under s.12 the child is transferred to the adoptive family, which is the family of the widow's husband. So the adopted son is entitled to rights in the husband's family property.

Relevance to the Topic: The case explains the effect of adoption under s.12 on the adoptive family.

Important Points

- Section 12: the adopted child is the child of the adoptive parents for all purposes from the date of adoption.
- Ties with the birth family are severed, except for marriage prohibitions and already vested property.
- No "relation back": the adopted child does not divest anyone of vested property.
- Section 13: adoptive parents can dispose of their property.
- Section 15: a valid adoption cannot be cancelled.
- A widow's adopted son is also the son of her deceased husband (*Sawan Ram*, 1967).

Remember: A void adoption (s.5) has no effect; a valid adoption (s.15) can never be cancelled.

Topic 3.3: Maintenance : Wife’s right to claim maintenance with separate residence, right of Widowed Daughter - in – Law, Children, Aged Parents and Dependents to claim maintenance

Introduction

Maintenance means providing for the basic needs of those who cannot support themselves. Under Hindu law, the duty to maintain one's wife, children and aged parents is personal and also linked to family property. Chapter III of the Hindu Adoptions and Maintenance Act, 1956 (sections 18 to 28) codifies the right of a wife, widowed daughter-in-law, children, aged parents and other dependants to claim maintenance. This is a civil remedy, separate from the summary remedy under ss.144–147 BNSS (Topic 7.4).

Definition

> **Section 3(b) HAMA:** "Maintenance" includes (i) in all cases, provision for food, clothing, residence, education and medical attendance and treatment; (ii) in the case of an unmarried daughter, also the reasonable expenses of and incident to her marriage.

Detailed Explanation

1. Maintenance of Wife (Section 18)

1. A Hindu wife is entitled to be maintained by her husband during her lifetime (s.18(1)).
2. **Right to separate residence with maintenance (s.18(2)):** she is entitled to live separately without forfeiting her claim to maintenance if the husband:
   - (a) is guilty of desertion (abandoning her without reasonable cause, or wilfully neglecting her);
   - (b) has treated her with such cruelty as to cause a reasonable apprehension that it would be harmful or injurious to live with him;
   - (c) (leprosy: omitted in 2019);
   - (d) has any other wife living;
   - (e) keeps a concubine in the same house or habitually resides with a concubine elsewhere;
   - (f) has ceased to be a Hindu by conversion;
   - (g) there is any other cause justifying her living separately.
3. **Disqualification (s.18(3)):** she is not entitled to separate residence and maintenance if she is unchaste or ceases to be a Hindu by conversion.

2. Maintenance of Widowed Daughter-in-Law (Section 19)

1. A widowed daughter-in-law is entitled to be maintained by her father-in-law, to the extent she cannot maintain herself from her own earnings or property, or from her husband's, father's, mother's, son's or daughter's estate.
2. **Conditions:** the obligation arises only if the father-in-law has in his possession coparcenary property from which the daughter-in-law has not obtained any share.
3. **The obligation ceases** on her remarriage.

3. Maintenance of Children and Aged Parents (Section 20)

1. A Hindu is bound, during his or her lifetime, to maintain his or her legitimate or illegitimate children and aged or infirm parents (s.20(1)).
2. A legitimate or illegitimate child may claim maintenance from the father or mother as long as the child is a minor (s.20(2)).
3. The obligation extends to an **unmarried daughter** and to **aged or infirm parents**, so far as they are unable to maintain themselves out of their own earnings or property (s.20(3)).
4. "Parent" includes a childless stepmother (Explanation).

4. Maintenance of Dependants (Sections 21 and 22)

1. **Section 21** lists "dependants" of a deceased Hindu, including his father, mother, widow (so long as she does not remarry), minor son, unmarried daughter, widowed daughter, minor illegitimate son, unmarried illegitimate daughter, and others.
2. **Section 22:** the heirs of a deceased Hindu are bound to maintain the dependants out of the estate inherited from the deceased.

5. Amount of Maintenance (Section 23)

The court considers:

1. the position and status of the parties;
2. the reasonable wants of the claimant;
3. if the claimant lives separately, whether this is justified;
4. the value of the claimant's property and income;
5. the number of persons entitled to maintenance.

For dependants, the value of the estate and the claimant's own resources are also considered.

6. Other Provisions

1. **Section 24:** a claimant who ceases to be a Hindu is not entitled to maintenance.
2. **Section 25:** the amount may be altered if circumstances change.
3. **Section 26:** debts of the deceased have priority over claims of dependants.
4. **Section 28:** a dependant's right to maintenance can be enforced against a transferee of the estate who has notice of the right, or if the transfer is gratuitous.

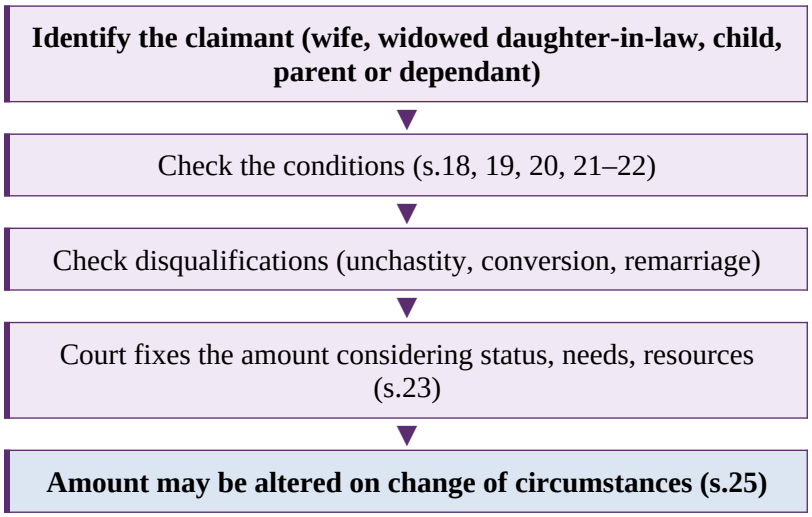
7. Related Law

The **Maintenance and Welfare of Parents and Senior Citizens Act, 2007** gives senior citizens and parents a summary remedy before a Tribunal to claim maintenance from children and relatives.

Claimant	Section	Against whom	Key conditions
Wife	18	Husband	Right to separate residence on specified grounds; not if unchaste or converted
Widowed daughter-in-law	19	Father-in-law	Only out of coparcenary property in his possession; ceases on remarriage

Claimant	Section	Against whom	Key conditions
Minor children (legitimate or illegitimate)	20	Father or mother	During minority
Unmarried daughter	20(3)	Father or mother	Unable to maintain herself; includes marriage expenses
Aged or infirm parents	20(3)	Son or daughter	Unable to maintain themselves
Dependants of a deceased Hindu	21, 22	Heirs of the deceased	Out of the estate inherited

Flowchart: Claiming maintenance under HAMA



Examples

- A husband marries a second wife while the first is alive. The first wife can live separately and claim maintenance under s.18(2)(d).
- An unmarried daughter aged 24 who has no income can claim maintenance, including marriage expenses, from her father under s.20(3).

Case Laws

Case Law: Jagdish Jugtawat v Manju Lata

Year: 2002 **Court:** Supreme Court of India

Facts / Background: A minor daughter was awarded maintenance under s.125 CrPC, which (as it then stood) allowed maintenance only until a child attained majority. The question arose whether she could continue to receive maintenance after attaining majority until her marriage.

Legal Issue: Can an unmarried daughter claim maintenance after attaining majority?

Court's Decision / What the Court Held: The Court held that, reading s.125 CrPC with

s.20(3) HAMA, an unmarried Hindu daughter is entitled to maintenance from her father until she is married, even after attaining majority. To avoid multiplicity of proceedings, the order under s.125 could be continued.

Relevance to the Topic: The case recognises the right of an unmarried daughter to maintenance under s.20(3) HAMA.

Case Law: Abhilasha v Prakash

Year: 2020 **Court:** Supreme Court of India

Facts / Background: A Hindu unmarried daughter who had attained majority, and was not suffering from any physical or mental abnormality, claimed maintenance from her father under s.125 CrPC.

Legal Issue: Can a major unmarried Hindu daughter, who is not physically or mentally disabled, claim maintenance under s.125 CrPC, or must she proceed under s.20(3) HAMA?

Court's Decision / What the Court Held: The Court held that under s.125 CrPC, maintenance is available to a major child only if he or she is unable to maintain himself or herself due to physical or mental abnormality or injury. However, an unmarried Hindu daughter can claim maintenance from her father under s.20(3) HAMA until her marriage, by filing a civil suit, if she is unable to maintain herself.

Relevance to the Topic: The case explains the scope of s.20(3) HAMA and its relation with s.125 CrPC (now s.144 BNSS).

Important Points

- "Maintenance" includes food, clothing, residence, education, medical treatment, and marriage expenses of an unmarried daughter (s.3(b)).
- Section 18: wife's right to maintenance and separate residence on specified grounds.
- Section 19: widowed daughter-in-law, from coparcenary property in the father-in-law's possession.
- Section 20: children, unmarried daughters and aged or infirm parents.
- Sections 21–22: dependants of a deceased Hindu, from the estate.
- *Jagdish Jugtawat* (2002) and *Abhilasha* (2020): unmarried daughter's right under s.20(3).

Remember: HAMA provides a civil remedy; BNSS ss.144–147 provide a summary criminal-court remedy.

UNIT 4
Guardianship

Topics in this Unit

4.1 The Hindu Minority and Guardianship Act, 1956 Minor and Guardians - Natural Guardian, Testamentary Guardian, Defacto Guardian - powers

4.2 Incapacity of a minor to act as guardian

4.3 Welfare of minor to be paramount consideration

Topic 4.1: The Hindu Minority and Guardianship Act, 1956 Minor and Guardians - Natural Guardian, Testamentary Guardian, Defacto Guardian - powers

Introduction

A minor (a person below 18 years) cannot look after himself or his property. The law therefore provides for a **guardian** to take care of the minor's person and property. The **Hindu Minority and Guardianship Act, 1956 (HMGA)** codifies the law of guardianship for Hindus. It supplements the **Guardians and Wards Act, 1890**, a general law that applies to all communities. The guiding principle is that the welfare of the minor is the paramount consideration.

Definition

> **Section 4(a) HMGA:** "Minor" means a person who has not completed the age of eighteen years.

> **Section 4(b):** "Guardian" means a person having the care of the person of a minor or of his property or of both his person and property, and includes (i) a natural guardian, (ii) a guardian appointed by the will of the minor's father or mother, (iii) a guardian appointed or declared by a court, and (iv) a person empowered to act as such by or under any enactment relating to any Court of Wards.

Detailed Explanation

1. Kinds of Guardians

Kind	Basis
Natural guardian	By relationship (s.6)
Testamentary guardian	Appointed by the will of a natural guardian (s.9)
Guardian appointed or declared by court	Under the Guardians and Wards Act, 1890
Guardian under the Court of Wards	Statutory guardian
De facto guardian	A person who, without legal authority, takes care of a minor (recognised to a limited extent; s.11)

2. Natural Guardians (Section 6)

1. **Boy or unmarried girl:** the father, and after him, the mother. But the custody of a minor who has not completed five years shall ordinarily be with the mother.
2. **Illegitimate boy or illegitimate unmarried girl:** the mother, and after her, the father.
3. **Married girl:** the husband.

Exclusions (proviso to s.6): no person is entitled to act as natural guardian if he has ceased to be a Hindu, or has completely and finally renounced the world by becoming a hermit or ascetic.

Interpretation of "after": in *Githa Hariharan v Reserve Bank of India* (1999), the Supreme Court held that "after" does not mean "after the lifetime of the father"; it means "in the absence of" the father. So the mother can act as natural guardian even during the father's lifetime if he is absent, uninterested, or unable to act.

Natural guardian of an adopted son: the adoptive father, and after him, the adoptive mother (s.7).

3. Powers of a Natural Guardian (Section 8)

1. The natural guardian may do all acts that are necessary, reasonable and proper for the benefit of the minor or for the realisation, protection or benefit of the minor's estate (s.8(1)).
2. He cannot bind the minor by a personal covenant (s.8(1)).
3. **Without the previous permission of the court, he shall not (s.8(2)):**
   - (a) mortgage, charge, sell, gift, exchange or otherwise transfer any part of the immovable property of the minor; or
   - (b) lease any part of such property for more than five years or for a term extending more than one year beyond the date on which the minor attains majority.
4. Any disposal in contravention of s.8(2) is **voidable** at the instance of the minor or any person claiming under him (s.8(3)).
5. The court shall not grant permission except in case of necessity or for an evident advantage to the minor (s.8(4)).
6. A natural guardian has no power over the minor's undivided interest in joint family property (s.12), which is managed by the Karta.

4. Testamentary Guardians (Section 9)

1. A Hindu father entitled to act as natural guardian may, by will, appoint a guardian for the minor's person and/or property (other than an undivided interest in joint family property).
2. If the father predeceases the mother, the appointment by the father is ineffective (it revives if the mother dies without appointing a guardian by will).
3. A Hindu widow or mother entitled to act as natural guardian may also appoint a testamentary guardian.
4. A mother who is a natural guardian of an illegitimate child may appoint a testamentary guardian for that child.
5. The testamentary guardian's powers are similar to those of a natural guardian, subject to the restrictions in the Act and in the will (s.9(5)).
6. The guardianship of a minor girl ceases on her marriage (s.9(6)).

5. De Facto Guardians (Section 11)

1. A de facto guardian is a person who takes charge of a minor or his property without any legal authority (e.g. an uncle or elder brother looking after an orphan).

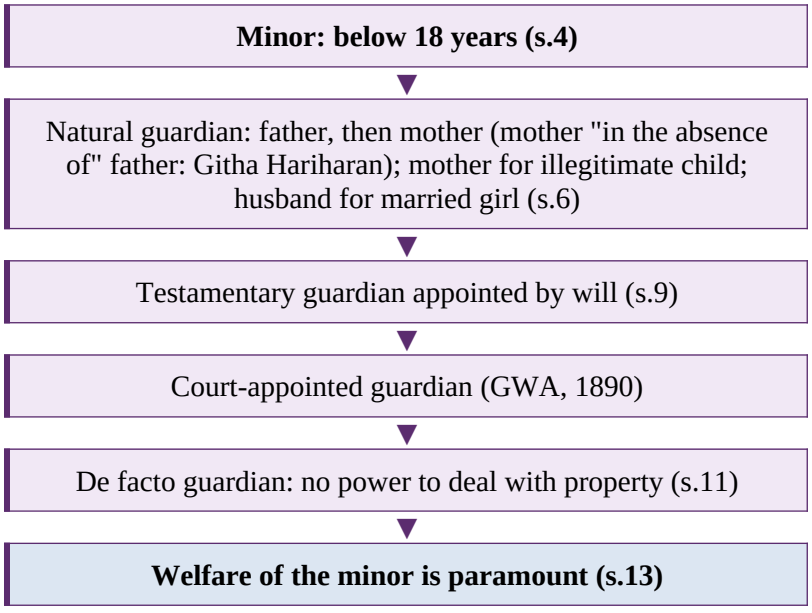
2. **Section 11:** after the commencement of the Act, no person shall be entitled to dispose of, or deal with, the property of a Hindu minor merely on the ground of his or her being the de facto guardian.
3. Any alienation of a minor's property by a de facto guardian is **void** (*Madhegowda v Ankegowda*, 2002).

6. Guardian Appointed by Court

Under the Guardians and Wards Act, 1890, the court may appoint or declare a guardian for the minor's person or property, considering the welfare of the minor (s.13 HMGA; ss.7, 17 GWA).

Guardian	Who	Power over immovable property	Effect of unauthorised alienation
Natural guardian	Father, mother; husband for married girl	Only with court's permission (s.8(2))	Voidable (s.8(3))
Testamentary guardian	Appointed by will	Similar to natural guardian, subject to the will (s.9(5))	Voidable
De facto guardian	Self-appointed carer	No power (s.11)	Void
Court-appointed guardian	Appointed under the GWA	Subject to court control (s.29 GWA)	Voidable

Flowchart: Guardianship of a Hindu minor



Examples

- A father wants to sell his minor son's land to buy a house in the son's name. He needs prior permission of the court under s.8(2).

- After the death of both parents, a minor's uncle sells the minor's land, claiming to be her de facto guardian. The sale is void under s.11.

Case Laws

Case Law: Githa Hariharan v Reserve Bank of India

Year: 1999 **Court:** Supreme Court of India

Facts / Background: Githa Hariharan applied to the Reserve Bank of India to invest money in the name of her minor son as his natural guardian. The RBI refused, saying the application must be signed by the father, who is the natural guardian under s.6(a) HMGA ("the father, and after him, the mother"). She challenged s.6(a) as discriminatory under Article 14.

Legal Issue: Can the mother act as natural guardian during the lifetime of the father, and is s.6(a) discriminatory?

Court's Decision / What the Court Held: The Court read down s.6(a) to avoid discrimination. It held that the word "after" does not mean "after the lifetime" of the father, but "in the absence of" the father. Absence includes cases where the father is not taking interest in the affairs of the minor, or where the parents have agreed that the mother will look after the minor, or where the father is physically unable to take care. In such cases, the mother can act as natural guardian even during the father's lifetime. The welfare of the minor is the paramount consideration.

Relevance to the Topic: The leading case on the mother's right to be the natural guardian and gender equality in guardianship.

Case Law: Madhegowda (Dead) by LRs v Ankegowda (Dead) by LRs

Year: 2002 **Court:** Supreme Court of India

Facts / Background: After the death of a minor girl's father, her property was sold by a person acting as her de facto guardian. After attaining majority, she challenged the sale.

Legal Issue: Is a sale of a Hindu minor's property by a de facto guardian valid?

Court's Decision / What the Court Held: The Court held that under s.11 HMGA, a de facto guardian has no right to dispose of or deal with the property of a Hindu minor. Such an alienation is void ab initio, not merely voidable, and the minor can ignore it and recover the property.

Relevance to the Topic: The case explains the position of de facto guardians under s.11.

Important Points

- Minor: below 18 years (s.4(a)).
- Natural guardians: father, then mother (boy or unmarried girl); mother, then father (illegitimate child); husband (married girl) (s.6).
- Custody of a child below five years ordinarily with the mother.
- "After" means "in the absence of" (*Githa Hariharan*, 1999).

- Natural guardian needs the court's permission to alienate immovable property (s.8(2)); contravention is voidable (s.8(3)).
- Testamentary guardian appointed by will (s.9).
- De facto guardian cannot deal with the minor's property; such dealings are void (s.11; *Madhegowda*, 2002).

Remember: A natural guardian has no power over the minor's undivided interest in joint family property (s.12).

Topic 4.2: Incapacity of a minor to act as guardian

Introduction

A minor is himself in need of care and protection. Logically, he cannot be trusted with the care of another minor's person or property. Section 10 of the Hindu Minority and Guardianship Act lays down this rule, with an important exception: a minor husband or father may still be the guardian of his minor wife or child in some respects. This topic explains the rule and its exceptions.

Definition

> **Section 10 HMGA:** "A minor shall be incompetent to act as guardian of the property of any minor."

Detailed Explanation

1. Meaning of the Rule

1. A minor cannot be the guardian of the **property** of another minor.
2. The reason is that a minor cannot manage his own property or enter into contracts (his agreements are void: *Mohori Bibee v Dharmodas Ghose*, 1903), so he cannot manage someone else's property.

2. Guardianship of the Person

1. Section 10 refers only to guardianship of property.
2. It does not expressly prohibit a minor from being the guardian of the **person** of another minor.
3. So, for example, a minor husband may be the natural guardian of the person of his minor wife (s.6(c)), and a minor father may be the guardian of the person of his minor child.

3. Earlier Law

Under the Guardians and Wards Act, 1890 (s.21), a minor is incompetent to act as guardian of any minor except his own wife or child, or (where he is the managing member of an undivided Hindu family) the wife or child of another minor member of that family. The HMGA, 1956 restricts the incapacity of a Hindu minor to guardianship of property.

4. Consequences

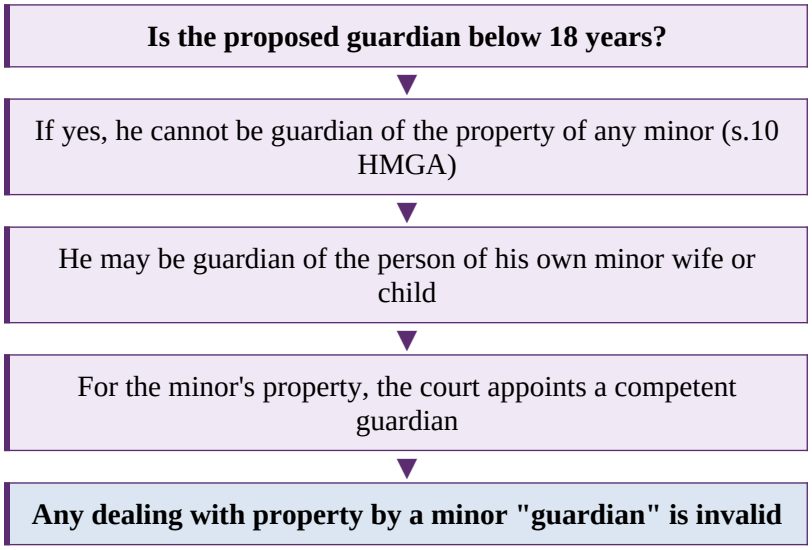
1. If a natural guardian (e.g. the father) is a minor, he cannot deal with the property of his minor child; a guardian of property must be appointed by the court.
2. A minor cannot be appointed as testamentary guardian of property.
3. Any dealing with a minor's property by a minor "guardian" would be invalid.

5. Related Provisions

Provision	Rule
s.10 HMGA	A minor cannot be guardian of the property of any minor

Provision	Rule
s.6(c) HMGA	The husband is the natural guardian of a minor wife (even if he is a minor, as to her person)
s.21 GWA, 1890	A minor is incompetent to act as guardian of any minor, except his own wife or child (and in a joint family, as stated)
s.11 ICA, 1872	A minor is not competent to contract

Flowchart: Can a minor be a guardian?



Examples

- A 17-year-old father wants to sell land belonging to his infant son. He cannot do so as guardian, because he is himself a minor.
- A 17-year-old elder brother, after the death of the parents, wishes to manage his younger sister's bank deposits. He cannot act as guardian of her property; a court must appoint a guardian.

Case Laws

There is no well-known reported Supreme Court case dealing specifically with section 10 HMGA, as the rule is straightforward and is rarely litigated. The principle that a minor lacks the capacity to manage property and contract is based on *Mohori Bibee v Dharmodas Ghose* (1903, Privy Council), which held that an agreement with a minor is void ab initio. Since a minor cannot validly contract or alienate property for himself, he cannot do so as guardian of another minor.

Important Points

- Section 10: a minor cannot act as guardian of the property of any minor.
- A minor may act as guardian of the person of his own wife or child.
- The GWA, 1890 (s.21) contains a similar rule.

- Based on the principle that a minor cannot contract (*Mohori Bibee*, 1903).

Remember: The incapacity relates to property, not to the person.

Topic 4.3: Welfare of minor to be paramount consideration

Introduction

In every decision about a child, the most important question is: what is best for the child? Section 13 of the Hindu Minority and Guardianship Act makes the welfare of the minor the paramount consideration in the appointment or declaration of a guardian. Courts apply this principle in custody disputes between parents, in deciding who will look after a child, and in matters such as education and residence. No legal right of any person, including the father, can override the welfare of the child.

Definition

> **Section 13(1) HMGA:** "In the appointment or declaration of any person as guardian of a Hindu minor by a court, the welfare of the minor shall be the paramount consideration."

> **Section 13(2):** "No person shall be entitled to the guardianship by virtue of the provisions of this Act or of any law relating to guardianship in marriage among Hindus, if the court is of opinion that his or her guardianship will not be for the welfare of the minor."

Detailed Explanation

1. Meaning of "Welfare"

"Welfare" is to be understood in its widest sense. It includes:

1. **Physical well-being:** health, food, shelter, safety.
2. **Moral and ethical welfare:** upbringing, values, environment.
3. **Emotional well-being:** love, affection, stability, bond with parents and siblings.
4. **Education:** quality of schooling and opportunities.
5. **Financial security:** though not decisive; a richer parent is not automatically preferred.
6. **Wishes of the child:** if the child is old enough to form an intelligent preference (s.17(3) GWA).

2. Paramountcy over Legal Rights

1. The father's natural guardianship (s.6) is subject to the child's welfare.
2. The mother's custody of a child below five years (s.6(a) proviso) is also subject to welfare.
3. Even a testamentary or natural guardian may be removed if it is not in the child's interest.

3. Factors Considered in Custody Cases

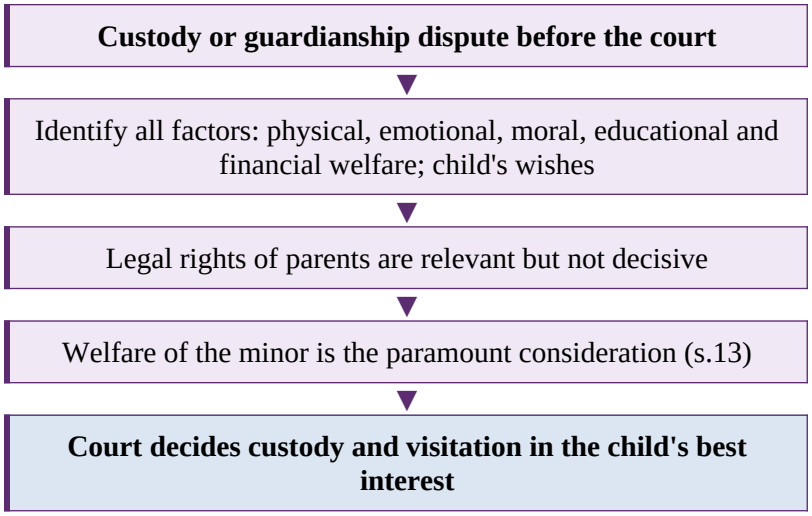
Factor	Relevance
Age and sex of the child	Young children and girls often placed with the mother
Wishes of the child	If mature enough to express a preference
Character and conduct of the parents	Abuse, neglect, addiction

Factor	Relevance
Financial capacity	Relevant but not decisive
Continuity and stability	Avoid unnecessary disruption of schooling and environment
Siblings	Keep siblings together where possible
Visitation rights	The non-custodial parent should usually have access
Remarriage	Relevant to the child's environment, not decisive by itself

4. International Child Custody

In cases where a child is brought to India by one parent from another country, courts apply the welfare principle rather than automatically returning the child (*V. Ravi Chandran v Union of India*, 2010; *Nithya Anand Raghavan v State (NCT of Delhi)*, 2017). India is not a party to the Hague Convention on Child Abduction.

Flowchart: Applying the welfare principle



Examples

- A father, who is the natural guardian, is an alcoholic and violent. The court may give custody to the mother, though the father has the legal right under s.6.
- A 13-year-old child clearly wishes to stay with his grandparents, with whom he has lived happily for years. The court may consider this preference.

Case Laws

Case Law: Gaurav Nagpal v Sumedha Nagpal

Year: 2009 **Court:** Supreme Court of India

Facts / Background: A husband and wife were in a dispute over the custody of their son. The father had removed the child, and the mother sought custody. Both parties claimed custody based on their legal rights.

Legal Issue: What is the principle for deciding custody of a minor child between parents?

Court's Decision / What the Court Held: The Court held that the welfare of the child is the paramount consideration, and the legal rights of the parents are secondary. "Welfare" is to be taken in its widest sense, including the child's moral, ethical and physical well-being. The court exercises parens patriae (parental) jurisdiction. On the facts, custody was given to the mother, with visitation rights to the father.

Relevance to the Topic: The leading case on the welfare principle in custody disputes.

Case Law: Nil Ratan Kundu v Abhijit Kundu

Year: 2008 **Court:** Supreme Court of India

Facts / Background: After the mother of a child died in unnatural circumstances (the father was facing a criminal case in connection with her death), the maternal grandparents and the father disputed custody of the child.

Legal Issue: How should the court decide custody where the father, the natural guardian, is facing charges in connection with the mother's death?

Court's Decision / What the Court Held: The Court held that in deciding custody, the court must be guided by the welfare of the child, not by the legal rights of the parties. The court must consider the character of the proposed guardian, the child's comfort, education and moral upbringing, and the child's own wishes if he is old enough. Custody was given to the maternal grandparents, considering the child's welfare.

Relevance to the Topic: The case explains the factors to be considered under the welfare principle.

Important Points

- Section 13: the welfare of the minor is the paramount consideration.
- Welfare includes physical, moral, emotional, educational and financial well-being.
- Legal rights of parents (e.g. under s.6) are subject to welfare.
- The child's wishes are considered if he or she is mature enough.
- *Gaurav Nagpal* (2009) and *Nil Ratan Kundu* (2008).

Remember: Custody is never decided merely on the basis of who is richer.

UNIT 5
Mahomedan Law

Topics in this Unit

5.1 Origin of Mahomedan law

5.2 Sources of Mahomadan law

5.3 Marriage-conditions for valid marriage, Muta Marriage and Dower

5.4 Dissolution of Marriage-Talak, The Muslim Women (Protection of Rights on Marriage) Act, 2019

5.5 Dissolution of Muslim Marriage Act, 1939

Topic 5.1: Origin of Mahomedan law

Introduction

Mahomedan (Muslim) law is the personal law of Muslims. It is based on the religion of Islam, founded by the Prophet Muhammad in Arabia in the seventh century. Muslim law is not only a legal system but also a religious and moral code, covering matters such as marriage, divorce, maintenance, inheritance, gifts, wills and wakfs. In India, Muslim personal law applies to Muslims in matters listed in the Muslim Personal Law (Shariat) Application Act, 1937.

Definition

> **Muslim law (Shariat)** is the body of rules derived from the Quran, the traditions of the Prophet (Sunna), consensus of jurists (Ijma) and analogical reasoning (Qiyas), governing the personal and religious life of Muslims.

Detailed Explanation

1. Pre-Islamic Arabia

1. Arabia was divided into tribes, with customs governing marriage, divorce and inheritance.
2. Women had very few rights; unlimited polygamy, temporary marriages and female infanticide were practised.
3. There was no organised legal system.

2. The Prophet and the Revelation of Islam

1. Prophet Muhammad was born in Mecca around 570 CE.
2. He received revelations (believed to be from God, through the angel Gabriel) from about 610 CE.
3. These revelations were compiled as the **Quran**.
4. He migrated from Mecca to Medina in 622 CE (the Hijrat, the beginning of the Islamic calendar).
5. He reformed the existing customs: limiting polygamy to four wives, giving women shares in inheritance, prescribing dower (mahr), and regulating divorce.

3. Development after the Prophet

1. After the Prophet's death (632 CE), disputes arose about succession to leadership, leading to the division of Muslims into **Sunnis** and **Shias**.
2. Jurists developed the law through interpretation of the Quran and the Sunna.

4. Schools of Muslim Law

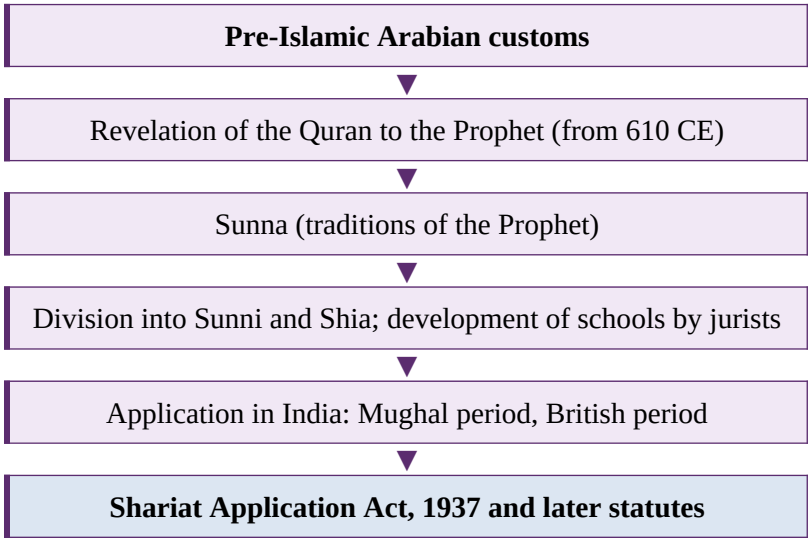
Sect	Schools	Notes
Sunni	Hanafi (Abu Hanifa); Maliki (Malik bin Anas); Shafi'i (al-Shafi'i); Hanbali (Ahmad bin Hanbal)	Most Indian Muslims are Sunnis of the Hanafi school

Sect	Schools	Notes
Shia	Ithna Ashari (Twelvers); Ismaili; Zaidi	Ithna Ashari Shias recognise muta marriage

5. Muslim Law in India

1. Muslim law came to India with Muslim rulers. During the Mughal period, it was applied in courts.
2. The British, through the Regulating Act, 1773 and later regulations, applied Muslim law to Muslims in matters of marriage, inheritance and religious usage.
3. **Muslim Personal Law (Shariat) Application Act, 1937:** in matters of intestate succession, special property of females, marriage, dissolution of marriage (including talaq, ila, zihar, lian, khula and mubarat), maintenance, dower, guardianship, gifts, trusts and wakfs, the rule of decision shall be the Muslim personal law (Shariat), notwithstanding any custom or usage to the contrary (s.2).
4. **Dissolution of Muslim Marriages Act, 1939**; **Muslim Women (Protection of Rights on Divorce) Act, 1986**; **Muslim Women (Protection of Rights on Marriage) Act, 2019**.

Flowchart: Origin and development of Muslim law



Examples

- An Indian Muslim of the Hanafi school marries without a muta contract; muta marriages are not recognised among Sunnis.
- A Muslim woman's share in her father's property is governed by the Shariat under the 1937 Act.

Case Laws

This topic is historical, and there is no single case law that deals directly with the origin of Muslim law. The Shariat Application Act, 1937, which governs the application of Muslim law in India, has been discussed in later cases such as *Shayara Bano v Union of India* (2017), where

the Supreme Court considered whether practices recognised under the 1937 Act (such as instant triple talaq) could be tested against the Constitution (Topic 5.4).

Important Points

- Muslim law is based on the religion of Islam, founded by the Prophet Muhammad.
- The Quran was revealed from about 610 CE; the Hijrat (622 CE) began the Islamic calendar.
- Sunnis (Hanafi, Maliki, Shafi'i, Hanbali) and Shias (Ithna Ashari, Ismaili, Zaidi) are the main sects.
- Most Indian Muslims follow the Hanafi school.
- The Shariat Application Act, 1937 governs the application of Muslim personal law in India.

Remember: The 1937 Act gave Muslim personal law priority over customs in the listed matters.

Topic 5.2: Sources of Mahomadan law

Introduction

Muslim law draws its rules from a number of sources. The primary sources are religious: the Quran, the traditions of the Prophet (Sunna or Hadith), the consensus of jurists (Ijma) and analogical reasoning (Qiyas). The secondary sources include custom, judicial decisions, legislation and equity. Understanding these sources is essential for interpreting Muslim personal law.

Definition

> The **sources of Muslim law** are the bases from which its rules are derived: the **primary sources** (Quran, Sunna, Ijma and Qiyas) and the **secondary sources** (custom or urf, judicial decisions, legislation, and equity, justice and good conscience).

Detailed Explanation

1. Primary Sources

Quran

1. The holy book of Islam, believed to be the word of God revealed to the Prophet.
2. It is the first and most important source.
3. It contains about 6,000 verses, of which about 200 deal with legal matters (marriage, divorce, inheritance, dower, etc.).

Sunna (Ahadith)

1. The traditions of the Prophet: his sayings (*qaul*), actions (*fail*) and silent approval (*taqrir*).
2. Recorded as Hadith (reports).
3. Where the Quran is silent, the Sunna is applied.
4. Collections such as Sahih al-Bukhari and Sahih Muslim are well known (Sunni); Shias rely on traditions transmitted through the Prophet's family.

Ijma (Consensus)

1. The consensus of the qualified jurists (mujtahids) of a particular period on a question of law.
2. It is the third source, used when the Quran and Sunna are silent.
3. Shias give limited importance to Ijma.

Qiyas (Analogical Deduction)

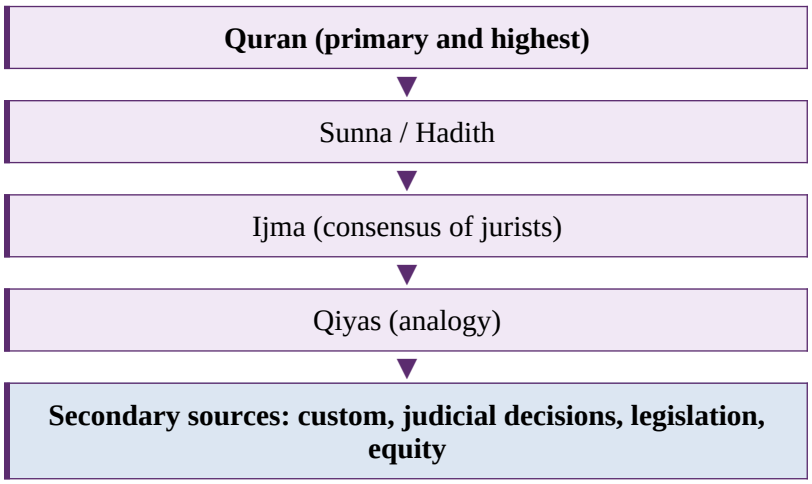
1. Applying a rule from the Quran, Sunna or Ijma to a new situation by analogy, where the reason (illat) is the same.
2. Example: prohibition of wine extended to other intoxicants by analogy.
3. Shias do not generally accept Qiyas; they use reason (*aql*).

2. Secondary Sources

1. **Custom (Urf):** customs not opposed to the Quran or Sunna were recognised. In India, the Shariat Application Act, 1937 overrides custom in specified matters.
2. **Judicial decisions:** decisions of the Privy Council, Supreme Court and High Courts are binding (e.g. on maintenance, talaq).
3. **Legislation:** Shariat Application Act, 1937; Dissolution of Muslim Marriages Act, 1939; Muslim Women (Protection of Rights on Divorce) Act, 1986; Muslim Women (Protection of Rights on Marriage) Act, 2019; Wakf Act, 1995.
4. **Equity, justice and good conscience (Istihsan / Istislah):** juristic preference or public interest, used by some schools (Hanafi: istihsan; Maliki: istislah).

Source	Nature	Priority
Quran	Divine revelation	First
Sunna/Hadith	Traditions of the Prophet	Second
Ijma	Consensus of jurists	Third
Qiyas	Analogical reasoning	Fourth
Custom, judicial decisions, legislation, equity	Secondary	Supplementary

Flowchart: Hierarchy of sources of Muslim law



Examples

- The Quran limits the number of wives to four; this is the basis of the rule allowing a Muslim man up to four wives.
- The rule that a valid marriage requires two witnesses (in Sunni law) is derived from the Sunna.

Case Laws

Case Law: Aga Mahomed Jaffer Bindanim v Koolsom Beebee

Year: 1897 **Court:** Privy Council

Facts / Background: The case concerned a claim for maintenance by a Muslim widow, and the parties relied on different interpretations of the Quran.

Legal Issue: Can courts interpret the Quran independently to arrive at a rule different from that laid down by recognised authorities of Muslim law?

Court's Decision / What the Court Held: The Privy Council held that it would be wrong for the court, on a point of Muslim law, to put its own construction on the Quran in opposition to the express ruling of Muslim commentators of great antiquity and high authority. Courts should follow the interpretations of recognised authorities.

Relevance to the Topic: The case explains the role of the Quran and of recognised commentaries as sources of Muslim law in Indian courts. (Students should note that in later cases, such as *Shamim Ara*, 2002, and *Shayara Bano*, 2017, the courts examined the Quran directly in the light of constitutional values.)

Important Points

- Primary sources: Quran, Sunna, Ijma, Qiyas.
- Secondary sources: custom, judicial decisions, legislation, equity.
- The Quran is the highest source; Sunna fills gaps.
- Shias give limited importance to Ijma and Qiyas.
- Courts should not put their own construction on the Quran against recognised authorities (*Aga Mahomed Jaffer*, 1897).

Remember: The Shariat Application Act, 1937 overrides custom in listed matters.

Topic 5.3: Marriage-conditions for valid marriage, Muta Marriage and Dower

Introduction

In Muslim law, marriage (*nikah*) is a civil contract for the purpose of legalising sexual relations and the procreation of children, though it also has religious and social aspects. Because it is a contract, it requires offer and acceptance, capacity and free consent. Muslim law also recognises temporary marriage (*muta*) among Ithna Ashari Shias, and every marriage carries an obligation of **dower (mahr)**, which is a payment due to the wife.

Definition

> **Nikah (marriage):** a contract which has for its object the procreation and legalising of children (Baillie's Digest).

> **Muta marriage:** a temporary marriage for a fixed period, with a fixed dower, recognised only among Ithna Ashari Shias.

> **Dower (mahr):** a sum of money or other property which the wife is entitled to receive from the husband in consideration of the marriage (Mulla).

Detailed Explanation

A. Conditions for a Valid Muslim Marriage

1. **Proposal and acceptance (ijab and qubul):** an offer by or on behalf of one party and acceptance by the other, at the same meeting.
2. **Capacity:** both parties must be of sound mind and have attained puberty (presumed at 15 years). A minor may be married by a guardian, subject to the option of puberty (but see the Prohibition of Child Marriage Act, 2006, which applies to all communities).
3. **Free consent:** consent obtained by force or fraud makes the marriage invalid (for Hanafis, the position on compulsion differs in classical law, but Indian courts require free consent).
4. **Witnesses:** in Sunni law, two adult male Muslim witnesses (or one male and two female) must be present; not required in Shia law.
5. **No legal prohibition:** the parties must not be within the prohibited relationships.

B. Prohibitions and Classification of Marriage

Type	Meaning	Examples
Valid (sahih)	All conditions fulfilled	Ordinary marriage
Void (batil)	Absolute prohibition; no legal effect	Marriage within prohibited degrees of consanguinity, affinity or fosterage; marriage with another man's wife

Type	Meaning	Examples
Irregular (fasid)	Relative prohibition; can be regularised	Marriage without witnesses (Sunni); with a fifth wife; during iddat; with a non-kitabia (by a Muslim man); with two sisters together

Absolute prohibitions (void):

1. Consanguinity (blood relations, e.g. mother, daughter, sister, aunt, niece).
2. Affinity (relations by marriage, e.g. wife's mother, wife's daughter, son's wife).
3. Fosterage (persons nursed by the same woman, with some exceptions).
4. Polyandry (marriage with a woman who is already married).

Relative prohibitions (irregular):

1. Marriage with a fifth wife.
2. Unlawful conjunction (two sisters, or aunt and niece, as wives at the same time).
3. Absence of witnesses (Sunni law).
4. Difference of religion (a Muslim man marrying a non-kitabia; a Muslim woman marrying a non-Muslim is considered irregular by Hanafis, void by others).
5. A woman undergoing iddat.

C. Muta Marriage

1. **Recognised only by Ithna Ashari Shias;** not by Sunnis or other Shia schools.
2. **Essentials:** a fixed period (a day, a month, a year or years) and a fixed dower must be specified.
3. **If the period is not specified,** it may be treated as a permanent marriage (according to some authorities).
4. **Effects:** no mutual rights of inheritance between spouses (unless agreed); children are legitimate and inherit from both parents; no right to maintenance under classical law (but maintenance under s.144 BNSS may be available); no divorce: the marriage ends on expiry of the term or by the husband's "gift of the term" (*hiba-i-muddat*).
5. **Iddat:** two menstrual courses (for consummated muta), or four months and ten days on death of husband.

D. Dower (Mahr)

Nature

1. An obligation imposed on the husband as a mark of respect for the wife.
2. It is the wife's property, and she has full control over it.
3. It is not a price for the wife.

Kinds of Dower

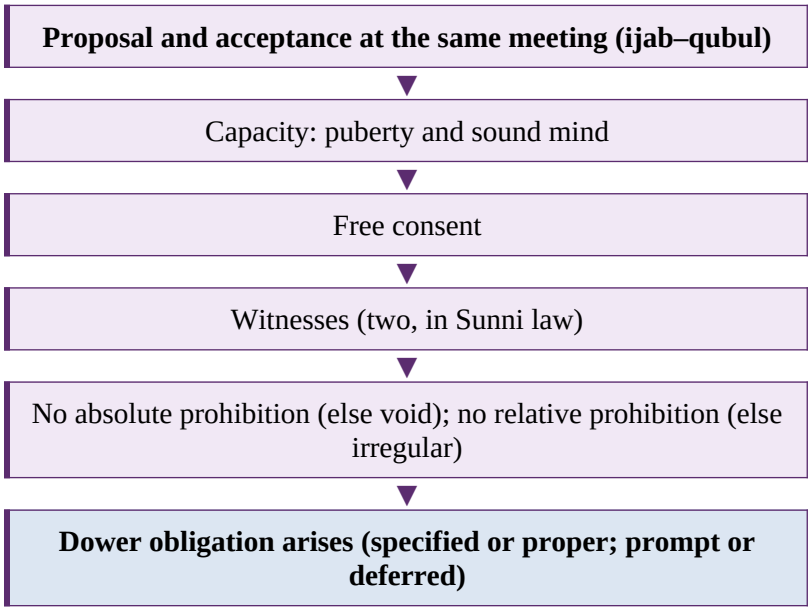
Kind	Meaning
Specified dower (mahr-ul-musamma)	Fixed by agreement before, at or after marriage

Kind	Meaning
Proper dower (mahr-ul-misl)	Where no dower is fixed, the court fixes it by considering the dower of female relatives on the father's side, and her personal qualifications
Prompt dower (mu'ajjal)	Payable immediately on demand
Deferred dower (mu'wajjal)	Payable on dissolution of marriage by death or divorce, or on a specified event

Rights of the Wife regarding Dower

1. **Right to refuse cohabitation** until prompt dower is paid (before consummation).
2. **Right to sue** for unpaid dower (limitation: three years from demand for prompt dower, or from dissolution for deferred dower).
3. **Right of retention:** a widow in lawful possession of her husband's property can retain it until her dower is paid, but has no right to sell it.
4. **Dower debt** is a debt on the husband's estate after his death.

Flowchart: Requirements of a valid Muslim marriage



Examples

- A Sunni marriage performed without witnesses is irregular (fasid), not void; it can be regularised.
- A Shia man contracts a muta marriage for one year with a dower of Rs. 50,000. It ends automatically after one year.

Case Laws

Case Law: Abdul Kadir v Salima

Year: 1886 **Court:** Allahabad High Court (Full Bench; Mahmood J.)

Facts / Background: A Muslim husband sued for restitution of conjugal rights. The wife argued that she was entitled to refuse cohabitation because her prompt dower had not been paid. The marriage had been consummated.

Legal Issue: What is the nature of Muslim marriage and dower, and can a wife refuse cohabitation for non-payment of prompt dower after consummation?

Court's Decision / What the Court Held: Justice Mahmood explained that marriage among Muslims is not a sacrament but purely a civil contract. Dower is an obligation imposed on the husband as a mark of respect for the wife, and it may be compared to consideration in a contract. The Full Bench held that after consummation, the wife's right to refuse cohabitation on the ground of non-payment of prompt dower is lost, and her remedy is to sue for the dower.

Relevance to the Topic: The leading case on the nature of Muslim marriage as a contract and on dower.

Important Points

- Muslim marriage (nikah) is a civil contract (*Abdul Kadir v Salima*, 1886).
- Essentials: offer and acceptance, capacity, free consent, witnesses (Sunni), absence of prohibitions.
- Marriages may be valid (sahih), void (batil) or irregular (fasid).
- Muta is a temporary marriage recognised only among Ithna Ashari Shias.
- Dower (mahr) is the wife's right; it may be specified or proper, prompt or deferred.

Remember: A widow's right of retention for unpaid dower does not include the right to sell the property.

Topic 5.4: Dissolution of Marriage-Talak, The Muslim Women (Protection of Rights on Marriage) Act, 2019

Introduction

Muslim law permits the dissolution of marriage in several ways: by the husband (talaq), by mutual agreement (khula and mubarat), by the wife under a delegated power (talaq-e-tafweez), by judicial decree (under the Dissolution of Muslim Marriages Act, 1939), and in other forms such as ila, zihar and lian. One form, instant triple talaq (talaq-e-biddat), was declared unconstitutional by the Supreme Court in *Shayara Bano* (2017), and Parliament then enacted the **Muslim Women (Protection of Rights on Marriage) Act, 2019**, which makes it void and a punishable offence.

Definition

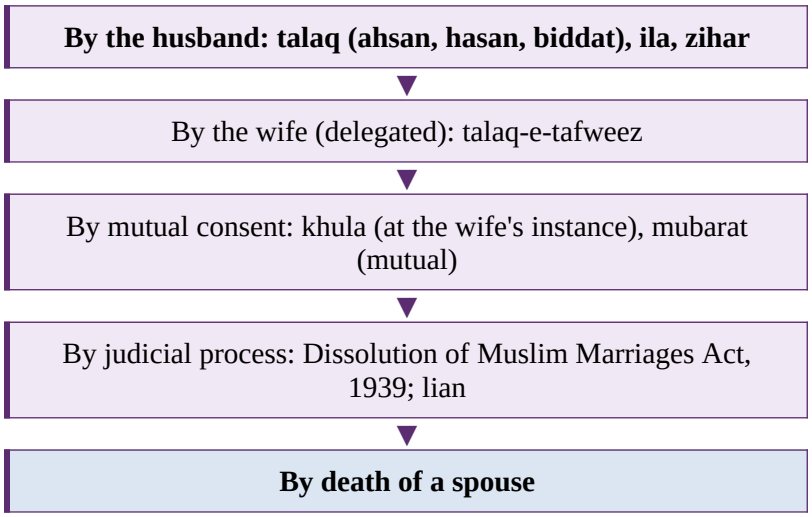
Talaq means the dissolution of marriage by the husband by pronouncing a formula of repudiation, in accordance with Muslim law.

Talaq-e-biddat (instant triple talaq): pronouncement of talaq three times at once, or in a single sentence, which was traditionally treated by Hanafis as immediately irrevocable.

Detailed Explanation

1. Modes of Dissolution of Muslim Marriage

Flowchart: Modes of dissolution of a Muslim marriage



2. Kinds of Talaq by the Husband

Kind	Procedure	Revocability
Talaq-e-ahsan (most approved)	A single pronouncement during a period of purity (tuhr), followed by abstinence during the iddat	Revocable during iddat; becomes irrevocable after iddat

Kind	Procedure	Revocability
Talaq-e-hasan (approved)	Three pronouncements in three successive periods of purity	Revocable after the first and second pronouncements; irrevocable on the third
Talaq-e-biddat (disapproved; instant triple talaq)	Three pronouncements at once, or one pronouncement clearly indicating irrevocable divorce	Traditionally irrevocable immediately; now void and an offence (2019 Act)

3. Other Forms

1. **Ila:** the husband swears not to have sexual relations with his wife and abstains for four months; the marriage is dissolved (Hanafi) or the wife may seek judicial dissolution.
2. **Zihar:** the husband compares his wife to a woman within prohibited degrees (e.g. his mother); the wife can refuse cohabitation until expiation and may seek judicial divorce.
3. **Talaq-e-tafweez:** the husband delegates his power of talaq to the wife or a third person, often in a pre-nuptial or post-nuptial agreement (e.g. if he takes a second wife).
4. **Khula:** divorce at the instance of the wife, with her giving some consideration (often giving up her dower) to the husband.
5. **Mubarat:** divorce by mutual consent, where both desire separation.
6. **Lian:** the husband falsely accuses the wife of adultery; she may seek dissolution by the court.

4. Requirements for a Valid Talaq (Judicial View)

In *Shamim Ara v State of UP* (2002), the Supreme Court held that a talaq must be (i) for a reasonable cause, and (ii) preceded by attempts at reconciliation between the husband and wife by two arbiters (one from each family). A mere plea of talaq in a written statement is not a valid talaq.

5. Shayara Bano and the 2019 Act

1. In *Shayara Bano v Union of India* (2017), the Supreme Court (3:2) set aside instant triple talaq.
2. **Muslim Women (Protection of Rights on Marriage) Act, 2019** (in force from 19 September 2018, as it replaced an Ordinance):

Section	Provision
3	Any pronouncement of talaq by a Muslim husband upon his wife, by words (spoken or written), electronic form or any other manner, is void and illegal
4	A husband who pronounces such talaq shall be punished with imprisonment up to three years and fine
5	The married Muslim woman is entitled to subsistence allowance for herself and dependent children, as determined by the Magistrate
6	She is entitled to custody of her minor children, as determined by the Magistrate
7	The offence is cognizable (if information is given by the wife or a relative by blood or marriage); compoundable at the instance of the wife with the Magistrate's permission; bail may be granted only after hearing the wife

3. The constitutional validity of the criminal provisions of the 2019 Act has been challenged before the Supreme Court.

6. Iddat

After divorce or death of the husband, the wife must observe a waiting period (iddat) before remarrying:

1. Divorce (consummated marriage): three menstrual courses (or three lunar months if not menstruating).
2. Death of husband: four months and ten days.
3. Pregnant woman: until delivery.
4. No iddat if the marriage was not consummated and dissolved by divorce.

Examples

- A husband sends three "talaq" messages on WhatsApp to his wife at once. Under the 2019 Act, the talaq is void and he can be punished with imprisonment up to three years.
- A wife who wishes to end the marriage offers to return her dower to the husband, who agrees. This is khula.

Case Laws

Case Law: Shayara Bano v Union of India

Year: 2017 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Shayara Bano's husband divorced her after 15 years of marriage by pronouncing talaq three times (talaq-e-biddat). She challenged the practice, along with polygamy and nikah halala, as unconstitutional.

Legal Issue: Is instant triple talaq (talaq-e-biddat) valid and constitutional?

Court's Decision / What the Court Held: By a 3:2 majority, the Court set aside instant triple talaq. Justices Nariman and Lalit held that the practice, recognised by the Shariat Application Act, 1937, is manifestly arbitrary and violates Article 14, as it allows a marriage to be broken whimsically and capriciously without attempts at reconciliation. Justice Kurian Joseph held that triple talaq is against the basic tenets of the Quran and is not part of Islamic law. The minority (Khehar CJ and Abdul Nazeer J.) held that it was part of personal law protected by Article 25, and directed an injunction for six months, asking Parliament to legislate.

Relevance to the Topic: The case invalidated instant triple talaq and led to the 2019 Act.

Case Law: Shamim Ara v State of Uttar Pradesh

Year: 2002 **Court:** Supreme Court of India

Facts / Background: In proceedings for maintenance under s.125 CrPC, the husband pleaded in his written statement that he had divorced his wife several years earlier, but there

was no proof of a pronouncement of talaq or of attempts at reconciliation.

Legal Issue: What are the requirements of a valid talaq, and can a plea of talaq in a written statement amount to a valid talaq?

Court's Decision / What the Court Held: The Court held that a talaq must be for a reasonable cause and must be preceded by attempts at reconciliation between the husband and wife by two arbiters, one chosen by the wife's family and the other by the husband's. A mere plea of previous divorce in a written statement is not a valid talaq. So the wife remained married and was entitled to maintenance.

Relevance to the Topic: The case laid down the conditions for a valid talaq in Indian law.

Important Points

- Kinds of talaq: ahsan, hasan and biddat; other forms: ila, zihar, tafweez, khula, mubarat, lian.
- Talaq requires reasonable cause and attempts at reconciliation (*Shamim Ara*, 2002).
- Instant triple talaq was set aside in *Shayara Bano* (2017).
- The 2019 Act makes it void (s.3) and punishable with up to three years' imprisonment (s.4); the wife gets subsistence allowance (s.5) and custody (s.6).
- Iddat: three courses on divorce; four months and ten days on death.

Remember: Talaq-e-ahsan and talaq-e-hasan remain valid forms of talaq.

Topic 5.5: Dissolution of Muslim Marriage Act, 1939

Introduction

Under classical Hanafi law (followed by most Indian Muslims), a wife had very limited grounds on which she could obtain a divorce through the court. Many Muslim women were forced to renounce Islam to escape unhappy marriages, as apostasy automatically dissolved the marriage. To remedy this, the **Dissolution of Muslim Marriages Act, 1939 (DMMA)** was passed, giving Muslim wives the right to seek dissolution of marriage through the court on specified grounds.

Definition

> The **Dissolution of Muslim Marriages Act, 1939** is a law that consolidates and clarifies the provisions of Muslim law relating to suits by women married under Muslim law for the dissolution of marriage, and removes doubts about the effect of a married Muslim woman's renunciation of Islam on her marriage.

Detailed Explanation

1. Grounds for Dissolution (Section 2)

A woman married under Muslim law is entitled to obtain a decree for the dissolution of her marriage on any one or more of the following grounds:

Clause	Ground
(i)	Whereabouts of the husband have not been known for a period of four years
(ii)	Husband has neglected or failed to provide for her maintenance for a period of two years
(iia)	Husband has taken an additional wife in contravention of the Muslim Family Laws Ordinance, 1961 (applicable in Pakistan; not relevant in India)
(iii)	Husband has been sentenced to imprisonment for a period of seven years or upwards
(iv)	Husband has failed to perform, without reasonable cause, his marital obligations for a period of three years
(v)	Husband was impotent at the time of marriage and continues to be so
(vi)	Husband has been insane for a period of two years, or is suffering from leprosy or a virulent venereal disease
(vii)	Option of puberty: she was given in marriage by her father or other guardian before she attained 15 years, repudiated the marriage before attaining 18 years, and the marriage was not consummated
(viii)	Husband treats her with cruelty, including habitual assault, associating with women of evil repute, attempting to force her to lead an immoral life, disposing of her property, obstructing her religious practice, or not treating her equitably with other wives (if he has more than one)
(ix)	Any other ground recognised as valid for dissolution of marriage under Muslim law

2. Provisos and Safeguards

1. **Ground (i):** the decree takes effect after six months; if the husband appears within that period and is willing to perform his duties, the court shall set aside the decree.
2. **Ground (iii):** no decree until the sentence has become final.
3. **Ground (v):** before passing a decree, the court shall, on the husband's application, give him one year to prove he has ceased to be impotent.

3. Effect of Conversion (Section 4)

1. The renunciation of Islam by a married Muslim woman, or her conversion to another faith, shall not by itself dissolve her marriage.
2. But she may seek dissolution on any of the grounds in s.2.
3. This does not apply to a woman who converted to Islam from another faith and then re-embraces her former faith.

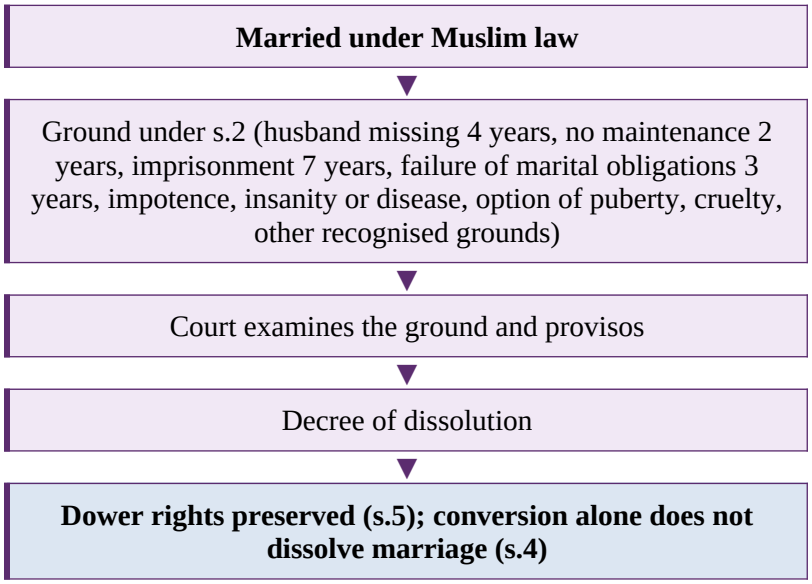
4. Rights to Dower Not Affected (Section 5)

Nothing in the Act affects any right which a married woman may have under Muslim law to her dower or any part of it on the dissolution of her marriage.

5. Importance

1. Gave Muslim wives a judicial remedy for divorce, reducing the need to resort to apostasy.
2. Introduced modern grounds, such as cruelty and failure to maintain, similar to those in other personal laws.

Flowchart: Wife's petition under the DMMA, 1939



Examples

- A Muslim wife's husband has not provided her maintenance for two and a half years. She can seek dissolution under s.2(ii).
- A Muslim husband has two wives and treats the second wife unfairly compared to the first. The second wife can seek dissolution on the ground of cruelty under s.2(viii)(f).

Case Laws

Case Law: Zohara Khatoon v Mohd. Ibrahim

Year: 1981 **Court:** Supreme Court of India

Facts / Background: A Muslim wife obtained a decree of dissolution of marriage under the DMMA, 1939. She then claimed maintenance under s.125 CrPC as a "divorced wife". The husband argued that "divorced wife" in s.125 covers only women divorced by the husband (talaq), not women who obtain dissolution through the court.

Legal Issue: Can a Muslim woman whose marriage has been dissolved by a court decree under the DMMA claim maintenance under s.125 CrPC as a "divorced wife"?

Court's Decision / What the Court Held: The Court held that the expression "divorced wife" in the Explanation to s.125(1) CrPC includes a woman whose marriage has been dissolved at her instance under the DMMA, as well as one divorced by the husband. So she was entitled to claim maintenance under s.125 (now s.144 BNSS).

Relevance to the Topic: The case shows that dissolution under the DMMA does not take away the wife's right to maintenance under the secular law.

Important Points

- The DMMA, 1939 gave Muslim wives the right to judicial divorce.
- Grounds (s.2): husband missing 4 years, no maintenance 2 years, imprisonment 7 years, failure of marital obligations 3 years, impotence, insanity or disease, option of puberty, cruelty, other grounds.
- Section 4: apostasy does not by itself dissolve the marriage.
- Section 5: dower rights are preserved.
- A woman divorced under the DMMA is a "divorced wife" for maintenance (*Zohara Khatoon*, 1981).

Remember: Unequal treatment of co-wives is a form of cruelty under s.2(viii)(f).

UNIT 6
Christian Law

Topics in this Unit

6.1 Who is a Christian
6.2 Christian law of Marriage-The Christian Marriage Act, 1872
6.3 The Indian Divorce Act, 2007

Topic 6.1: Who is a Christian

Introduction

Christian personal law in India governs marriage, divorce, succession and certain other matters for persons who are Christians. Before applying the Indian Christian Marriage Act, 1872 or the Divorce Act, 1869, the first question is whether a person is a Christian in law. The statutes define the term broadly, based on profession of the Christian religion.

Definition

> **Section 3 of the Indian Christian Marriage Act, 1872:** "'Christians' means persons professing the Christian religion"; "'Indian Christians' includes the Christian descendants of natives of India converted to Christianity, as well as such converts."

> **Section 3(3) of the Divorce Act, 1869:** "'Christian' means a person professing the Christian religion" (as substituted by the Indian Divorce (Amendment) Act, 2001, which also removed references to domicile restrictions in some provisions).

Detailed Explanation

1. Meaning of "Professing the Christian Religion"

1. A person who sincerely believes in and follows the Christian faith (belief in Jesus Christ as the Son of God and Saviour) is a Christian.
2. Formal baptism is the usual mode of entry into Christianity, but the test is genuine profession of the faith.
3. Christianity in India includes many denominations: Roman Catholic, Syrian Christian (Orthodox, Jacobite, Marthoma), Protestant churches (Church of South India, Church of North India, Baptist, Methodist, Lutheran), and others.

2. Categories

Category	Meaning
Christians	All persons professing the Christian religion
Indian Christians	Christian descendants of natives of India converted to Christianity, and such converts
Converts	Persons who have converted to Christianity from another religion

3. Laws Applicable to Christians

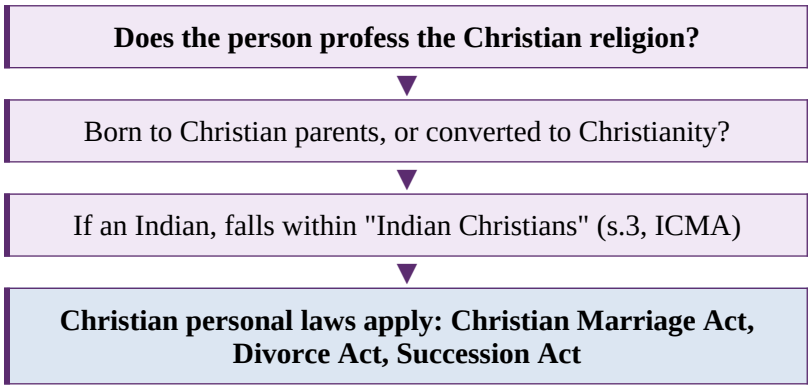
Subject	Law
Marriage	Indian Christian Marriage Act, 1872 (or Special Marriage Act, 1954, at their option)

Subject	Law
Divorce, nullity, judicial separation	Divorce Act, 1869 (amended in 2001)
Succession	Indian Succession Act, 1925 (Part V for intestate succession; testamentary provisions)
Guardianship	Guardians and Wards Act, 1890
Maintenance	Divorce Act (alimony), BNSS ss.144–147
Adoption	No personal law on adoption; adoption under the Juvenile Justice Act, 2015

4. Effect of Conversion

1. A Hindu who converts to Christianity ceases to be governed by Hindu law in matters of marriage and succession; conversion of a spouse is a ground for divorce under the HMA (s.13(1)(ii)).
2. A Christian who converts to another religion: conversion is a ground for divorce under s.10(1)(ii) of the Divorce Act.
3. Conversion does not by itself dissolve a marriage.

Flowchart: Is a person a Christian for personal law purposes?



Examples

- A Hindu woman converts to Christianity by baptism and genuinely professes the faith. She is a Christian, and her marriage to a Christian man may be solemnised under the Indian Christian Marriage Act, 1872.
- A person born in a Christian family who later converts to Islam ceases to be a Christian for personal law purposes.

Case Laws

Case Law: Soosai v Union of India

Year: 1985 **Court:** Supreme Court of India

Facts / Background: The petitioner, a cobbler who belonged to the Adi-Dravida (a

Scheduled Caste) community and had converted to Christianity, was denied benefits given to Scheduled Caste cobblers, because the Constitution (Scheduled Castes) Order, 1950 limited Scheduled Caste status to persons professing Hinduism, Sikhism or Buddhism.

Legal Issue: Does the exclusion of Christian converts from Scheduled Caste status violate Articles 14 and 15?

Court's Decision / What the Court Held: The Court upheld the Order, holding that the petitioner had not shown that the disabilities suffered by Scheduled Caste converts to Christianity were the same as those suffered by Hindu Scheduled Castes. Conversion to Christianity changes a person's religious identity, and different treatment was not shown to be discriminatory on the evidence.

Relevance to the Topic: The case illustrates the legal consequences of a person being a Christian, i.e. professing the Christian religion after conversion. (The question of extending SC status to Christian and Muslim converts is still under consideration.)

Important Points

- "Christian" means a person professing the Christian religion (s.3 ICMA; s.3 Divorce Act).
- "Indian Christians" includes Christian descendants of Indian converts and such converts.
- Christians are governed by the ICMA 1872, the Divorce Act 1869 and the Indian Succession Act 1925.
- Christians have no personal law of adoption; they may adopt under the JJ Act, 2015.
- *Soosai v Union of India* (1985): consequences of conversion to Christianity.

Remember: Profession of faith, not merely birth, determines whether a person is a Christian.

Topic 6.2: Christian law of Marriage-The Christian Marriage Act, 1872

Introduction

Marriages of Christians in India are governed by the **Indian Christian Marriage Act, 1872** (ICMA). The Act lays down who may solemnise a Christian marriage, the procedure for notice and certificates, the time and place of marriage, and the registration of marriages. It applies where one or both parties are Christians. Christians may also marry under the Special Marriage Act, 1954.

Definition

> **Section 4 ICMA (in part):** "Every marriage between persons one or both of whom is or are a Christian or Christians shall be solemnized in accordance with the provisions of the next following section; and any such marriage solemnized otherwise than in accordance with such provisions shall be void."

Detailed Explanation

1. Persons by Whom Marriages May Be Solemnised (Section 5)

1. Any person who has received **episcopal ordination**, in accordance with the rules of his church.
2. Any **clergyman of the Church of Scotland**, according to its rules.
3. Any **minister of religion licensed** under the Act to solemnise marriages.
4. A **Marriage Registrar** appointed under the Act.
5. Any person **licensed** under the Act to grant certificates of marriage between Indian Christians.

2. Time and Place of Marriage (Sections 10 and 11)

1. **Time:** marriages shall be solemnised between 6 a.m. and 7 p.m., except by clergymen of certain churches under special licence or in certain cases (s.10).
2. **Place:** marriages by ministers of religion shall be solemnised in a church, unless there is no church within five miles, or under a special licence (s.11).

3. Procedure for Marriages by Ministers of Religion (Part III)

1. **Notice of intended marriage** given by one of the parties to the minister (s.12).
2. **Publication** of the notice in the church (s.13).
3. **Certificate** issued by the minister after the notice period (s.17), on a declaration by the parties that there is no impediment (s.18).
4. **Solemnisation** in the presence of at least two witnesses besides the minister (s.25).
5. **Registration** in the marriage register (s.27–37).

4. Marriages by or in the Presence of a Marriage Registrar (Part V)

1. Notice to the Marriage Registrar (s.38).
2. Publication of the notice (s.39).

3. Certificate issued after 14 days if no objection (s.41).
4. Solemnisation in the presence of the Registrar and two witnesses (s.51).
5. Registration (s.52).

5. Marriages of Indian Christians (Part VI, Section 60)

A marriage between Indian Christians may be certified without the preliminary notice, if:

1. the age of the man is not under 21 years and the age of the woman is not under 18 years;
2. neither has a wife or husband living;
3. the parties declare, in the presence of a licensed person and two credible witnesses, that they take each other as lawful wife and husband.

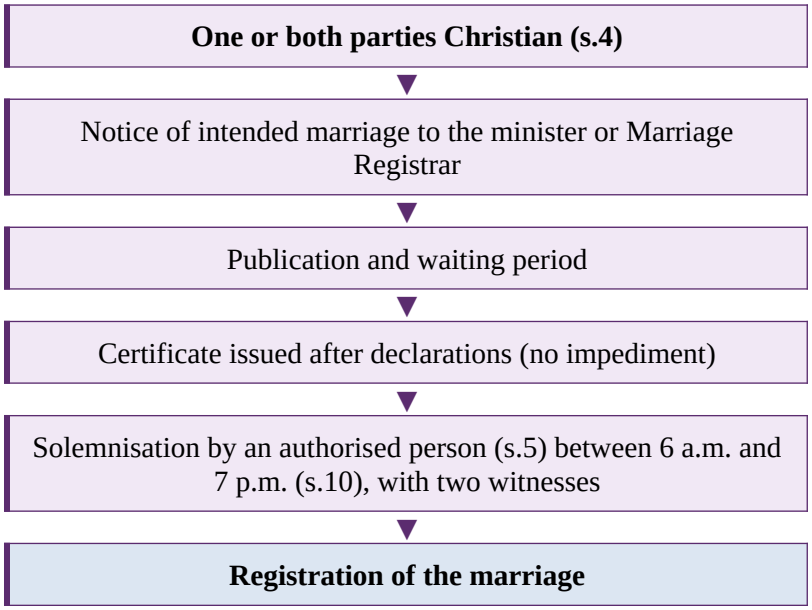
6. Prohibited Relationships and Personal Law (Section 88)

Nothing in the Act shall be deemed to validate any marriage which the personal law applicable to either of the parties forbids him or her to enter into (e.g. marriages within prohibited degrees according to church rules).

7. Penalties (Part VII)

1. Making false oath, declaration or notice (s.66).
2. Solemnising marriage without authority (s.68).
3. Solemnising marriage out of the prescribed time or without witnesses (s.69).

Flowchart: Solemnisation of a Christian marriage under the ICMA



Examples

- A Christian couple marries in a church before a priest who has received episcopal ordination, between 10 a.m. and 12 noon, with two witnesses. The marriage is valid under the ICMA.
- A Christian marriage performed by an unlicensed person who is not authorised under s.5 is void under s.4.

Case Laws

There is no widely cited Supreme Court judgment dealing with the procedure of solemnisation under the Indian Christian Marriage Act, 1872. The general principles of compulsory registration of marriages for all communities, including Christians, were laid down by the Supreme Court in *Seema v Ashwani Kumar* (2006) (see Topic 2.5). Matters relating to divorce and nullity of Christian marriages are governed by the Divorce Act, 1869, explained in the next topic, where the leading cases are discussed.

Important Points

- The ICMA, 1872 governs marriages where one or both parties are Christians.
- Marriages not solemnised according to s.5 are void (s.4).
- Authorised persons: episcopally ordained ministers, Church of Scotland clergymen, licensed ministers, Marriage Registrars, and persons licensed for Indian Christians.
- Time: 6 a.m. to 7 p.m. (s.10); place: church (s.11), with exceptions.
- Indian Christians: man at least 21, woman at least 18; no living spouse (s.60).
- Section 88: the Act does not validate marriages forbidden by personal law.

Remember: Christians may also marry under the Special Marriage Act, 1954.

Topic 6.3: The Indian Divorce Act, 2007

Introduction

The law of divorce for Christians in India is contained in the **Divorce Act, 1869** (originally called the Indian Divorce Act). The syllabus refers to it as "The Indian Divorce Act, 2007"; however, there is no separate Act of 2007. The 1869 Act was substantially amended by the **Indian Divorce (Amendment) Act, 2001**, which made the grounds of divorce equal for husband and wife, introduced divorce by mutual consent and renamed the Act the "Divorce Act". It was further amended in 2019 to remove leprosy as a ground. This topic explains the Act as it stands today.

Definition

> The **Divorce Act, 1869** is the law governing divorce, nullity of marriage, judicial separation, restitution of conjugal rights, alimony and custody of children for persons professing the Christian religion in India.

Detailed Explanation

1. Grounds for Divorce (Section 10, as amended in 2001)

Grounds available to either spouse (s.10(1)): the respondent has:

1. committed adultery;
2. ceased to be a Christian by conversion to another religion;
3. been incurably of unsound mind for a continuous period of not less than two years immediately preceding the petition;
4. (leprosy: omitted by the Personal Laws (Amendment) Act, 2019);
5. been suffering from venereal disease in a communicable form for a period of not less than two years;
6. not been heard of as being alive for a period of seven years or more by those who would naturally have heard;
7. wilfully refused to consummate the marriage, and the marriage has not therefore been consummated;
8. failed to comply with a decree for restitution of conjugal rights for a period of two years or upwards;
9. deserted the petitioner for at least two years immediately preceding the petition;
10. treated the petitioner with such cruelty as to cause a reasonable apprehension in the mind of the petitioner that it would be harmful or injurious to live with the respondent.

Additional grounds for the wife (s.10(2)): the husband has, since the solemnisation of the marriage, been guilty of rape, sodomy or bestiality.

2. Divorce by Mutual Consent (Section 10A)

1. A joint petition may be filed on the ground that the parties have been living separately for a period of **two years or more**, have not been able to live together, and have mutually agreed to dissolve the marriage.
2. After six months (and within 18 months) from the petition, on a motion of both parties, the court may pass a decree after inquiry.

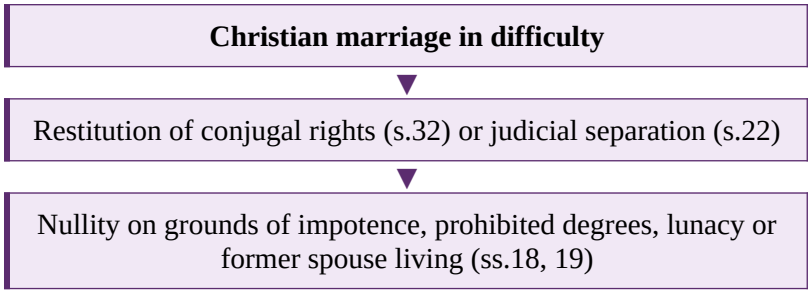
3. Other Matrimonial Remedies

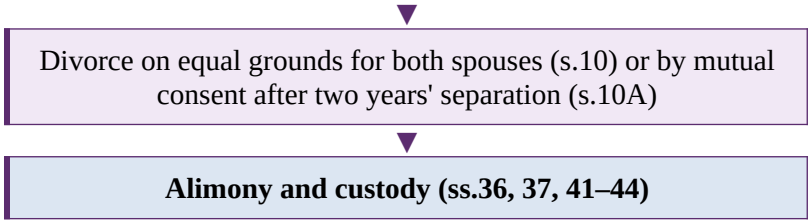
Remedy	Section	Grounds / Notes
Nullity of marriage	18, 19	Respondent impotent at the time of marriage and at the time of suit; parties within prohibited degrees of consanguinity or affinity; either party a lunatic or idiot at the time of marriage; former spouse living and former marriage in force
Judicial separation	22	Adultery, cruelty, or desertion for two years or upwards
Restitution of conjugal rights	32	Either spouse has withdrawn from the society of the other without reasonable excuse
Alimony pendente lite	36	To the wife during proceedings; application to be disposed of within 60 days of service
Permanent alimony	37	To the wife, considering the husband's ability and the conduct of the parties
Custody of children	41–44	Interim and final orders for custody, maintenance and education of minor children
Appeal	55	Appeal from decrees and orders

4. Important Changes by the 2001 Amendment

1. **Equality of grounds:** before 2001, a husband could seek divorce on the ground of adultery alone, but a wife had to prove adultery coupled with another ground (such as cruelty, desertion or bigamy). This discrimination was removed.
2. **Divorce by mutual consent** introduced (s.10A).
3. **Confirmation by High Court:** earlier, a decree of divorce by the district court had to be confirmed by the High Court (s.17); this requirement was removed.
4. **Cruelty and desertion** became independent grounds.
5. The Act was renamed the **Divorce Act**.

Flowchart: Matrimonial remedies under the Divorce Act, 1869





Examples

- A Christian wife whose husband has deserted her for three years can seek divorce under s.10(1)(ix).
- A Christian couple who have lived separately for two years and agree to divorce can file a joint petition under s.10A.

Case Laws

Case Law: Ammini E.J. v Union of India

Year: 1995 **Court:** Kerala High Court (Full Bench)

Facts / Background: Section 10 of the Indian Divorce Act, 1869 (as it then stood) allowed a husband to seek divorce on the ground of his wife's adultery alone, but required a wife to prove her husband's adultery coupled with another ground, such as cruelty, desertion or incestuous adultery. Christian women challenged this provision as discriminatory.

Legal Issue: Is the requirement that a Christian wife must prove adultery coupled with another ground (unlike the husband) constitutional?

Court's Decision / What the Court Held: The Full Bench held that the part of section 10 that required a wife to prove adultery along with another matrimonial offence (and, as interpreted, that did not allow divorce on the grounds of cruelty or desertion alone) was arbitrary and discriminatory, and violated Articles 14, 15 and 21. The words "adultery coupled with" were struck down, so that a wife could seek divorce on the ground of cruelty or desertion alone. This decision, and similar decisions of other High Courts (e.g. *Pragati Varghese v Cyril George Varghese*, Bombay High Court, 1997), led to the 2001 amendment.

Relevance to the Topic: The case led to equal divorce grounds for Christian husbands and wives.

Important Points

- The relevant law is the Divorce Act, 1869 (amended in 2001); there is no separate "Indian Divorce Act, 2007".
- Section 10: equal grounds for husband and wife; additional grounds for the wife (rape, sodomy, bestiality).
- Section 10A: mutual consent divorce after two years' separation.
- Nullity (ss.18–19), judicial separation (s.22), restitution (s.32), alimony (ss.36–37), custody (ss.41–44).

- The 2001 amendment removed discrimination, following cases such as *Ammini E.J.* (1995).
- Leprosy was removed as a ground in 2019.

Remember: Before 2001, a Christian wife had to prove adultery "coupled with" another ground; this is no longer required.

UNIT 7
Uniform Civil Code

Topics in this Unit

7.1 Article 44
7.2 The Special Marriage Act, 1954
7.3 The Family Courts Act, 1984
7.4 Maintenance : Sections 144 to 147 of B N S S, 2023
7.5 Shabano Begum Case
7.6 Muslim Women (Protection of Rights on Divorce) Act, 1986

Topic 7.1: Article 44

Introduction

India has different personal laws for different religious communities in matters such as marriage, divorce, maintenance, adoption and succession. Article 44 of the Constitution, a Directive Principle of State Policy, directs the State to endeavour to secure a **Uniform Civil Code (UCC)** for all citizens. The UCC has been one of the most debated issues in Indian constitutional law, involving questions of equality, gender justice, secularism and religious freedom.

Definition

> **Article 44:** "The State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India."

> A **Uniform Civil Code** means a single set of civil laws governing personal matters (marriage, divorce, maintenance, adoption, guardianship, succession and inheritance) applicable to all citizens irrespective of religion.

Detailed Explanation

1. Nature of Article 44

1. It is a Directive Principle (Part IV), so it is **not enforceable** by courts (Art 37).
2. It uses the word "endeavour", showing that it is a goal to be achieved gradually.
3. It applies to "citizens" and to the "territory of India".

2. Constituent Assembly Debates

1. Some members (e.g. Mohammad Ismail, Naziruddin Ahmad) opposed it as interfering with the religious freedom of minorities.
2. Dr. B.R. Ambedkar, K.M. Munshi and Alladi Krishnaswami Ayyar supported it, arguing that personal laws should not cover the entire field of civil life and that the UCC would promote national unity and gender equality. Ambedkar suggested that the UCC may initially be made applicable to those who voluntarily accept it.

3. Arguments For and Against a UCC

Arguments for	Arguments against
Promotes gender equality and justice	May interfere with religious freedom (Arts 25, 26)
Promotes national integration and secularism	India's diversity requires respect for different traditions
Simplifies the law	Fear of imposition of majority practices on minorities
Removes discrimination within personal laws	Lack of consensus among communities

Arguments for	Arguments against
Fulfils the constitutional directive	Reform within each personal law may be preferable

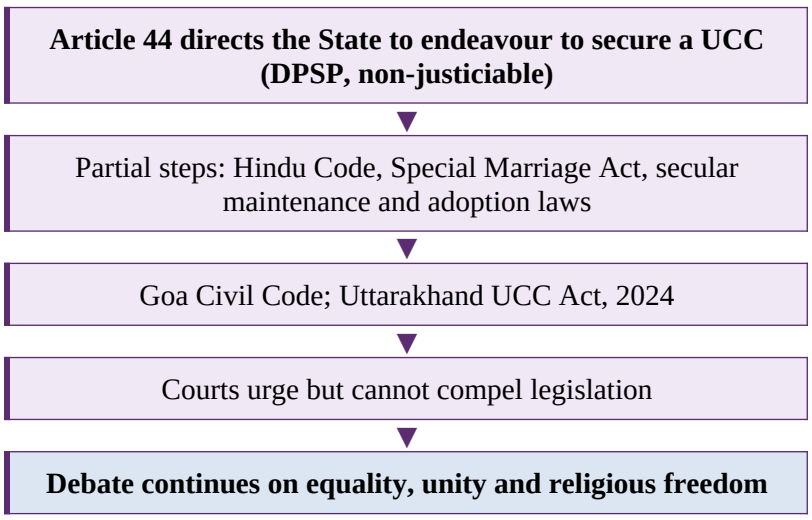
4. Steps towards Uniformity

1. **Hindu Code (1955–56):** codified and reformed Hindu law.
2. **Special Marriage Act, 1954:** an optional secular law of marriage for all.
3. **Secular laws applicable to all:** BNSS ss.144–147 (maintenance), Domestic Violence Act, 2005, Juvenile Justice Act, 2015 (adoption), Prohibition of Child Marriage Act, 2006, Guardians and Wards Act, 1890.
4. **Goa Civil Code:** based on the Portuguese Civil Code, 1867; applies to all residents of Goa.
5. **Uttarakhand Uniform Civil Code Act, 2024:** the first State UCC after independence, in force from 27 January 2025; it covers marriage, divorce, succession and live-in relationships, and excludes Scheduled Tribes.
6. **Law Commission:** the 21st Law Commission (2018 consultation paper) said a UCC was "neither necessary nor desirable at this stage" and suggested reforms within personal laws; the 22nd Law Commission invited public views again in 2023.

5. Judicial Observations

1. *Mohd. Ahmed Khan v Shah Bano Begum* (1985): regretted that Art 44 had remained a "dead letter".
2. *Sarla Mudgal v Union of India* (1995): urged the Government to consider a UCC.
3. *John Vallamattom v Union of India* (2003): observed that a common civil code would help the cause of national integration.
4. *Jose Paulo Coutinho v Maria Luiza Valentina Pereira* (2019): described Goa as a "shining example" of a uniform civil code.
5. Courts have also said that they cannot direct the legislature to enact a UCC, since it is a matter of policy (e.g. *Pannalal Bansilal Pitti v State of AP*, 1996; *Ahmedabad Women Action Group v Union of India*, 1997).

Flowchart: Path towards a Uniform Civil Code



Examples

- Under the Goa Civil Code, a married couple in Goa has a community of property (equal ownership), regardless of religion.
- Under the Uttarakhand UCC, marriages and live-in relationships must be registered, and polygamy is prohibited for all communities (other than Scheduled Tribes).

Case Laws

Case Law: John Vallamattom v Union of India

Year: 2003 **Court:** Supreme Court of India

Facts / Background: Section 118 of the Indian Succession Act, 1925 restricted the right of Christians to make bequests for religious or charitable purposes if they had a nephew, niece or near relative. The petitioner, a Catholic priest, challenged it as discriminatory under Articles 14, 15, 25 and 26.

Legal Issue: Is section 118 of the Indian Succession Act, which restricts only Christians in making charitable bequests, constitutional?

Court's Decision / What the Court Held: The Court struck down section 118 as discriminatory and violative of Article 14, since the restriction applied only to Christians, without any rational basis. Chief Justice V.N. Khare observed that it is a matter of regret that Article 44 had not been given effect, and that a common civil code will help the cause of national integration by removing contradictions based on ideologies.

Relevance to the Topic: The case contains important observations on the UCC and illustrates the problems of different personal laws.

Important Points

- Article 44 directs the State to endeavour to secure a UCC; it is non-justiciable.
- Supporters argue for equality and integration; opponents for religious freedom and diversity.
- Partial uniformity exists through secular laws and the Goa Civil Code.
- Uttarakhand UCC Act, 2024 (in force from 27 January 2025).
- Courts have urged a UCC (*Shah Bano*, *Sarla Mudgal*, *John Vallamattom*) but cannot compel Parliament.

Remember: A UCC is a constitutional goal, not an enforceable right.

Topic 7.2: The Special Marriage Act, 1954

Introduction

The Special Marriage Act, 1954 (SMA) provides a **secular form of marriage** that any two persons in India can use, irrespective of religion or caste. It is especially important for inter-religious and inter-caste couples who wish to marry without converting. It also allows persons already married under other forms to register their marriages under it. The SMA is often seen as a step towards a uniform civil law of marriage.

Definition

> The **Special Marriage Act, 1954** is an Act to provide a special form of marriage in certain cases, for the registration of such and certain other marriages, and for divorce. It applies to all citizens of India, of any religion, and to Indian nationals abroad.

Detailed Explanation

1. Conditions for a Special Marriage (Section 4)

1. Neither party has a spouse living.
2. Neither party is incapable of giving valid consent due to unsoundness of mind, or suffering from a mental disorder making them unfit for marriage and procreation, or subject to recurrent attacks of insanity.
3. The male has completed **21 years** and the female **18 years**.
4. The parties are not within the degrees of prohibited relationship (unless custom permits, for at least one party).
5. In Jammu and Kashmir (as earlier provided), both parties must be Indian citizens domiciled in the territories.

2. Procedure for Solemnisation

1. **Notice (s.5):** the parties give written notice to the Marriage Officer of the district where at least one of them has resided for at least 30 days.
2. **Publication (s.6):** the Marriage Officer enters the notice in the Marriage Notice Book and publishes it by affixing a copy at a conspicuous place in his office.
3. **Objection (s.7):** any person may object within 30 days on the ground that the marriage would contravene s.4. The Marriage Officer must inquire and decide within 30 days (s.8); an appeal lies to the district court.
4. **Declaration (s.11):** before solemnisation, the parties and three witnesses sign a declaration before the Marriage Officer.
5. **Solemnisation (s.12):** at the office of the Marriage Officer or another place within reasonable distance, in any form, but each party must say to the other, in the presence of the Marriage Officer and three witnesses, "I, (A), take thee (B), to be my lawful wife (or husband)".
6. **Certificate (s.13):** the Marriage Officer enters a certificate in the Marriage Certificate Book, which is conclusive evidence of the marriage.

3. Registration of Other Marriages (Section 15)

A marriage celebrated in any other form may be registered under the SMA if the conditions (no living spouse, age 21/18 at registration, sound mind, not prohibited degrees, living together as husband and wife) are satisfied.

4. Consequences of Marriage under the SMA

1. **Section 19:** the marriage of a member of an undivided family professing the Hindu, Buddhist, Sikh or Jaina religion under the SMA is deemed to effect his severance from the joint family.
2. **Section 21:** succession to the property of persons married under the SMA, and their children, is governed by the Indian Succession Act, 1925.
3. **Section 21A:** where both parties are Hindus, Buddhists, Sikhs or Jains, ss.19 and 21 do not apply, so the Hindu Succession Act continues to apply.

5. Matrimonial Remedies

1. **Restitution of conjugal rights (s.22)** and **judicial separation (s.23)**.
2. **Void marriages (s.24)** and **voidable marriages (s.25)**.
3. **Divorce (s.27):** grounds similar to the HMA, including adultery, desertion for two years, imprisonment for seven years, cruelty, mental disorder, venereal disease, and others; additional grounds for the wife.
4. **Divorce by mutual consent (s.28):** after living separately for one year or more.
5. **Section 29:** no divorce petition within one year of marriage, except for exceptional hardship or depravity.
6. **Alimony (ss.36, 37)** and **custody (s.38)**.

6. Same-Sex Marriage

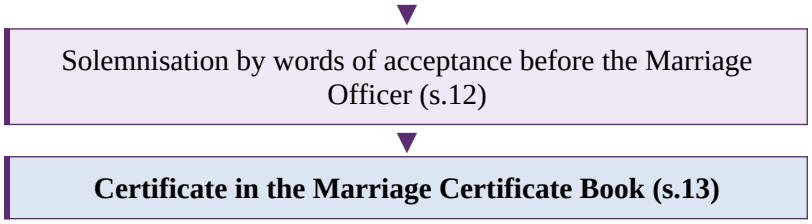
In *Supriyo Chakraborty v Union of India* (2023), the Supreme Court held that there is no fundamental right to marry and declined to read the SMA in a gender-neutral manner to include same-sex marriages, leaving the matter to Parliament.

7. Privacy Concerns about Notice

The 30-day public notice has been criticised as exposing inter-faith couples to harassment. In *Safiya Sultana v State of UP* (Allahabad High Court, 2021), the Court held that publication of the notice should be optional, at the request of the parties.

Flowchart: Marriage under the Special Marriage Act





Examples

- A Hindu woman and a Muslim man wish to marry without either converting. They can marry under the SMA.
- A Hindu couple married under the HMA may register their marriage under s.15 of the SMA; under s.21A, the Hindu Succession Act will continue to apply to them.

Case Laws

Case Law: Supriyo Chakraborty v Union of India

Year: 2023 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Several same-sex couples and LGBTQ+ persons challenged the Special Marriage Act and other marriage laws for not recognising same-sex marriages, and asked the Court to read the SMA in a gender-neutral manner.

Legal Issue: Is there a fundamental right to marry, and can the Special Marriage Act be interpreted to include same-sex marriages?

Court's Decision / What the Court Held: The Court unanimously held that there is no unqualified fundamental right to marry under the Constitution, and declined to strike down or read words into the SMA to include same-sex marriages, as that would be a matter for the legislature. The Court recognised that queer persons have the right to choose their partners and should not face discrimination, and recorded the Union's assurance to form a committee to examine the rights and entitlements of queer couples. By majority, it held that queer couples do not have a right to civil unions or joint adoption under the existing law.

Relevance to the Topic: The case defines the present limits of the SMA as a secular marriage law.

Important Points

- The SMA, 1954 provides a secular form of marriage for all citizens.
- Conditions (s.4): no living spouse, sound mind, age 21/18, not within prohibited degrees.
- Procedure: notice, publication, objection, declaration, solemnisation and certificate (ss.5–13).
- Section 15: registration of marriages celebrated in other forms.
- Sections 19, 21 and 21A: effect on joint family and succession.
- Divorce (s.27), mutual consent (s.28), one-year bar (s.29).
- Same-sex marriage not recognised (*Supriyo Chakraborty*, 2023).

Remember: Under the SMA, no religious ceremony is required.

Topic 7.3: The Family Courts Act, 1984

Introduction

Family disputes are different from ordinary civil disputes: they involve emotions, relationships and children. Adversarial court procedures can make such disputes worse. The **Family Courts Act, 1984** was enacted to establish special courts for family matters, with emphasis on conciliation, speedy settlement and a less formal procedure. The Law Commission (59th Report, 1974) and women's organisations had recommended such courts.

Definition

> The **Family Courts Act, 1984** is an Act to provide for the establishment of Family Courts with a view to promote conciliation in, and secure speedy settlement of, disputes relating to marriage and family affairs and for matters connected therewith.

Detailed Explanation

1. Establishment of Family Courts (Section 3)

1. The State Government, after consulting the High Court, shall establish a Family Court for every area in the State comprising a city or town whose population exceeds **one million**.
2. It may establish Family Courts for other areas as well.

2. Appointment of Judges (Section 4)

1. Judges are appointed by the State Government with the concurrence of the High Court.
2. Qualifications: at least seven years in a judicial office, or as a member of a tribunal, or as an advocate of a High Court, or such other qualifications as prescribed.
3. Preference is given to persons committed to the protection and preservation of the institution of marriage and the promotion of the welfare of children, and to women.

3. Jurisdiction (Section 7)

A Family Court has the jurisdiction exercisable by a district court or subordinate civil court in suits and proceedings relating to:

1. nullity of marriage, restitution of conjugal rights, judicial separation or dissolution of marriage;
2. the validity of a marriage or the matrimonial status of a person;
3. property of the parties or of either of them;
4. orders or injunctions arising out of a marital relationship;
5. declaration as to the legitimacy of a person;
6. maintenance;
7. guardianship of the person or custody of, or access to, a minor.

It also exercises the jurisdiction of a Magistrate under Chapter IX of the CrPC (now ss.144–147 BNSS) relating to maintenance of wife, children and parents (s.7(2)).

4. Exclusion of Jurisdiction of Other Courts (Section 8)

Where a Family Court is established, no district court or subordinate civil court, and no Magistrate, shall have jurisdiction over the matters covered by s.7 in that area.

5. Procedure

1. **Duty to make efforts for settlement (s.9):** the Family Court shall, in the first instance, endeavour to assist and persuade the parties to arrive at a settlement.
2. **Procedure generally (s.10):** the Code of Civil Procedure applies, but the Family Court may lay down its own procedure to arrive at a settlement or the truth.
3. **Proceedings in camera (s.11):** proceedings may be held in camera if the Court desires, and shall be so held if either party desires.
4. **Assistance of medical and welfare experts (s.12).**
5. **Right to legal representation (s.13):** no party is entitled as of right to be represented by a legal practitioner; but the Court may, in the interest of justice, seek the assistance of a legal expert as amicus curiae.
6. **Application of the Evidence Act (s.14):** the Court may receive as evidence any report, statement or document that assists it, whether or not admissible under the Evidence Act (now the Bharatiya Sakshya Adhiniyam, 2023).
7. **Record of oral evidence (s.15)** and **judgment (s.16):** concise statement of the case.

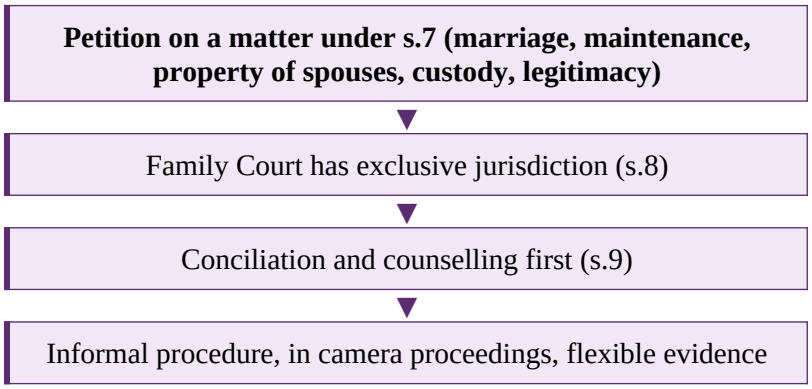
6. Appeals (Section 19)

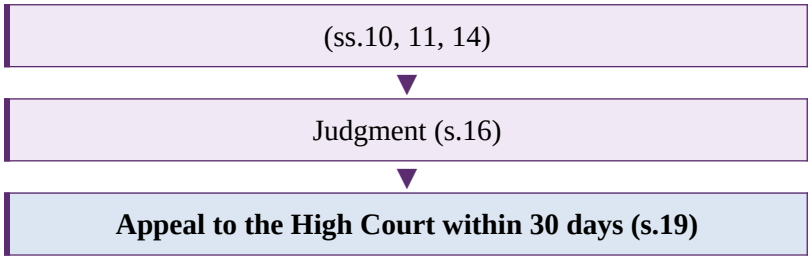
1. An appeal lies from every judgment or order (not interlocutory) of a Family Court to the High Court, on facts and law.
2. The appeal must be filed within **30 days** from the date of the judgment or order.
3. No appeal lies from a decree passed with the consent of the parties, or from an order under Chapter IX CrPC (BNSS ss.144–147) passed after the 1991 amendment, except by way of revision (s.19(4)).

7. Objectives and Significance

1. Conciliation and settlement rather than litigation.
2. Speedy and inexpensive justice.
3. Informal and less adversarial procedure.
4. Protection of the institution of marriage and the welfare of children.

Flowchart: Proceedings before a Family Court





Examples

- A wife files a petition for maintenance and custody of her child in a city where a Family Court has been established. Only the Family Court can hear it.
- Before hearing a divorce case, the Family Court refers the parties to a counsellor to explore reconciliation.

Case Laws

Case Law: K.A. Abdul Jaleel v T.A. Shahida

Year: 2003 **Court:** Supreme Court of India

Facts / Background: After a Muslim couple's marriage was dissolved, the former wife filed a suit in the Family Court relating to property that she claimed belonged to her, in connection with the marriage. The husband argued that the Family Court had no jurisdiction over property disputes between former spouses once the marriage had ended.

Legal Issue: Does a Family Court have jurisdiction over property disputes between former spouses arising out of the marriage, after the marriage has been dissolved?

Court's Decision / What the Court Held: The Court held that the Family Courts Act must be given a liberal and purposive interpretation. The expression "disputes relating to property between the parties to a marriage" in s.7 includes disputes between former spouses arising out of the marital relationship, even after the marriage has been dissolved. The Family Court had jurisdiction.

Relevance to the Topic: The case explains the wide jurisdiction of Family Courts under s.7.

Important Points

- The Family Courts Act, 1984 aims at conciliation and speedy settlement of family disputes.
- Family Courts are mandatory for cities and towns with a population over one million (s.3).
- Jurisdiction over matrimonial causes, property of spouses, maintenance, custody, legitimacy (s.7), and maintenance under BNSS (s.7(2)).
- Exclusive jurisdiction where established (s.8).
- Duty of conciliation (s.9); informal procedure; no right to a lawyer as of right (s.13).
- Appeal to the High Court within 30 days (s.19).
- Jurisdiction extends to former spouses (*K.A. Abdul Jaleel*, 2003).

Remember: Family Courts promote settlement, not merely adjudication.

Topic 7.4: Maintenance : Sections 144 to 147 of B N S S, 2023

Introduction

Maintenance laws protect wives, children and parents who cannot support themselves from destitution. Apart from the personal laws, there is a **secular and summary remedy** that applies to all persons irrespective of religion. It was earlier contained in sections 125 to 128 of the Code of Criminal Procedure, 1973. From 1 July 2024, it is contained in **sections 144 to 147 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)**, with substantially the same provisions.

Definition

> **Section 144(1) BNSS (old s.125(1) CrPC):** "If any person having sufficient means neglects or refuses to maintain (a) his wife, unable to maintain herself; or (b) his legitimate or illegitimate minor child, whether married or not, unable to maintain itself; or (c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself; or (d) his father or mother, unable to maintain himself or herself, a Magistrate of the first class may, upon proof of such neglect or refusal, order such person to make a monthly allowance for the maintenance of his wife or such child, father or mother, at such monthly rate, as such Magistrate thinks fit, and to pay the same to such person as the Magistrate may from time to time direct."

Detailed Explanation

1. Correspondence of Sections

BNSS, 2023	CrPC, 1973	Subject
s.144	s.125	Order for maintenance of wives, children and parents
s.145	s.126	Procedure
s.146	s.127	Alteration in allowance
s.147	s.128	Enforcement of order of maintenance

2. Who Can Claim (Section 144(1))

1. **Wife** unable to maintain herself (including a divorced wife who has not remarried: Explanation (b)).
2. **Minor child**, legitimate or illegitimate, married or not, unable to maintain itself (a married minor daughter's husband is primarily liable if he has means).
3. **Major child** (not a married daughter) unable to maintain itself due to physical or mental abnormality or injury.
4. **Father or mother** unable to maintain himself or herself (a daughter is also liable to maintain her parents).

3. Conditions

1. The person against whom the order is sought has **sufficient means** (an able-bodied person is presumed to have means).
2. He has **neglected or refused** to maintain the claimant.
3. The claimant is **unable to maintain** himself or herself.

4. Amount and Interim Maintenance

1. There is **no upper limit** on the amount (the ceiling of Rs. 500 was removed in 2001).
2. **Interim maintenance** and expenses of proceedings may be ordered during the pendency of the case, and the application for it should, as far as possible, be disposed of within 60 days from the date of service of notice.
3. Maintenance may be ordered from the date of the order or the date of application (*Rajnesh v Neha*, 2020: from the date of application).

5. Disentitlement of the Wife (Section 144(4) and (5))

A wife is not entitled to maintenance if:

1. she is living in adultery;
2. she refuses to live with her husband without sufficient reason; or
3. they are living separately by mutual consent.

Sufficient reason: if the husband has married another woman or keeps a mistress, the wife's refusal to live with him is justified (Explanation to s.144(3)).

6. Procedure (Section 145)

1. Proceedings may be taken in any district where the respondent is, or where he or the wife resides, or where he last resided with the wife, or where the father or mother resides.
2. Evidence is taken in the presence of the respondent or his pleader; ex parte orders are possible if he wilfully avoids service, subject to being set aside on good cause within three months.
3. The procedure is summary.

7. Alteration (Section 146)

The Magistrate may alter the allowance on proof of a change in circumstances, and must cancel or vary it where the wife has remarried or obtained the whole of the sum due under customary or personal law on divorce.

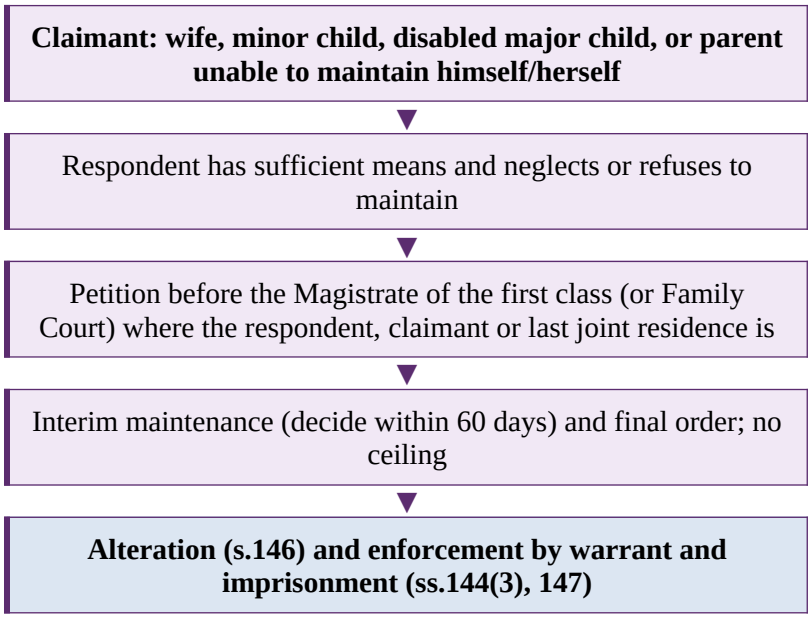
8. Enforcement (Section 147, with s.144(3))

1. If the person fails without sufficient cause to comply with the order, the Magistrate may issue a warrant for levying the amount as fines are levied, and may sentence him to imprisonment for each month's allowance remaining unpaid, for up to one month or until payment (s.144(3)).
2. An application must be made within one year from the date the amount became due.
3. The order can be enforced in any place where the person against whom it is made may be (s.147).

9. Changes in BNSS

The BNSS has retained the substance of the CrPC provisions. The main changes are terminological and structural (e.g. references to "Magistrate of the first class" in place of separate references to Metropolitan Magistrates, as the BNSS has removed the category of Metropolitan Magistrates).

Flowchart: Claiming maintenance under s.144 BNSS



Examples

- A wife who has been driven out of the matrimonial home and has no income can claim maintenance from her husband under s.144 BNSS, irrespective of her religion.
- An elderly mother who has no income can claim maintenance from her son and daughter under s.144(1)(d).

Case Laws

Case Law: Rajnesh v Neha

Year: 2020 **Court:** Supreme Court of India

Facts / Background: In a maintenance dispute, the Court noticed that there were overlapping maintenance claims under different laws (HMA, HAMA, Domestic Violence Act and s.125 CrPC), and there was no uniformity about the date from which maintenance should be paid, the criteria for determining the amount, or the disclosure of income.

Legal Issue: What guidelines should govern the award of maintenance in matrimonial cases?

Court's Decision / What the Court Held: The Court laid down comprehensive guidelines: (i) in cases of overlapping jurisdiction, the claimant must disclose previous proceedings and orders, and the amount awarded in one proceeding must be adjusted in others; (ii) both parties must file an affidavit of disclosure of assets and liabilities in the prescribed format; (iii) criteria for fixing maintenance include the status of the parties, reasonable needs of the

wife and children, the wife's qualifications and employment, the husband's income and liabilities; (iv) maintenance shall be awarded from the date of the application in all cases; (v) enforcement by all modes, including civil detention and attachment.

Relevance to the Topic: The leading case on maintenance procedure and quantum, applicable to s.144 BNSS.

Case Law: Mohd. Abdul Samad v State of Telangana

Year: 2024 **Court:** Supreme Court of India

Facts / Background: A Muslim woman who had been divorced by her husband was awarded interim maintenance under s.125 CrPC by a Family Court. The husband argued that, because of the Muslim Women (Protection of Rights on Divorce) Act, 1986, a divorced Muslim woman could not claim maintenance under s.125.

Legal Issue: Can a divorced Muslim woman claim maintenance under s.125 CrPC despite the 1986 Act?

Court's Decision / What the Court Held: The Court held that s.125 CrPC is a secular provision applicable to all women, including divorced Muslim women. The 1986 Act does not take away the right of a divorced Muslim woman to claim maintenance under s.125; it is an additional remedy. A Muslim woman may choose either remedy.

Relevance to the Topic: The case confirms that the secular maintenance remedy (now s.144 BNSS) is available to women of all religions.

Important Points

- BNSS ss.144–147 replaced CrPC ss.125–128 from 1 July 2024, with the same substance.
- Claimants: wife (including divorced wife not remarried), minor children, disabled major children, parents.
- No upper limit; interim maintenance to be decided within 60 days.
- Disentitlement: adultery, refusal to live without sufficient reason, separation by mutual consent.
- Enforcement by warrant and imprisonment; application within one year of the amount becoming due.
- *Rajnesh v Neha* (2020): guidelines; maintenance from the date of application.
- *Mohd. Abdul Samad* (2024): divorced Muslim women can claim under s.125 CrPC (now s.144 BNSS).

Remember: Section 144 BNSS is secular and applies to all religions.

Topic 7.5: Shabano Begum Case

Introduction

Mohd. Ahmed Khan v Shah Bano Begum (1985) is one of the most famous and controversial cases in Indian family law. The Supreme Court held that a divorced Muslim woman is entitled to maintenance under section 125 CrPC beyond the iddat period, if she is unable to maintain herself. The judgment provoked widespread debate on personal law, gender justice, secularism and the Uniform Civil Code, and led Parliament to enact the Muslim Women (Protection of Rights on Divorce) Act, 1986.

Definition

> The **Shah Bano case** refers to the Supreme Court's Constitution Bench decision in *Mohd. Ahmed Khan v Shah Bano Begum* (1985), which held that s.125 CrPC applies to all, including Muslims, and that a divorced Muslim woman who cannot maintain herself is entitled to maintenance from her former husband beyond the iddat period.

Detailed Explanation

1. Facts of the Case

1. Shah Bano, aged about 62, had been married to Mohd. Ahmed Khan, an advocate of Indore, for over 40 years and had five children.
2. In 1975, she was driven out of the matrimonial home. In 1978, she filed a petition under s.125 CrPC for maintenance.
3. Her husband then divorced her by irrevocable talaq, and claimed that he had paid her maintenance for the iddat period and the deferred dower (mahr), so he had no further liability.
4. The Magistrate awarded a small maintenance; the High Court enhanced it. The husband appealed to the Supreme Court.

2. Issues

1. Does s.125 CrPC apply to Muslims, overriding Muslim personal law?
2. Is a divorced Muslim woman entitled to maintenance under s.125 beyond the iddat period?
3. Is mahr (dower) an amount payable "on divorce" so as to bar maintenance under s.127(3)(b) CrPC?

3. Decision

1. The Constitution Bench (Chief Justice Y.V. Chandrachud) unanimously held that s.125 CrPC is a secular provision that applies to all persons, irrespective of religion. It is meant to prevent vagrancy and destitution.
2. A divorced Muslim woman who is unable to maintain herself is entitled to maintenance under s.125 beyond the iddat period.

3. Mahr is not an amount payable "on divorce" within s.127(3)(b), because it is a mark of respect to the wife, payable in consideration of marriage, not divorce.
4. The Court, after examining verses of the Quran (especially Aiyat 241 and 242 of Sura II), held that the Quran imposes an obligation on the husband to make provision ("mata") for a divorced wife.
5. The Court regretted that Article 44 (UCC) had remained a dead letter.

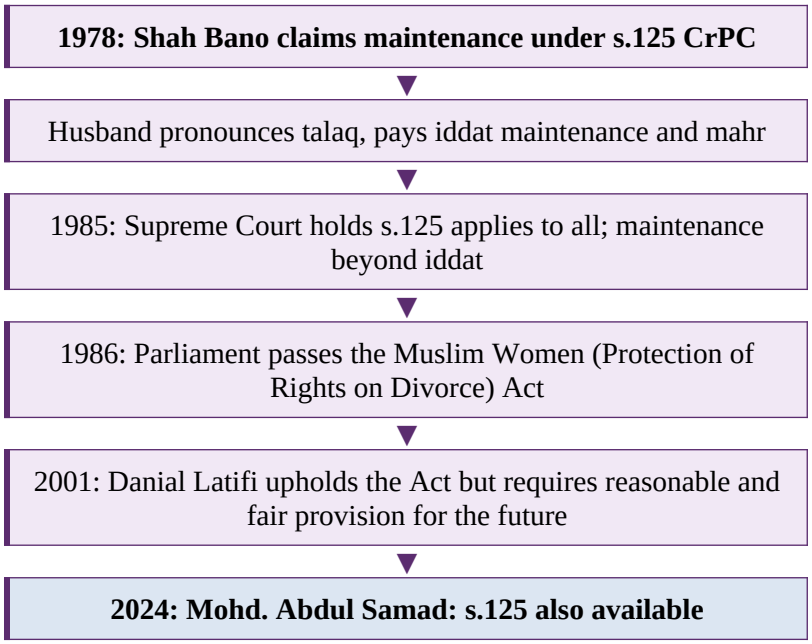
4. Aftermath

1. There were strong protests from some sections of the Muslim community, who saw the judgment as interference with personal law.
2. Parliament enacted the **Muslim Women (Protection of Rights on Divorce) Act, 1986**, which seemed to limit the husband's liability to the iddat period.
3. In *Danial Latifi v Union of India* (2001), the Supreme Court upheld the 1986 Act but interpreted it to require a husband to make a reasonable and fair provision for the future of the divorced wife within the iddat period, thus preserving the essence of Shah Bano.
4. In *Mohd. Abdul Samad v State of Telangana* (2024), the Court held that a divorced Muslim woman can also claim maintenance under s.125 CrPC.

5. Significance

1. Affirmed the secular nature of s.125 CrPC (now s.144 BNSS).
2. Recognised the right of divorced Muslim women to maintenance.
3. Triggered national debate on personal law reform and the UCC.

Flowchart: The Shah Bano saga



Examples

- Following Shah Bano, a Muslim woman divorced after 30 years of marriage, with no income, could claim monthly maintenance from her former husband beyond the iddat period.

- After *Danial Latifi* and *Mohd. Abdul Samad*, such a woman can claim a reasonable and fair provision under the 1986 Act, or maintenance under s.144 BNSS.

Case Laws

Case Law: Mohd. Ahmed Khan v Shah Bano Begum

Year: 1985 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: Shah Bano, aged 62, was divorced by her husband, an advocate, after more than 40 years of marriage. She claimed maintenance under s.125 CrPC. The husband argued that under Muslim personal law, his liability ended after the iddat period, and that he had paid the mahr.

Legal Issue: (i) Does s.125 CrPC apply to Muslims? (ii) Is a divorced Muslim woman entitled to maintenance beyond iddat? (iii) Is mahr an amount payable on divorce under s.127(3)(b)?

Court's Decision / What the Court Held: The Court held that s.125 is a secular provision applicable to all; a divorced Muslim woman unable to maintain herself is entitled to maintenance beyond the iddat period; mahr is not an amount payable on divorce, and so does not bar maintenance. The Court relied on the Quran to show that the husband has an obligation to make provision for the divorced wife, and urged the enactment of a Uniform Civil Code.

Relevance to the Topic: The landmark case on maintenance for divorced Muslim women and the secular nature of s.125 CrPC.

Important Points

- *Shah Bano* (1985): s.125 CrPC applies to all; divorced Muslim women can claim maintenance beyond iddat.
- Mahr is not an amount payable on divorce.
- The Court relied on the Quran and regretted the non-implementation of Art 44.
- Parliament responded with the 1986 Act; *Danial Latifi* (2001) upheld and interpreted it.
- *Mohd. Abdul Samad* (2024) confirmed the availability of s.125.

Remember: Shah Bano is a landmark in the debate on personal law and gender justice.

Topic 7.6: Muslim Women (Protection of Rights on Divorce) Act, 1986

Introduction

After the Shah Bano judgment (1985), Parliament enacted the **Muslim Women (Protection of Rights on Divorce) Act, 1986** to "protect the rights of Muslim women who have been divorced by, or have obtained divorce from, their husbands". It was widely seen as an attempt to overturn Shah Bano by limiting the husband's liability to the iddat period. However, in *Danial Latifi v Union of India* (2001), the Supreme Court interpreted it in a way that protects divorced Muslim women.

Definition

> The **Muslim Women (Protection of Rights on Divorce) Act, 1986** is an Act to protect the rights of Muslim women who have been divorced by, or have obtained divorce from, their husbands and to provide for matters connected therewith or incidental thereto.

Detailed Explanation

1. Main Provisions

Section	Provision
2(a)	"Divorced woman" means a Muslim woman who was married according to Muslim law and has been divorced by, or has obtained divorce from, her husband in accordance with Muslim law
3(1)(a)	A divorced woman is entitled to a reasonable and fair provision and maintenance to be made and paid to her within the iddat period by her former husband
3(1)(b)	Where she maintains the children born to her before or after divorce, a reasonable and fair provision and maintenance for a period of two years from the respective dates of birth of such children, to be made and paid by the former husband
3(1)(c)	An amount equal to the sum of mahr or dower agreed to be paid to her at the time of marriage or at any time thereafter
3(1)(d)	All the properties given to her before or at the time of marriage or after the marriage by her relatives, friends, husband or his relatives
3(2)	If these are not paid or delivered, she or her representative can apply to a Magistrate
3(3)	The Magistrate may order the former husband to pay a reasonable and fair provision and maintenance, considering her needs, the standard of life during marriage and his means, within one month
4	If she has not remarried and cannot maintain herself after the iddat period, the Magistrate may order her relatives who would inherit her property (in proportion to their shares), or her children or parents, to maintain her; if none can, the State Wakf Board may be ordered to pay
5	Option to be governed by ss.125–128 CrPC, if the divorced woman and her former husband declare so jointly or separately on the first date of hearing

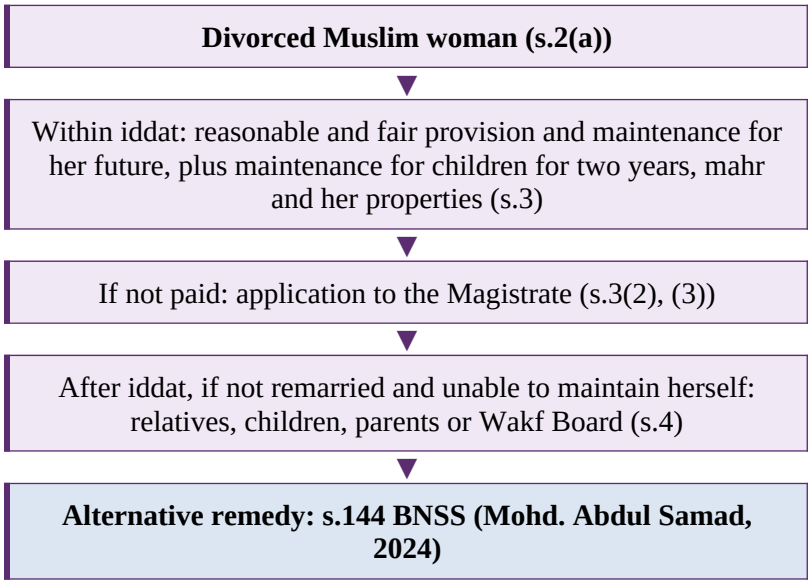
2. Interpretation in Danial Latifi (2001)

1. The words "**provision**" and "**maintenance**" in s.3(1)(a) are different; "provision" means something made in advance for the future needs of the divorced wife.
2. The husband's liability to make a reasonable and fair provision for the future of the divorced wife (including maintenance beyond iddat) must be fulfilled **within** the iddat period, but the provision is not limited to the iddat period.
3. If he fails, she can approach the Magistrate under s.3(2).
4. Thus interpreted, the Act does not violate Articles 14, 15 and 21.
5. The liability of relatives and the Wakf Board under s.4 arises only if the husband's provision is not available.

3. Relationship with Section 144 BNSS (s.125 CrPC)

1. Section 5 allowed parties to opt for s.125 CrPC.
2. In *Mohd. Abdul Samad v State of Telangana* (2024), the Supreme Court held that a divorced Muslim woman can claim maintenance under s.125 CrPC (now s.144 BNSS) irrespective of the 1986 Act, since the secular remedy is not excluded.

Flowchart: Rights of a divorced Muslim woman under the 1986 Act



Examples

- A Muslim man divorces his wife after 20 years of marriage. Within the iddat period, he must make a reasonable and fair provision for her future, such as a lump sum or property, in addition to returning her dower and properties.
- If the former husband fails to pay, she can apply to the Magistrate, who may order payment within one month.

Case Laws

Case Law: Danial Latifi v Union of India

Year: 2001 **Court:** Supreme Court of India (Constitution Bench)

Facts / Background: The constitutional validity of the Muslim Women (Protection of Rights on Divorce) Act, 1986 was challenged on the ground that it deprived divorced Muslim women of the right to maintenance under s.125 CrPC, which was available to all other women, and thus violated Articles 14, 15 and 21.

Legal Issue: Is the 1986 Act constitutional, and what is the extent of the former husband's liability under s.3(1)(a)?

Court's Decision / What the Court Held: The Court upheld the validity of the Act, but interpreted s.3(1)(a) to mean that a Muslim husband is liable to make a reasonable and fair provision for the future of the divorced wife, which obviously includes her maintenance, and this must be made within the iddat period. The liability is not confined to the iddat period. A divorced woman who has not remarried and cannot maintain herself after iddat can proceed against her relatives and the Wakf Board under s.4. So interpreted, the Act does not offend Articles 14, 15 and 21.

Relevance to the Topic: The leading case interpreting the 1986 Act, preserving the substance of *Shah Bano*.

Important Points

- The 1986 Act was enacted after *Shah Bano*.
- Section 3: reasonable and fair provision and maintenance within iddat; maintenance for children for two years; mahr; and properties.
- Section 4: relatives and the Wakf Board liable after iddat in certain cases.
- Section 5: option to be governed by s.125 CrPC.
- *Danial Latifi* (2001): provision for the future must be made within iddat but is not limited to it.
- *Mohd. Abdul Samad* (2024): s.125 CrPC (now s.144 BNSS) is also available.

Remember: "Provision" and "maintenance" in s.3(1)(a) mean different things (*Danial Latifi*).

References / Bibliography

Statutes

- The Hindu Marriage Act, 1955.
- The Hindu Adoptions and Maintenance Act, 1956.
- The Hindu Minority and Guardianship Act, 1956.
- The Hindu Succession Act, 1956 (as amended in 2005).
- The Muslim Personal Law (Shariat) Application Act, 1937.
- The Dissolution of Muslim Marriages Act, 1939.
- The Muslim Women (Protection of Rights on Divorce) Act, 1986.
- The Muslim Women (Protection of Rights on Marriage) Act, 2019.
- The Indian Christian Marriage Act, 1872.
- The Divorce Act, 1869 (formerly the Indian Divorce Act; amended in 2001).
- The Special Marriage Act, 1954.
- The Family Courts Act, 1984.
- The Bharatiya Nagarik Suraksha Sanhita, 2023 (ss.144–147).
- The Prohibition of Child Marriage Act, 2006.

Recommended Books (as in the syllabus)

- Ramesh Chandra Nagpal, Modern Hindu Law.
- Prof. G.C.V. Subba Rao, Family Law in India.
- Mayne, Treatise on Hindu Law and Usage.
- Mulla, Principles of Hindu Law.
- Dr. Tahir Mahmood, The Muslim Law of India.

Note on Case Laws

- Cases are cited with the court and year of judgment. Where a detail is not certain, the notes say so rather than guess. Students should read the full judgments of the landmark cases, especially Mohd. Ahmed Khan v Shah Bano Begum (1985), Danial Latifi v Union of India (2001), Shayara Bano v Union of India (2017), Githa Hariharan v RBI (1999) and Vineeta Sharma v Rakesh Sharma (2020).